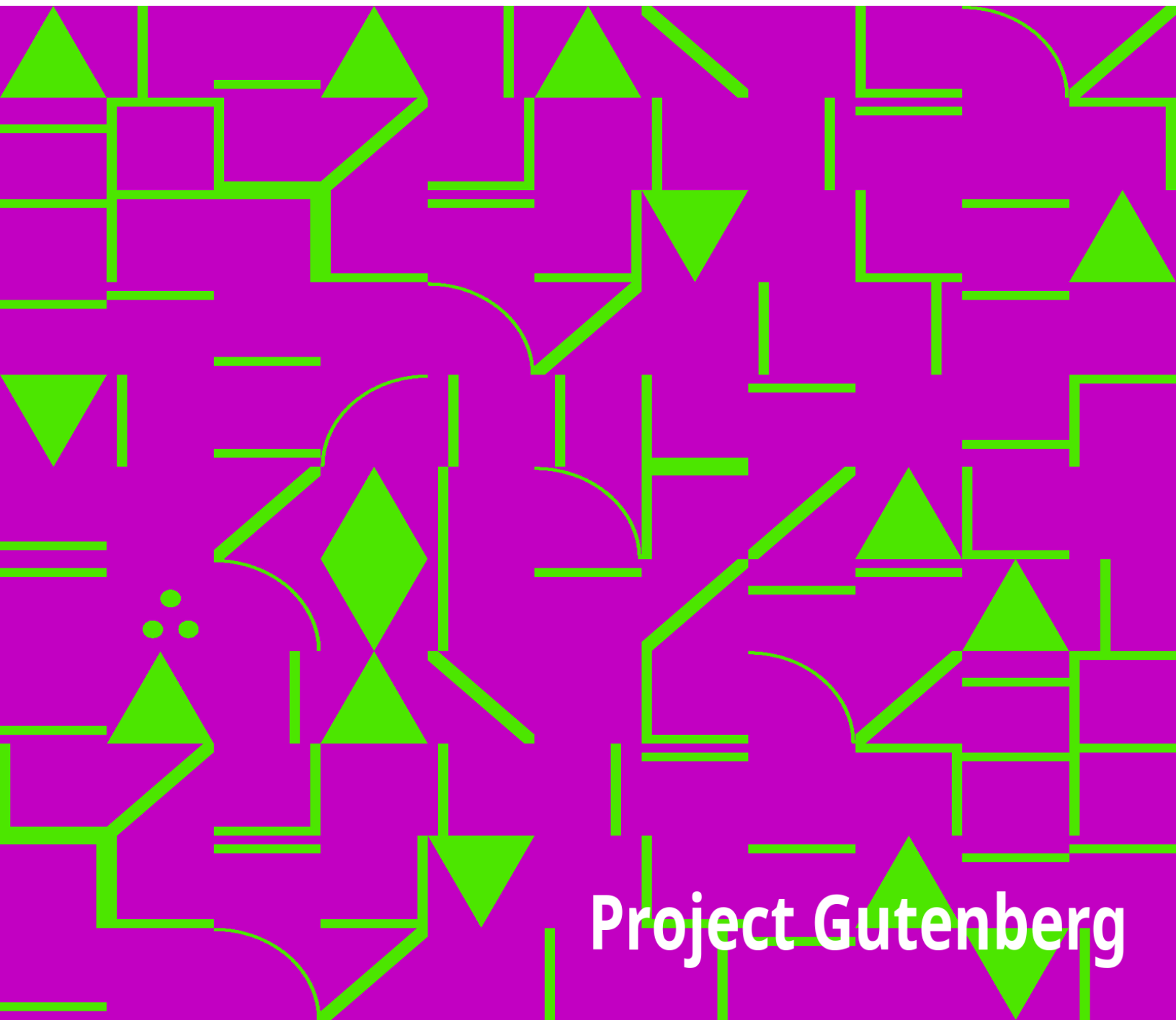


Abraham Lincoln: The People's Leader in the Struggle for National Existence

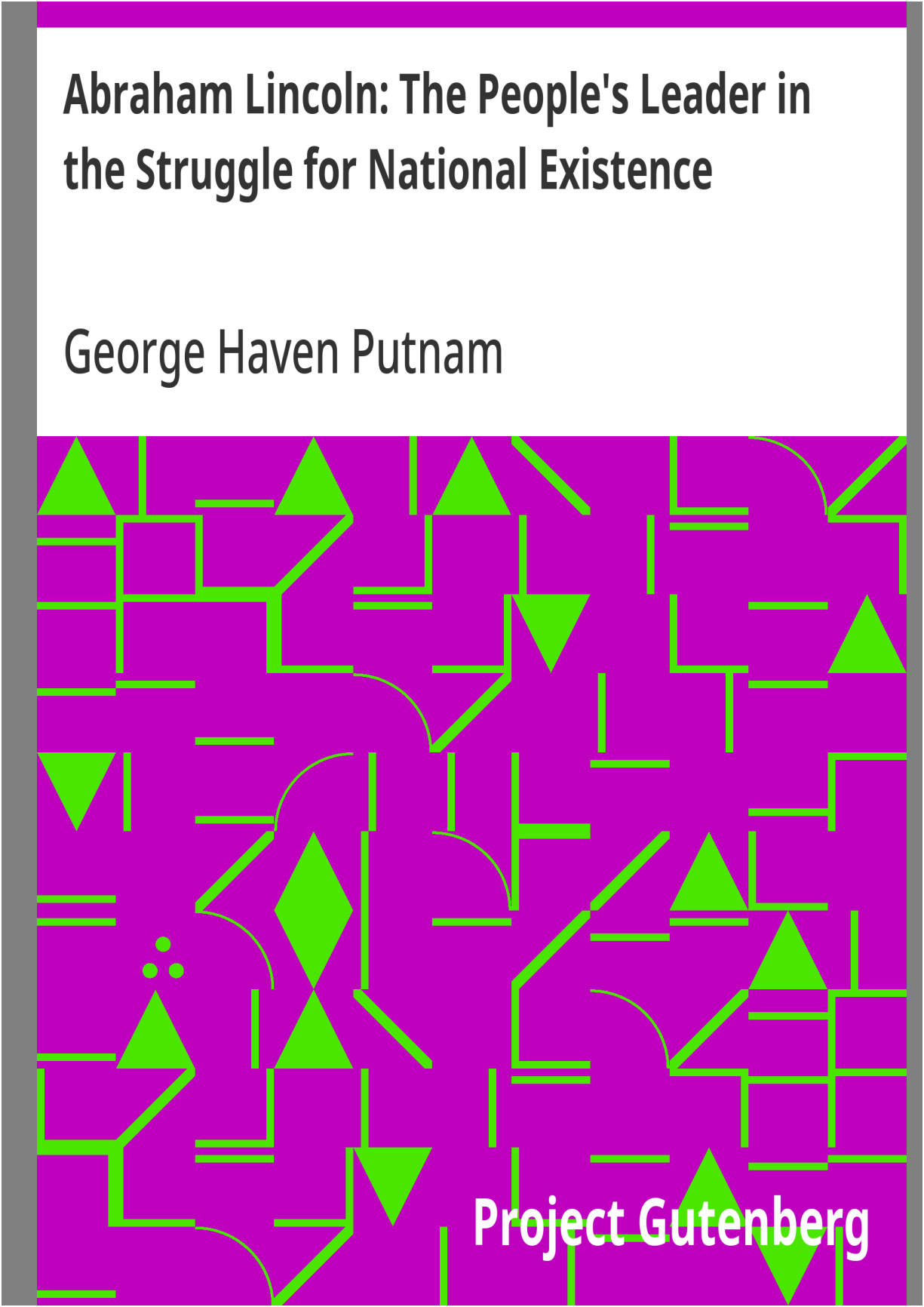
George Haven Putnam

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Abraham Lincoln: The People's Leader in the Struggle for National Existence

George Haven Putnam



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Title: Abraham Lincoln: The People's Leader in the Struggle for National Existence

Author: George Haven Putnam

Annotator: Cephas Brainerd
Charles C. Nott

Contributor: Abraham Lincoln

Release date: March 1, 2004 [eBook #11728]

Most recently updated: October 28, 2024

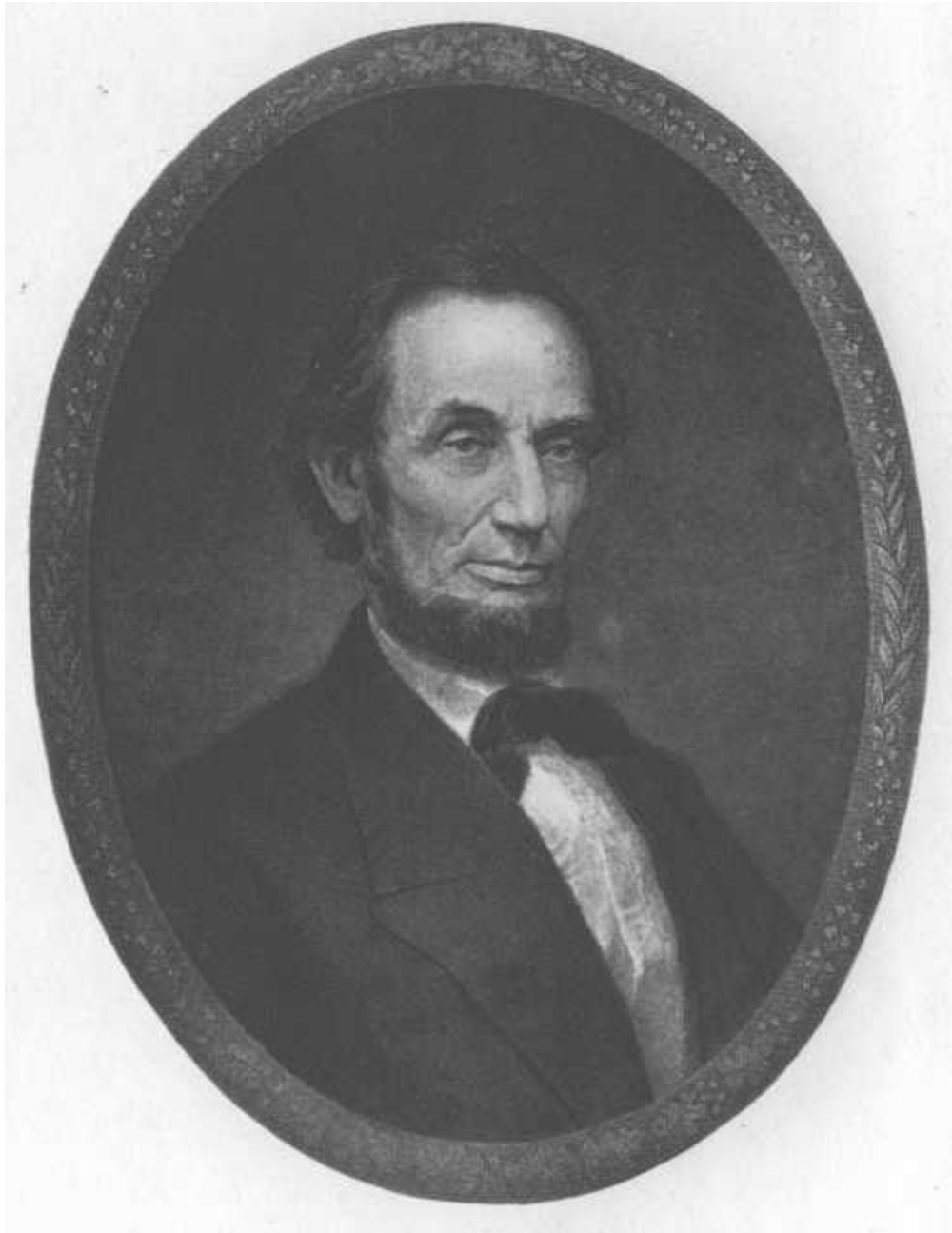
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NATIONAL EXISTENCE ***

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Abraham Lincoln

The People's Leader in the Struggle for National Existence

By

George Haven Putnam, Litt. D.

Author of

"Books and Their Makers in the Middle Ages,"

"The Censorship of the Church," etc.

With the above is included the speech delivered by Lincoln in New York, February 27, 1860; with an introduction by Charles C. Nott, late Chief Justice of the Court of Claims, and annotations by Judge Nott and by Cephas Brainerd of New York Bar.

1909

INTRODUCTORY NOTE

The twelfth of February, 1909, was the hundredth anniversary of the birth of Abraham Lincoln. In New York, as in other cities and towns throughout the Union, the day was devoted to commemoration exercises, and even in the South, in centres like Atlanta (the capture of which in 1864 had indicated the collapse of the cause of the Confederacy), representative Southerners gave their testimony to the life and character of the great American.

The Committee in charge of the commemoration in New York arranged for a series of addresses to be given to the people of the city and it was my privilege to be selected as one of the speakers. It was an indication of the rapid passing away of the generation which had had to do with the events of the War, that the list of orators, forty-six in all, included only four men who had ever seen the hero whose life and character they were describing.

In writing out later, primarily for the information of children and grandchildren, my own address (which had been delivered without notes), I

found myself so far absorbed in the interest of the subject and in the recollections of the War period, that I was impelled to expand the paper so that it should present a more comprehensive study of the career and character of Lincoln than it had been possible to attempt within the compass of an hour's talk, and should include also references, in outline, to the constitutional struggle that had preceded the contest and to the chief events of the War itself with which the great War President had been most directly concerned. The monograph, therefore, while in the form of an essay or historical sketch, retains in certain portions the character of the spoken address with which it originated.

It is now brought into print in the hope that it may be found of interest for certain readers of the younger generation and may serve as an incentive to the reading of the fuller histories of the War period, and particularly of the best of the biographies of the great American whom we honour as the People's leader.

I have been fortunate enough to secure (only, however, after this monograph had been put into type) a copy of the pamphlet printed in September, 1860, by the Young Men's Republican Union of New York, in which is presented the text, as revised by the speaker, of the address given by Lincoln at the Cooper Institute in February,—the address which made him President.

This edition of the speech, prepared for use in the Presidential campaign, contains a series of historical annotations by Cephas Brainerd of the New York Bar and Charles C. Nott, who later rendered further distinguished service to his country as Colonel of the 176th Regiment, N.Y.S. Volunteers, and (after the close of the War) as chief justice of the Court of Claims.

These young lawyers (not yet leaders of the Bar) appear to have realised at once that the speech was to constitute the platform upon which the issues of the Presidential election were to be contested. Not being prophets, they were, of course, not in a position to know that the same statements were to represent the contentions of the North upon which the Civil War was fought out.

I am able to include, with the scholarly notes of the two lawyers, a valuable introduction to the speech, written (as late as February, 1908) by Judge

Nott; together with certain letters which in February, 1860, passed between him (as the representative of the Committee) and Mr. Lincoln.

The introduction and the letters have never before been published, and (as is the case also with the material of the notes) are now in print only in the present volume.

I judge, therefore, that I may be doing a service to the survivors of the generation of 1860 and also to the generations that have grown up since the War, by utilising the occasion of the publication of my own little monograph for the reprinting of these notes in a form for permanent preservation and for reference on the part of students of the history of the Republic.

G.H.P.

NEW YORK, April 2, 1909.

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Abraham Lincoln

I

THE EVOLUTION OF THE MAN

On the twelfth of February, 1909, the hundredth anniversary of the birth of Abraham Lincoln, Americans gathered together, throughout the entire country, to honour the memory of a great American, one who may come to be accepted as the greatest of Americans. It was in every way fitting that this honour should be rendered to Abraham Lincoln and that, on such commemoration day, his fellow-citizens should not fail to bear also in honoured memory the thousands of other good Americans who like Lincoln gave their lives for their country and without whose loyal devotion Lincoln's leadership would have been in vain.

The chief purpose, however, as I understand, of a memorial service is not so much to glorify the dead as to enlighten and inspire the living. We borrow the thought of his own Gettysburg address (so eloquent in its exquisite simplicity) when we say that no words of ours can add any glory to the name of Abraham Lincoln. His work is accomplished. His fame is secure. It is for us, his fellow-citizens, for the older men who had personal touch with the great struggle in which Lincoln was the nation's leader, for the younger men who have grown up in the generation since the War, and for the children by whom are to be handed down through the new century the great traditions of the Republic, to secure from the life and character of our great leader incentive, illumination, and inspiration to good citizenship, in order that Lincoln and his fellow-martyrs shall not have died in vain.

It is possible within the limits of this paper simply to touch upon the chief events and experiences in Lincoln's life. It has been my endeavour to select those that were the most important in the forming or in the expression of his character. The term "forming" is, however, not adequate to indicate the development of a personality like Lincoln's. We rather think of his sturdy character as having been *forged* into its final form through the fiery furnace of fierce struggle, as hammered out under the blows of difficulties and disasters, and as pressed beneath the weight of the nation's burdens, until

was at last produced the finely tempered nature of the man we know, the Lincoln of history, that exquisite combination of sweetness of nature and strength of character. The type is described in Schiller's Song of the Founding of the Bell:

Denn, wo das strenge mit dem zarten,
Wo mildes sich und starkes paarten,
Da giebt es einen guten Klang.

There is a tendency to apply the term "miraculous" to the career of every hero, and in a sense such description is, of course, true. The life of every man, however restricted its range, is something of a miracle; but the course of a single life, like that of humanity, is assuredly based on a development that proceeds from a series of causations. Holmes says that the education of a man begins two centuries before his birth. We may recall in this connection that Lincoln came of good stock. It is true that his parents belonged to the class of poor whites; but the Lincoln family can be traced from an eastern county of England (we might hope for the purpose of genealogical harmony that the county was Lincolnshire) to Hingham in Massachusetts, and by way of Pennsylvania and Virginia to Kentucky. The grandfather of our Abraham was killed, while working in his field on the Kentucky farm, by predatory Indians shooting from the cover of the dense forest. Abraham's father, Thomas, at that time a boy, was working in the field where his father was murdered. Such an incident in Kentucky simply repeated what had been going on just a century before in Massachusetts, at Deerfield and at dozens of other settlements on the edge of the great forest which was the home of the Indians. During the hundred years, the frontier of the white man's domain had been moved a thousand miles to the southwest and, as ever, there was still friction at the point of contact.

The record of the boyhood of our Lincoln has been told in dozens of forms and in hundreds of monographs. We know of the simplicity, of the penury, of the family life in the little one-roomed log hut that formed the home for the first ten years of Abraham's life. We know of his little group of books collected with toil and self-sacrifice. The series, after some years of strenuous labour, comprised the Bible, *Aesop's Fables*, a tattered copy of Euclid's *Geometry*, and Weems's *Life of Washington*. The *Euclid* he had secured as a great prize from the son of a neighbouring farmer. Abraham

had asked the boy the meaning of the word "demonstrate." His friend said that he did not himself know, but that he knew the word was in a book which he had at school, and he hunted up the *Euclid*. After some bargaining, the *Euclid* came into Abraham's possession. In accordance with his practice, the whole contents were learned by heart. Abraham's later opponents at the Bar or in political discussion came to realise that he understood the meaning of the word "demonstrate." In fact, references to specific problems of Euclid occurred in some of his earlier speeches at the Bar.

A year or more later, when the Lincoln family had crossed the river to Indiana, there was added to the "library" a copy of the revised Statutes of the State. The Weems's *Washington* had been borrowed by Lincoln from a neighbouring farmer. The boy kept it at night under his pillow, and on the occasion of a storm, the water blew in through the chinks of the logs that formed the wall of the cabin, drenching the pillow and the head of the boy (a small matter in itself) and wetting and almost spoiling the book. This was a grave misfortune. Lincoln took his damaged volume to the owner and asked how he could make payment for the loss. It was arranged that the boy should put in three days' work shucking corn on the farm. "Will that work pay for the book or only for the damage?" asked the boy. It was agreed that the labour of three days should be considered sufficient for the purchase of the book.

The text of this biography and the words of each valued volume in the little "library" were absorbed into the memory of the reader. It was his practice when going into the field for work, to take with him written-out paragraphs from the book that he had at the moment in mind and to repeat these paragraphs between the various chores or between the wood-chopping until every page was committed by heart. Paper was scarce and dear and for the boy unattainable. He used for his copying bits of board shaved smooth with his jack-knife. This material had the advantage that when the task of one day had been mastered, a little labour with the jack-knife prepared the surface of the board for the work of the next day. As I read this incident in Lincoln's boyhood, I was reminded of an experience of my own in Louisiana. It happened frequently during the campaign of 1863 that our supplies were cut off through the capture of our waggon trains by that active Confederate commander, General Taylor. More than once, we were short of provisions, and, in one instance, a supply of stationery for which

the adjutants of the brigade had been waiting, was carried off to serve the needs of our opponents. We tore down a convenient and unnecessary shed and utilised from the roof the shingles, the clean portions of which made an admirable substitute for paper. For some days, the morning reports of the brigade were filed on shingles.

Lincoln's work as a farm-hand was varied by two trips down the river to New Orleans. The opportunity had been offered to the young man by the neighbouring store-keeper, Gentry, to take part in the trip of a flat-boat which carried the produce of the county to New Orleans, to be there sold in exchange for sugar or rum. Lincoln was, at the time of these trips, already familiar with certain of the aspects and conditions of slavery, but the inspection of the slave-market in New Orleans stamped upon his sensitive imagination a fresh and more sombre picture, and made a lasting impression of the iniquity and horror of the institution. From the time of his early manhood, Lincoln hated slavery. What was exceptional, however, in his state of mind was that, while abominating the institution, he was able to give a sympathetic understanding to the opinions and to the prejudices of the slave-owners. In all his long fight against slavery as the curse both of the white and of the black, and as the great obstacle to the natural and wholesome development of the nation, we do not at any time find a trace of bitterness against the men of the South who were endeavouring to maintain and to extend the system.

It was of essential importance for the development of Lincoln as a political leader, first for his State, and later in the contest that became national, that he should have possessed an understanding, which was denied to many of the anti-slavery leaders, of the actual nature, character, and purpose of the men against whom he was contending. It became of larger importance when Lincoln was directing from Washington the policy of the national administration that he should have a sympathetic knowledge of the problems of the men of the Border States who with the outbreak of the War had been placed in a position of exceptional difficulty, and that he should have secured and retained the confidence of these men. It seems probable that if the War President had been a man of Northern birth and Northern prejudices, if he had been one to whom the wider, the more patient and sympathetic view of these problems had been impossible or difficult, the Border States could not have been saved to the Union. It is probable that the

support given to the cause of the North by the sixty thousand or seventy thousand loyal recruits from Missouri, Kentucky, Tennessee, Maryland, and Virginia, may even have proved the deciding factor in turning the tide of events. The nation's leader for the struggle seems to have been secured through a process of natural selection as had been the case a century earlier with Washington. We may recall that Washington died but ten years before Lincoln was born; and from the fact that each leader was at hand when the demand came for his service, and when without such service the nation might have been pressed to destruction, we may grasp the hope that in time of need the nation will always be provided with the leader who can meet the requirement.

After Lincoln returned from New Orleans, he secured employment for a time in the grocery or general store of Gentry, and when he was twenty-two years of age, he went into business with a partner, some twenty years older than himself, in carrying on such a store. He had so impressed himself upon the confidence of his neighbours that, while he was absolutely without resources, there was no difficulty in his borrowing the money required for his share of the capital. The undertaking did not prove a success. Lincoln had no business experience and no particular business capacity, while his partner proved to be untrustworthy. The partner decamped, leaving Lincoln to close up the business and to take the responsibility for the joint indebtedness. It was seventeen years before Lincoln was able, from his modest earnings as a lawyer, to clear off this indebtedness. The debt became outlawed in six years' time but this could not affect Lincoln's sense of the obligation. After the failure of the business, Lincoln secured work as county surveyor. In this, he was following the example of his predecessor Washington, with whose career as a surveyor the youngster who knew Weems's biography by heart, was of course familiar. His new occupation took him through the county and brought him into personal relations with a much wider circle than he had known in the village of New Salem, and in his case, the personal relation counted for much; the history shows that no one who knew Lincoln failed to be attracted by him or to be impressed with the fullest confidence in the man's integrity of purpose and of action.

II

WORK AT THE BAR AND ENTRANCE INTO POLITICS

In 1834, when he was twenty-five years old, Lincoln made his first entrance into politics, presenting himself as candidate for the Assembly. His defeat was not without compensations; he secured in his own village or township, New Salem, no less than 208 out of the 211 votes cast. This prophet had honour with those who knew him. Two years later, he tried again and this time with success. His journeys as a surveyor had brought him into touch with, and into the confidence of, enough voters throughout the county to secure the needed majority.

Lincoln's active work as a lawyer lasted from 1834 to 1860, or for about twenty-six years. He secured in the cases undertaken by him a very large proportion of successful decisions. Such a result is not entirely to be credited to his effectiveness as an advocate. The first reason was that in his individual work, that is to say, in the matters that were taken up by himself rather than by his partner, he accepted no case in the justice of which he did not himself have full confidence. As his fame as an advocate increased, he was approached by an increasing number of clients who wanted the advantage of the effective service of the young lawyer and also of his assured reputation for honesty of statement and of management. Unless, however, he believed in the case, he put such suggestions to one side even at the time when the income was meagre and when every dollar was of importance.

Lincoln's record at the Bar has been somewhat obscured by the value of his public service, but as it comes to be studied, it is shown to have been both distinctive and important. His law-books were, like those of his original library, few, but whatever volumes he had of his own and whatever he was able to place his hands upon from the shelves of his friends, he mastered thoroughly. His work at the Bar gave evidence of his exceptional powers of reasoning while it was itself also a large influence in the development of

such powers. The counsel who practised with and against him, the judges before whom his arguments were presented, and the members of the juries, the hard-headed working citizens of the State, seem to have all been equally impressed with the exceptional fairness with which the young lawyer presented not only his own case but that of his opponent. He had great tact in holding his friends, in convincing those who did not agree with him, and in winning over opponents; but he gave no futile effort to tasks which his judgment convinced him would prove impossible. He never, says Horace Porter, citing Lincoln's words, "wasted any time in trying to massage the back of a political porcupine." "A man might as well," says Lincoln, "undertake to throw fleas across the barnyard with a shovel."

He had as a youngster won repute as a teller of dramatic stories, and those who listened to his arguments in court were expecting to have his words to the jury brightened and rendered for the moment more effective by such stories. The hearers were often disappointed in such expectation. Neither at the Bar, nor, it may be said here, in his later work as a political leader, did Lincoln indulge himself in the telling a story for the sake of the story, nor for the sake of the laugh to be raised by the story, nor for the momentary pleasure or possible temporary advantage of the discomfiture of the opponent. The story was used, whether in law or in politics, only when it happened to be the shortest and most effective method of making clear an issue or of illustrating a statement. In later years, when he had upon him the terrible burdens of the great struggle, Lincoln used stories from time to time as a vent to his feelings. The impression given was that by an effort of will and in order to keep his mind from dwelling too continuously upon the tremendous problems upon which he was engaged, he would, by the use of some humorous reminiscence, set his thoughts in a direction as different as possible from that of his cares. A third and very valuable use of the story which grew up in his Washington days was to turn aside some persistent but impossible application; and to give to the applicant, with the least risk of unnecessary annoyance to his feelings, the "no" that was necessary. It is doubtless also the case that, as has happened to other men gifted with humour, Lincoln's reputation as a story-teller caused to be ascribed to him a great series of anecdotes and incidents of one kind or another, some of which would have been entirely outside of, and inconsistent with, his own standard and his own method. There is the further and final word to be said

about Lincoln's stories, that they were entitled to the geometrical commendation of "being neither too long nor too broad."

In 1846, Lincoln was elected to Congress as a Whig. The circle of acquaintances whom he had made in the county as surveyor had widened out with his work as a lawyer; he secured a unanimous nomination and was elected without difficulty in a constituency comprising six counties. I find in the record of the campaign the detail that Lincoln returned to certain of his friends who had undertaken to find the funds for election expenses, \$199.90 out of the \$200 subscribed.

In 1847, Lincoln was one of the group of Whigs in Congress who opposed the Mexican War. These men took the ground that the war was one of aggression and spoliation. Their views, which were quite prevalent throughout New England, are effectively presented in Lowell's *Biglow Papers*. When the army was once in the field, Lincoln was, however, ready to give his Congressional vote for the fullest and most energetic support. A year or more later, he worked actively for the election of General Taylor. He took the ground that the responsibility for the war rested not with the soldiers who had fought it to a successful conclusion, but with the politicians who had devised the original land-grabbing scheme.

In 1849, we find Lincoln's name connected with an invention for lifting vessels over shoals. His sojourn on the Sangamon River and his memory of the attempt, successful for the moment but ending in failure, to make the river available for steamboats, had attracted his attention to the problem of steering river vessels over shoals.

In 1864, when I was campaigning on the Red River in Louisiana, I noticed with interest a device that had been put into shape for the purpose of lifting river steamers over shoals. This device took the form of stilts which for the smaller vessels (and only the smaller steamers could as a rule be managed in this way) were fastened on pivots from the upper deck on the outside of the hull and were worked from the deck with a force of two or three men at each stilt. The difficulty on the Red River was that the Rebel sharp-shooters from the banks made the management of the stilts irregular.

In 1854, Douglas carried through Congress the Kansas-Nebraska Bill. This bill repealed the Missouri Compromise of 1820, and cancelled also the

provisions of the series of compromises of 1850. Its purpose was to throw open for settlement and for later organisation as Slave States the whole territory of the North-west from which, under the Missouri Compromise, slavery had been excluded. The Kansas-Nebraska Bill not only threw open a great territory to slavery but re-opened the whole slavery discussion. The issues that were brought to the front in the discussions about this bill, and in the still more bitter contests after the passage of the bill in regard to the admission of Kansas as a Slave State, were the immediate precursors of the Civil War. The larger causes lay further back, but the War would have been postponed for an indefinite period if it had not been for the pressing on the part of the South for the right to make Slave States throughout the entire territory of the country, and for the readiness on the part of certain Democratic leaders of the North, of whom Douglas was the chief, to accept this contention, and through such expedients to gain, or to retain, political control for the Democratic party.

In one of the long series of debates in Congress on the question of the right to take slaves into free territory, a planter from South Carolina drew an affecting picture of his relations with his old coloured foster-mother, the "mammy" of the plantation. "Do you tell me," he said, addressing himself to a Free-soil opponent, "that I, a free American citizen, am not to be permitted, if I want to go across the Missouri River, to take with me my whole home circle? Do you say that I must leave my old 'Mammy' behind in South Carolina?" "Oh!" replied the Westerner, "the trouble with you is not that you cannot take your 'Mammy' into this free territory, but that you are not to be at liberty to sell her when you get her there."

Lincoln threw himself with full earnestness of conviction and ardour into the fight to preserve for freedom the territory belonging to the nation. In common with the majority of the Whig party, he held the opinion that if slavery could be restricted to the States in which it was already in existence, if no further States should be admitted into the Union with the burden of slavery, the institution must, in the course of a generation or two, die out. He was clear in his mind that slavery was an enormous evil for the whites as well as for the blacks, for the individual as for the nation. He had himself, as a young man, been brought up to do toilsome manual labour. He would not admit that there was anything in manual labour that ought to impair the respect of the community for the labourer or the worker's respect

for himself. Not the least of the evils of slavery was, in his judgment, its inevitable influence in bringing degradation upon labour and the labourer.

The passage of the Kansas-Nebraska Act made clear to the North that the South would accept no limitations for slavery. The position of the Southern leaders, in which they had the substantial backing of their constituents, was that slaves were property and that the Constitution, having guaranteed the protection of property to all the citizens of the commonwealth, a slaveholder was deprived of his constitutional rights as a citizen if his control of this portion of his property was in any way interfered with or restricted. The argument in behalf of this extreme Southern claim had been shaped most eloquently and most forcibly by John C. Calhoun during the years between 1830 and 1850. The Calhoun opinion was represented a few years later in the Presidential candidacy of John C. Breckinridge. The contention of the more extreme of the Northern opponents of slavery voters, whose spokesmen were William Lloyd Garrison, Wendell Phillips, James G. Birney, Owen Lovejoy, and others, was that the Constitution in so far as it recognised slavery (which it did only by implication) was a compact with evil. They held that the Fathers had been led into this compact unwittingly and without full realisation of the responsibilities that they were assuming for the perpetuation of a great wrong. They refused to accept the view that later generations of American citizens were to be bound for an indefinite period by this error of judgment on the part of the Fathers. They proposed to get rid of slavery, as an institution incompatible with the principles on which the Republic was founded. They pointed out that under the Declaration of Independence all men had an equal right to "life, liberty, and the pursuit of happiness," and that there was no limitation of this claim to men of white race. If it was not going to be possible to argue slavery out of existence, these men preferred to have the Union dissolved rather than to bring upon States like Massachusetts a share of the responsibility for the wrong done to mankind and to justice under the laws of South Carolina.

The Whig party, whose great leader, Henry Clay, had closed his life in 1852, just at the time when Lincoln was becoming prominent in politics, held that all citizens were bound by the compact entered into by their ancestors, first under the Articles of Confederation of 1783, and later under the Constitution of 1789. Our ancestors had, for the purpose of bringing about the organisation of the Union, agreed to respect the institution of

slavery in the States in which it existed. The Whigs of 1850, held, therefore, that in such of the Slave States as had been part of the original thirteen, slavery was an institution to be recognised and protected under the law of the land. They admitted, further, that what their grandfathers had done in 1789, had been in a measure confirmed by the action of their fathers in 1820. The Missouri Compromise of 1820, in making clear that all States thereafter organised north of the line thirty-six thirty were to be Free States, made clear also that States south of that line had the privilege of coming into the Union with the institution of slavery and that the citizens in these newer Slave States should be assured of the same recognition and rights as had been accorded to those of the original thirteen.

The Missouri Compromise permitted also the introduction of Missouri itself into the Union as a Slave State (as a counterpoise to the State of Maine admitted the same year), although almost the entire territory of the State of Missouri was north of the latitude 36° 30'.

We may recall that, under the Constitution, the States of the South, while denying the suffrage to the negro, had secured the right to include the negro population as a basis for their representation in the lower House. In apportioning the representatives to the population, five negroes were to be counted as the equivalent of three white men. The passage, in 1854, of the Kansas-Nebraska Act, the purpose of which was to confirm the existence of slavery and to extend the institution throughout the country, was carried in the House by thirteen votes. The House contained at that time no less than twenty members representing the negro population. The negroes were, therefore, in this instance involuntarily made the instruments for strengthening the chains of their own serfdom.

It was in 1854 that Lincoln first propounded the famous question, "Can the nation endure half slave and half free?" This question, slightly modified, became the keynote four years later of Lincoln's contention against the Douglas theory of "squatter sovereignty." The organisation of the Republican party dates from 1856. Various claims have been made concerning the precise date and place at which were first presented the statement of principles that constituted the final platform of the party, and in regard to the men who were responsible for such statement. At a meeting held as far back as July, 1854, at Jackson, Michigan, a platform was

adopted by a convention which had been brought together to formulate opposition to any extension of slavery, and this Jackson platform did contain the substance of the conclusions and certain of the phrases which later were included in the Republican platform. In January, 1856, Parke Godwin published in *Putnam's Monthly*, of which he was political editor, an article outlining the necessary constitution of the new party. This article gave a fuller expression than had thus far been made of the views of the men who were later accepted as the leaders of the Republican party. In May, 1856, Lincoln made a speech at Bloomington, Illinois, setting forth the principles for the anti-slavery campaign as they were understood by his group of Whigs. In this speech, Lincoln speaks of "that perfect liberty for which our Southern fellow-citizens are sighing, the liberty of making slaves of other people"; and again, "It is the contention of Mr. Douglas, in his claim for the rights of American citizens, that if *A* sees fit to enslave *B*, no other man shall have the right to object." Of this Bloomington speech, Herndon says: "It was logic; it was pathos; it was enthusiasm; it was justice, integrity, truth, and right. The words seemed to be set ablaze by the divine fires of a soul maddened by a great wrong. The utterance was hard, knotty, gnarly, backed with wrath."

From this time on, Lincoln was becoming known throughout the country as one of the leaders in the new issues, able and ready to give time and service to the anti-slavery fight and to the campaign work of the Republican organisation. This political service interfered to some extent with his work at the Bar, but he did not permit political interests to stand in the way of any obligations that had been assumed to his clients. He simply accepted fewer cases, and to this extent reduced his very moderate earnings. In his work as a lawyer, he never showed any particular capacity for increasing income or for looking after his own business interests. It was his principle and his practice to discourage litigation. He appears, during the twenty-five years in which he was in active practice, to have made absolutely no enemies among his professional opponents. He enjoyed an exceptional reputation for the frankness with which he would accept the legitimate contentions of his opponents or would even himself state their case. Judge David Davis, before whom Lincoln had occasion during these years to practise, says that the Court was always prepared to accept as absolutely fair and substantially complete Lincoln's statement of the matters at issue. Davis says it

occasionally happened that Lincoln would supply some consideration of importance on his opponent's side of the case that the other counsel had overlooked. It was Lincoln's principle to impress upon himself at the outset the full strength of the other man's position. It was also his principle to accept no case in the justice of which he had not been able himself to believe. He possessed also by nature an exceptional capacity for the detection of faulty reasoning; and his exercise of the power of analysis in his work at the Bar proved of great service later in widening his influence as a political leader. The power that he possessed, when he was assured of the justice of his cause, of convincing court and jury became the power of impressing his convictions upon great bodies of voters. Later, when he had upon his shoulders the leadership of the nation, he took the people into his confidence; he reasoned with them as if they were sitting as a great jury for the determination of the national policy, and he was able to impress upon them his perfect integrity of purpose and the soundness of his conclusions,—conclusions which thus became the policy of the nation.

He calls himself a "mast-fed lawyer" and it is true that his opportunities for reading continued to be most restricted. Davis said in regard to Lincoln's work as a lawyer: "He had a magnificent equipoise of head, conscience, and heart. In non-essentials he was pliable; but on the underlying principles of truth and justice, his will was as firm as steel." We find from the record of Lincoln's work in the Assembly and later in Congress that he would never do as a Representative what he was unwilling to do as an individual. His capacity for seeing the humorous side of things was of course but a phase of a general clearness of perception. The man who sees things clearly, who is able to recognise both sides of a matter, the man who can see all round a position, the opposite of the man in blinders, that man necessarily has a sense of humour. He is able, if occasion presents, to laugh at himself. Lincoln's capacity for absorbing and for retaining information and for having this in readiness for use at the proper time was, as we have seen, something that went back to his boyhood. He says of himself: "My mind is something like a piece of steel; it is very hard to scratch anything on it and almost impossible after you have got it there to rub it out."

Lincoln's correspondence has been preserved with what is probably substantial completeness. The letters written by him to friends, acquaintances, political correspondents, individual men of one kind or

another, have been gathered together and have been brought into print not, as is most frequently the case, under the discretion or judgment of a friendly biographer, but by a great variety of more or less sympathetic people. It would seem as if but very few of Lincoln's letters could have been mislaid or destroyed. One can but be impressed, in reading these letters, with the absolute honesty of purpose and of statement that characterises them. There are very few men, particularly those whose active lives have been passed in a period of political struggle and civil war, whose correspondence could stand such a test. There never came to Lincoln requirement to say to his correspondent, "Burn this letter."

III

THE FIGHT AGAINST THE EXTENSION OF SLAVERY

In 1856, the Supreme Court, under the headship of Judge Taney, gave out the decision of the Dred Scott case. The purport of this decision was that a negro was not to be considered as a person but as a chattel; and that the taking of such negro chattel into free territory did not cancel or impair the property rights of the master. It appeared to the men of the North as if under this decision the entire country, including in addition to the national territories the independent States which had excluded slavery, was to be thrown open to the invasion of the institution. The Dred Scott decision, taken in connection with the repeal of the Missouri Compromise (and the two acts were doubtless a part of one thoroughly considered policy), foreshadowed as their logical and almost inevitable consequence the bringing of the entire nation under the control of slavery. The men of the future State of Kansas made during 1856-57 a plucky fight to keep slavery out of their borders. The so-called Lecompton Constitution undertook to force slavery upon Kansas. This constitution was declared by the administration (that of President Buchanan) to have been adopted, but the fraudulent character of the voting was so evident that Walker, the Democratic Governor, although a sympathiser with slavery, felt compelled to repudiate it. This constitution was repudiated also by Douglas, although Douglas had declared that the State ought to be thrown open to slavery. Jefferson Davis, at that time Secretary of War, declared that "Kansas was in a state of rebellion and that the rebellion must be crushed." Armed bands from Missouri crossed the river to Kansas for the purpose of casting fraudulent votes and for the further purpose of keeping the Free-soil settlers away from the polls.

This fight for freedom in Kansas gave a further basis for Lincoln's statement "that a house divided against itself cannot stand; this government cannot endure half slave and half free." It was with this statement as his

starting-point that Lincoln entered into his famous Senatorial campaign with Douglas. Douglas had already represented Illinois in the Senate for two terms and had, therefore, the advantage of possession and of a substantial control of the machinery of the State. He had the repute at the time of being the leading political debater in the country. He was shrewd, forcible, courageous, and, in the matter of convictions, unprincipled. He knew admirably how to cater to the prejudices of the masses. His career thus far had been one of unbroken success. His Senatorial fight was, in his hope and expectation, to be but a step towards the Presidency. The Democratic party, with an absolute control south of Mason and Dixon's Line and with a very substantial support in the Northern States, was in a position, if unbroken, to control with practical certainty the Presidential election of 1860. Douglas seemed to be the natural leader of the party. It was necessary for him, however, while retaining the support of the Democrats of the North, to make clear to those of the South that his influence would work for the maintenance and for the extension of slavery.

The South was well pleased with the purpose and with the result of the Dred Scott decision and with the repeal of the Missouri Compromise. It is probable, however, that if the Dred Scott decision had not given to the South so full a measure of satisfaction, the South would have been more ready to accept the leadership of a Northern Democrat like Douglas. Up to a certain point in the conflict, they had felt the need of Douglas and had realised the importance of the support that he was in a position to bring from the North. When, however, the Missouri Compromise had been repealed and the Supreme Court had declared that slaves must be recognised as property throughout the entire country, the Southern claims were increased to a point to which certain of the followers of Douglas were not willing to go. It was a large compliment to the young lawyer of Illinois to have placed upon him the responsibility of leading, against such a competitor as Douglas, the contest of the Whigs, and of the Free-soilers back of the Whigs, against any further extension of slavery, a contest which was really a fight for the continued existence of the nation.

Lincoln seems to have gone into the fight with full courage, the courage of his convictions. He felt that Douglas was a trimmer, and he believed that the issue had now been brought to a point at which the trimmer could not hold support on both sides of Mason and Dixon's Line. He formulated at the

outset of the debate a question which was pressed persistently upon Douglas during the succeeding three weeks. This question was worded as follows: "Can the people of a United States territory, prior to the formation of a State constitution or against the protest of any citizen of the United States, exclude slavery?" Lincoln's campaign advisers were of opinion that this question was inadvisable. They took the ground that Douglas would answer the question in such way as to secure the approval of the voters of Illinois and that in so doing he would win the Senatorship. Lincoln's response was in substance: "That may be. I hold, however, that if Douglas answers this question in a way to satisfy the Democrats of the North, he will inevitably lose the support of the more extreme, at least, of the Democrats of the South. We may lose the Senatorship as far as my personal candidacy is concerned. If, however, Douglas fails to retain the support of the South, he cannot become President in 1860. The line will be drawn directly between those who are willing to accept the extreme claims of the South and those who resist these claims. A right decision is the essential thing for the safety of the nation." The question gave no little perplexity to Douglas. He finally, however, replied that in his judgment the people of a United States territory had the right to exclude slavery. When asked again by Lincoln how he brought this decision into accord with the Dred Scott decision, he replied in substance: "Well, they have not the right to take constitutional measures to exclude slavery but they can by local legislation render slavery practically impossible." The Dred Scott decision had in fact itself overturned the Douglas theory of popular sovereignty or "squatter sovereignty." Douglas was only able to say that his sovereignty contention made provision for such control of domestic or local regulations as would make slavery impossible.

The South, rendered autocratic by the authority of the Supreme Court, was not willing to accept the possibility of slavery being thus restricted out of existence in any part of the country. The Southerners repudiated Douglas as Lincoln had prophesied they would do. Douglas had been trying the impossible task of carrying water on both shoulders. He gained the Senatorship by a narrow margin; he secured in the vote in the Legislature a majority of eight, but Lincoln had even in this fight won the support of the people. His majority on the popular vote was four thousand.

The series of debates between these two leaders came to be of national importance. It was not merely a question of the representation in the Senate from the State of Illinois, but of the presentation of arguments, not only to the voters of Illinois but to citizens throughout the entire country, in behalf of the restriction of slavery on the one hand or of its indefinite expansion and protection on the other. The debate was educational not merely for the voters who listened, but for the thousands of other voters who read the reports. It would be an enormous advantage for the political education of candidates and for the education of voters if such debates could become the routine in Congressional and Presidential campaigns. Under the present routine, we have, in place of an assembly of voters representing the conflicting views of the two parties or of the several political groups, a homogeneous audience of one way of thinking, and speakers who have no opponent present to check the temptation to launch forth into wild statements, personal abuse, and irresponsible conclusions. An interruption of the speaker is considered to be a disturbance of order, and the man who is not fully in sympathy with the views of the audience is likely to be put out as an interloper. With a system of joint debates, the speakers would be under an educational repression. False or exaggerated statements would not be made, or would not be made consciously, because they would be promptly corrected by the other fellow. There would of necessity come to be a better understanding and a larger respect for the positions of the opponent. The men who would be selected as leaders or speakers to enforce the contentions of the party, would have to possess some reasoning faculty as well as oratorical fluency. The voters, instead of being shut in with one group of arguments more or less reasonable, would be brought into touch with the arguments of other groups of citizens. I can conceive of no better method for bringing representative government on to a higher plane and for making an election what it ought to be, a reasonable decision by reasoning voters, than the institution of joint debates.

I cite certain of the incisive statements that came into Lincoln's seven debates. "A slave, says Judge Douglas (on the authority of Judge Taney), is a human being who is legally not a person but a thing." "I contend [says Lincoln] that slavery is founded on the selfishness of man's nature. Slavery is a violation of the eternal right, and as long as God reigns and as school-children read, that black evil can never be consecrated into God's truth." "A

man does not lose his right to a piece of property which has been stolen. Can a man lose a right to himself if he himself has been stolen?" The following words present a summary of Lincoln's statements:

Judge Douglas contends that if any one man chooses to enslave another, no third man has a right to object. Our Fathers, in accepting slavery under the Constitution as a legal institution, were of opinion, as is clearly indicated by the recorded utterances, that slavery would in the course of a few years die out. They were quite clear in their minds that the slave-trade must be abolished and for ever forbidden and this decision was arrived at under the leadership of men like Jefferson and without a protest from the South. Jefferson was himself the author of the Ordinance of 1787, which in prohibiting the introduction of slavery, consecrated to freedom the great territory of the North-west, and this measure was fully approved by Washington and by the other great leaders from the South. Where slavery exists, full liberty refuses to enter. It was only through this wise action of the Fathers that it was possible to bring into existence, through colonisation, the great territories and great States of the North-west. It is this settlement, and the later adjustment of 1820, that Douglas and his friends in the South are undertaking to overthrow. Slavery is not, as Judge Douglas contends, a local issue; it is a national responsibility. The repeal of the Missouri Compromise throws open not only a great new territory to the curse of slavery; it throws open the whole slavery question for the embroiling of the present generation of Americans. Taking slaves into free territory is the same thing as reviving the slave-trade. It perpetuates and develops interstate slave-trade. Government derives its just powers from the consent of the governed. The Fathers did not claim that "the right of the people to govern negroes was the right of the people to govern themselves."

The policy of Judge Douglas was based on the theory that the people did not care, but the people did care, as was evinced two years later by the popular vote for President throughout the North. One of those who heard these debates says: "Lincoln loved truth for its own sake. He had a deep, true, living conscience; honesty was his polar star. He never acted for stage effect. He was cool, spirited, reflective, self-possessed, and self-reliant. His style was clear, terse, compact ... He became tremendous in the directness of his utterance when, as his soul was inspired with the thought of human

right and Divine justice, he rose to impassioned eloquence, and at such times he was, in my judgment, unsurpassed by Clay or by Mirabeau."

As the debates progressed, it was increasingly evident that Douglas found himself hard pushed. Lincoln would not allow himself to be swerved from the main issue by any tergiversation or personal attacks. He insisted from day to day in bringing Douglas back to this issue: "What do you, Douglas, propose to do about slavery in the territories? Is it your final judgment that there is to be no further reservation of free territory in this country? Do you believe that it is for the advantage of this country to put no restriction to the extension of slavery?" Douglas wriggled and squirmed under this direct questioning and his final replies gave satisfaction neither to the Northern Democrats nor to those of the South. The issue upon which the Presidential contest of 1860 was to be fought out had been fairly stated. It was the same issue under which, in 1861, the fighting took the form of civil war. It was the issue that took four years to fight out and that was finally decided in favour of the continued existence of the nation as a free state. In this fight, Lincoln was not only, as the contest was finally shaped, the original leader; he was the final leader; and at the time of his death the great question had been decided for ever.

Horace White, in summing up the issues that were fought out in debate between Lincoln and Douglas, says:

"Forty-four years have passed away since the Civil War came to an end and we are now able to take a dispassionate view of the question in dispute. The people of the South are now generally agreed that the institution of slavery was a direful curse to both races. We of the North must confess that there was considerable foundation for the asserted right of States to secede. Although the Constitution did in distinct terms make the Federal Government supreme, it was not so understood at first by the people either North or South. Particularism prevailed everywhere at the beginning. Nationalism was an aftergrowth and a slow growth proceeding mainly from the habit into which people fell of finding their common centre of gravity at Washington City and of viewing it as the place whence the American name and fame were blazoned to the world. During the first half century of the Republic, the North and South were changing coats from time to time, on the subject of State Rights and the right to secede, but meanwhile the

Constitution itself was working silently in the North to undermine the particularism of Jefferson and to strengthen the nationalism of Hamilton. It had accomplished its work in the early thirties, when it found its perfect expression in Webster's reply to Hayne. But the Southern people were just as firmly convinced that Hayne was the victor in that contest as the Northern people were that Webster was. The vast material interests bottomed on slavery offset and neutralised the unifying process in the South, while it continued its wholesome work in the North, and thus the clashing of ideas paved the way for the clash of arms. That the behaviour of the slaveholders resulted from the circumstances in which they were placed and not from any innate devilry is a fact now conceded by all impartial men. It was conceded by Lincoln both before the War and during the War, and this fact accounts for the affection bestowed upon him by Southern hearts to-day."

Lincoln carried into politics the same standard of consistency of action that had characterised his work at the Bar. He writes, in 1859, to a correspondent whom he was directing to further the organisation of the new party: "Do not, in order to secure recruits, lower the standard of the Republican party. The true problem for 1860, is to fight to prevent slavery from becoming national. We must, however, recognise its constitutional right to exist in the States in which its existence was recognised under the original Constitution." This position was unsatisfactory to the Whigs of the Border States who favoured a continuing division between Slave States and Free States of the territory yet to be organised into States. It was also unsatisfactory to the extreme anti-slavery Whigs of the new organisation who insisted upon throttling slavery where-ever it existed. It is probable that the raid made by John Brown, in 1859, into Virginia for the purpose of rousing the slaves to fight for their own liberty, had some immediate influence in checking the activity of the more extreme anti-slavery group and in strengthening the conservative side of the new organisation. Lincoln disapproved entirely of the purpose of Brown and his associates, while ready to give due respect to the idealistic courage of the man.

In February, 1860, Lincoln was invited by certain of the Republican leaders in New York to deliver one of a series of addresses which had been planned to make clear to the voters the purposes and the foundations of the new party. His name had become known to the Republicans of the East through

the debates with Douglas. It was recognised that Lincoln had taken the highest ground in regard to the principles of the new party, and that his counsels should prove of practical service in the shaping of the policy of the Presidential campaign. It was believed also that his influence would be of value in securing voters in the Middle West. The Committee of Invitation included, in addition to a group of the old Whigs (of whom my father was one), representative Free-soil Democrats like William C. Bryant and John King. Lincoln's methods as a political leader and orator were known to one or two men on the committee, but his name was still unfamiliar to an Eastern audience. It was understood that the new leader from the West was going to talk to New York about the fight against slavery. It is probable that at least the larger part of the audience expected something "wild and woolly." The West at that time seemed very far off from New York and was still but little understood by the Eastern communities. New Yorkers found it difficult to believe that a man who could influence Western audiences could have anything to say that would count with the cultivated citizens of the East. The more optimistic of the hearers were hoping, however, that perhaps a new Henry Clay had arisen and were looking for utterances of the ornate and grandiloquent kind such as they had heard frequently from Clay and from other statesmen of the South.

The first impression of the man from the West did nothing to contradict the expectation of something weird, rough, and uncultivated. The long, ungainly figure upon which hung clothes that, while new for this trip, were evidently the work of an unskilful tailor; the large feet, the clumsy hands of which, at the outset, at least, the orator seemed to be unduly conscious; the long, gaunt head capped by a shock of hair that seemed not to have been thoroughly brushed out, made a picture which did not fit in with New York's conception of a finished statesman. The first utterance of the voice was not pleasant to the ear, the tone being harsh and the key too high. As the speech progressed, however, the speaker seemed to get into control of himself; the voice gained a natural and impressive modulation, the gestures were dignified and appropriate, and the hearers came under the influence of the earnest look from the deeply-set eyes and of the absolute integrity of purpose and of devotion to principle which were behind the thought and the words of the speaker. In place of a "wild and woolly" talk, illumined by more or less incongruous anecdotes; in place of a high-strung exhortation of

general principles or of a fierce protest against Southern arrogance, the New Yorkers had presented to them a calm but forcible series of well-reasoned considerations upon which their action as citizens was to be based. It was evident that the man from the West understood thoroughly the constitutional history of the country; he had mastered the issues that had grown up about the slavery question; he knew thoroughly, and was prepared to respect, the rights of his political opponents; he knew with equal thoroughness the rights of the men whose views he was helping to shape and he insisted that there should be no wavering or weakening in regard to the enforcement of those rights; he made it clear that the continued existence of the nation depended upon having these issues equitably adjusted and he held that the equitable adjustment meant the restriction of slavery within its present boundaries. He maintained that such restrictions were just and necessary as well for the sake of fairness to the blacks as for the final welfare of the whites. He insisted that the voters in the present States in the Union had upon them the largest possible measure of responsibility in so controlling the great domain of the Republic that the States of the future, the States in which their children and their grandchildren were to grow up as citizens, must be preserved in full liberty, must be protected against any invasion of an institution which represented barbarity. He maintained that such a contention could interfere in no way with the due recognition of the legitimate property rights of the present owners of slaves. He pointed out to the New Englander of the anti-slavery group that the restriction of slavery meant its early extermination. He insisted that war for the purpose of exterminating slavery from existing slave territory could not be justified. He was prepared, for the purpose of defending against slavery the national territory that was still free, to take the risk of the war which the South threatened because he believed that only through such defence could the existence of the nation be maintained; and he believed, further, that the maintenance of the great Republic was essential, not only for the interests of its own citizens, but for the interests of free government throughout the world. He spoke with full sympathy of the difficulties and problems resting upon the South, and he insisted that the matters at issue could be adjusted only with a fair recognition of these difficulties. Aggression from either side of Mason and Dixon's Line must be withstood.

I was but a boy when I first looked upon the gaunt figure of the man who was to become the people's leader, and listened to his calm but forcible arguments in behalf of the principles of the Republican party. It is not likely that at the time I took in, with any adequate appreciation, the weight of the speaker's reasoning. I have read the address more than once since and it is, of course, impossible to separate my first impressions from my later direct knowledge. I do remember that I was at once impressed with the feeling that here was a political leader whose methods differed from those of any politician to whom I had listened. His contentions were based not upon invective or abuse of "the other fellow," but purely on considerations of justice, on that everlasting principle that what is just, and only what is just, represents the largest and highest interests of the nation as a whole. I doubt whether there occurred in the whole speech a single example of the stories which had been associated with Lincoln's name. The speaker was evidently himself impressed with the greatness of the opportunity and with the dignity and importance of his responsibility. The speech in fact gave the keynote to the coming campaign.

It is hardly necessary to add that it also decided the selection of the national leader not only for the political campaign, but through the coming struggle. If it had not been for the impression made upon New York and the East generally by Lincoln's speech and by the man himself, the vote of New York could not have been secured in the May convention for the nomination of the man from Illinois.

Robert Lincoln (writing to me in July, 1908) says:

"After my father's address in New York in February, 1860, he made a trip to New England in order to visit me at Exeter, N.H., where I was then a student in the Phillips Academy. It had not been his plan to do any speaking in New England, but, as a result of the address in New York, he received several requests from New England friends for speeches, and I find that before returning to the West, he spoke at the following places: Providence, R.I., Manchester, N.H., Exeter, N.H., Dover, N.H., Concord, N.H., Hartford, Conn., Meriden, Conn., New Haven, Conn., Woonsocket, R.I., Norwalk,

Conn., and Bridgeport, Conn. I am quite sure that coming and going he passed through Boston merely as an unknown traveller."

Mr. Lincoln writes to his wife from Exeter, N.H., March 4, 1860, as follows:

"I have been unable to escape this toil. If I had foreseen it, I think I would not have come East at all. The speech at New York, being within my calculation before I started, went off passably well and gave me no trouble whatever. The difficulty was to make nine others, before reading audiences who had already seen all my ideas in print."^[1]

An edition of Mr. Lincoln's address was brought into print in September, 1860, by the Young Men's Republican Union of New York, with notes by Charles C. Nott (later Colonel, and after the war Judge of the Court of Claims in Washington) and Cephas Brainerd. The publication of this pamphlet shows that as early as September, 1860, the historic importance and permanent value of this speech were fairly realised by the national leaders of the day. In the preface to the reprint, the editors say:

"The address is characterised by wisdom, truthfulness and learning ...From the first line to the last—from his premises to his conclusion, the speaker travels with a swift, unerring directness that no logician has ever excelled. His argument is complete and is presented without the affectation of learning, and without the stiffness which usually accompanies dates and details ...A single simple sentence contains a chapter of history that has taken days of labour to verify, and that must have cost the author months of investigation to acquire. The reader may take up this address as a political pamphlet, but he will leave it as an historical treatise—brief, complete, perfect, sound, impartial truth—which will serve the time and the occasion that called it forth,

and which will be esteemed hereafter no less for its unpretending modesty than for its intrinsic worth."^[2]

Horace White, who was himself present at the Chicago Convention, writes (in 1909) as follows:

"To anybody looking back at the Republican National Convention of 1860, it must be plain that there were only two men who had any chance of being nominated for President.

"These were Lincoln and Seward. I was present at the Convention as a spectator and I knew this fact at the time, but it seemed to me at the beginning that Seward's chances were the better. One third of the delegates of Illinois preferred Seward and expected to vote for him after a few complimentary ballots for Lincoln. If there had been no Lincoln in the field, Seward would certainly have been nominated and then the course of history would have been very different from what it was, for if Seward had been nominated and elected there would have been no forcible opposition to the withdrawal of such States as then desired to secede. And as a consequence the Republican party would have been rent in twain and disabled from making effectual resistance to other demands of the South.

"It was Seward's conviction that the policy of non-coercion would have quieted the secession movement in the Border States and that the Gulf States would, after a while, have returned to the Union like repentant prodigal sons. His proposal to Lincoln to seek a quarrel with four European nations, who had done us no harm, in order to arouse a feeling of Americanism in the Confederate States, was an outgrowth of this conviction. It was an indefensible proposition, akin to that which prompted Bismarck to make use of France as an anvil on which to hammer and weld Germany

together, but it was not an unpatriotic one, since it was bottomed on a desire to preserve the Union without civil war."

Never was a political leadership more fairly, more nobly, and more reasonably won. When the ballot boxes were opened on the first Tuesday in November, Lincoln was found to have secured the electoral vote of every Northern State except New Jersey, and in New Jersey four electors out of seven. Breckinridge, the leader of the extreme Southern Democrats, had back of him only the votes of the Southern States outside of the Border States, these latter being divided between Bell and Douglas. Douglas and his shallow theories of "squatter sovereignty" had been buried beneath the good sense of the voters of the North.

IV

LINCOLN AS PRESIDENT ORGANISES THE PEOPLE FOR THE MAINTENANCE OF NATIONAL EXISTENCE

After the election of November, 1860, events moved swiftly. On the 20th of December, comes the first act of the Civil War, the secession of South Carolina. The secession of Georgia had for a time been delayed by the influence of Alexander H. Stephens who, on the 14th of November, had made a great argument for the maintenance of the Union. His chief local opponent at the time was Robert Toombs, the Southern leader who proposed in the near future to "call the roll-call of his slaves on Bunker Hill." Lincoln was still hopeful of saving to the cause of the Union the Border States and the more conservative divisions of States, like North Carolina, which had supported the Whig party.

In December, we find correspondence between Lincoln and Gilmer of North Carolina, whom he had known in Washington. "The essential difference," says Lincoln, "between your group and mine is that you hold slavery to be in itself desirable and as something to be extended. I hold it to be an essential evil which, with due regard to existing rights, must be restricted and in the near future exterminated."

On the 23d of February, 1861, Lincoln reaches Washington where he is to spend a weary and anxious two weeks of waiting for the burden of his new responsibilities. He is at this time fifty-two years of age. In one of his brief addresses on the way to Washington he says:

"It is but little to a man of my age, but a great deal to thirty millions of the citizens of the United States, and to posterity in all coming time, if the Union of the States and the liberties of the people are to be lost. If the majority is not to rule, who would be the judge of the issue or where is such judge to be found?"

It is difficult to imagine a more exasperating condition of affairs than obtained in Washington while Lincoln was awaiting the day of inauguration. The government appeared to be crumbling away under the nerveless direction, or lack of direction, of President Buchanan and his associates. In his last message to Congress, Buchanan had taken the ground that the Constitution made no provision for the secession of States or for the breaking up of the Union; but that it also failed to contain any provision for measures that could prevent such secession and the consequent destruction of the nation. The old gentleman appeared to be entirely unnerved by the pressure of events. He could not see any duty before him. He certainly failed to realise that the more immediate cause of the storm was the breaking down, through the repeal of the Missouri Compromise, of the barriers that had in 1820, and in 1850, been placed against the extension of slavery. He evidently failed to understand that it was his own action in backing up the infamous Lecompton Constitution, and the invasion of Kansas by the slave-owners, which had finally aroused the spirit of the North, and further that it was the influence of his administration which had given to the South the belief that it was now in a position to control for slavery the whole territory of the Republic.

It has before now been pointed out that, under certain contingencies, the long interval between the national election and the inaugural of the new President from the first Tuesday in November until the fourth day of March must, in not a few instances, bring inconvenience, disadvantage, and difficulty not only to the new administration but to the nation. These months in which the members of an administration which had practically committed itself to the cause of disintegration, were left in charge of the resources of the nation gave a most serious example and evidence of such disadvantage. This historic instance ought to have been utilised immediately after the War as an influence for bringing about a change in the date for bringing into power the administration that has been chosen in November.

By the time when Lincoln and the members of his Cabinet had placed in their hands the responsibilities of administration, the resources at the disposal of the government had, as far as practicable, been scattered or rendered unavailable. The Secretary of the Navy, a Southerner, had taken pains to send to the farthest waters of the Pacific as many as possible of the vessels of the American fleet; the Secretary of War, also a Southerner, had

for months been busy in transferring to the arsenals of the South the guns and ammunition that had been stored in the Federal arsenals of the North; the Secretary of the Treasury had had no difficulty in disposing of government funds in one direction or another so that there was practically no balance to hand over to his successor available for the most immediate necessities of the new administration.

One of the sayings quoted from Washington during these weeks was the answer given by Count Gurowski to the inquiry, "Is there anything in addition this morning?" "No," said Gurowski, "it is all in subtraction."

By the day of the inaugural, the secession of seven States was an accomplished fact and the government of the Confederacy had already been organised in Montgomery. Alexander H. Stephens had so far modified his original position that he had accepted the post of Vice-President and in his own inaugural address had used the phrase, "Slavery is the corner-stone of our new nation," a phrase that was to make much mischief in Europe for the hopes of the new Confederacy.

In the first inaugural, one of the great addresses in a noteworthy series, Lincoln presented to the attention of the leaders of the South certain very trenchant arguments against the wisdom of their course. He says of secession for the purpose of preserving the institution of slavery:

"You complain that under the government of the United States your slaves have from time to time escaped across your borders and have not been returned to you. Their value as property has been lessened by the fact that adjoining your Slave States were certain States inhabited by people who did not believe in your institution. How is this condition going to be changed by war even under the assumption that the war may be successful in securing your independence? Your slave territory will still adjoin territory inhabited by free men who are inimical to your institution; but these men will no longer be bound by any of the restrictions which have obtained under the Constitution. They will not have to give consideration to the rights of slave-owners

who are fellow-citizens. Your slaves will escape as before and you will have no measure of redress. Your indignation may produce further wars, but the wars can but have the same result until finally, after indefinite loss of life and of resources, the institution will have been hammered out of existence by the inevitable conditions of existing civilisation."

Lincoln points out further in this same address the difference between his responsibilities and those of the Southern leaders who are organising for war. "You," he says, "have no oath registered in Heaven to destroy this government, while I have the most solemn oath to preserve, direct, and defend it."

"It was not necessary," says Lincoln, "for the Constitution to contain any provision expressly forbidding the disintegration of the state; perpetuity and the right to maintain self-existence will be considered as a fundamental law of all national government. If the theory be accepted that the United States was an association or federation of communities, the creation or continued existence of such federation must rest upon contract; and before such contract can be rescinded, the consent is required of both or of all of the parties assenting to it."

He closes with the famous invocation to the fellow Americans of the South against whom throughout the whole message there had not been one word of bitterness or rancour: "We are not enemies but friends. We must not be enemies. Though passion may have strained our relations, it must not break our bonds of affection."

It was, however, too late for argument, and too late for invocations of friendship. The issue had been forced by the South and the war for which the leaders of the South had for months, if not for years, been making preparation was now to be begun by Southern action. It remained to make clear to the North, where the people up to the last moment had been unwilling to believe in the possibility of civil war, that the nation could be

preserved only by fighting for its existence. It remained to organise the men of the North into armies which should be competent to carry out this tremendous task of maintaining the nation's existence.

It was just after the great inaugural and when his head must have been full of cares and his hands of work, that Lincoln took time to write a touching little note that I find in his correspondence. It was addressed to a boy who had evidently spoken with natural pride of having met the President and whose word had been questioned:

"The White House, March 18, 1861.

"I did see and talk in May last at Springfield, Illinois,
with Master George Edward Patten."

With the beginning of the work of the administration, came trouble with the members of the Cabinet. The several secretaries were, in form at least, the choice of the President, but as must always be the case in the shaping of a Cabinet, and as was particularly necessary at a time when it was of first importance to bring into harmonious relations all of the political groups of the North which were prepared to be loyal to the government, the men who took office in the first Cabinet of Lincoln represented not any personal preference of the President, but political or national requirements. The Secretary of State, Mr. Seward, had, as we know, been Lincoln's leading opponent for the Presidential nomination and had expressed with some freedom of criticism his disappointment that he, the natural leader of the party, should be put to one side for an uncultivated, inexperienced Westerner. Mr. Seward possessed both experience and culture; more than this, he was a scholar, and came of a long line of gentlefolk. He had public spirit, courage, legitimate political ambition, and some of the qualities of leadership. His nature was, however, not quite large enough to stand the pressure of political disappointment nor quite elastic enough to develop rapidly under the tremendous urgency of absolutely new requirements. It is in evidence that more than once in the management of the complex and serious difficulties of the State Department during the years of war, Seward lost his head. It is also on record that the wise-minded and fair-minded President was able to supply certain serious gaps and deficiencies in the direction of the work of the Department, and further that his service was so

rendered as to save the dignity and the repute of the Secretary. Seward's subjectivity, not to say vanity, was great, and it took some little time before he was able to realise that his was not the first mind or the strongest will-power in the new administration. On the first of April, 1861, less than thirty days after the organisation of the Cabinet, Seward writes to Lincoln complaining that the "government had as yet no policy; that its action seemed to be simply drifting"; that there was a lack of any clear-minded control in the direction of affairs within the Cabinet, in the presentation to the people of the purposes of the government, and in the shaping of the all-important relations with foreign states. "Who," said Seward, "is to control the national policy?" The letter goes on to suggest that Mr. Seward is willing to take the responsibility, leaving, if needs be, the credit to the nominal chief. The letter was a curious example of the weakness and of the bumptiousness of the man, while it gave evidence also, it is fair to say, of a real public-spirited desire that things should go right and that the nation should be saved. It was evident that he had as yet no adequate faith in the capacity of the President.

Lincoln's answer was characteristic of the man. There was no irritation with the bumptiousness, no annoyance at the lack of confidence on the part of his associate. He states simply: "There must, of course, be control and the responsibility for this control must rest with me." He points out further that the general policy of the administration had been outlined in the inaugural, that no action since taken had been inconsistent with this. The necessary preparations for the defence of the government were in train and, as the President trusted, were being energetically pushed forward by the several department heads. "I have a right," said Lincoln, "to expect loyal co-operation from my associates in the Cabinet. I need their counsel and the nation needs the best service that can be secured from our united wisdom." The letter of Seward was put away and appears never to have been referred to between the two men. It saw the light only after the President's death. If he had lived it might possibly have been suppressed altogether. A month later, Seward said to a friend, "There is in the Cabinet but one vote and that is cast by the President."

The post next in importance under the existing war conditions was that of Secretary of War. The first man to hold this post was Simon Cameron of Pennsylvania. Cameron was very far from being a friend of Lincoln's. The

two men had had no personal relations and what Lincoln knew of him he liked not at all. The appointment had been made under the pressure of the Republicans of Pennsylvania, a State whose support was, of course, all important for the administration. It was not the first nor the last time that the Republicans of this great State, whose Republicanism seems to be much safer than its judgment, have committed themselves to unworthy and undesirable representatives, men who were not fitted to stand for Pennsylvania and who were neither willing nor able to be of any service to the country. The appointment of Cameron had, as appears from the later history, been promised to Pennsylvania by Judge Davis in return for the support of the Pennsylvania delegation for the nomination of Lincoln. Lincoln knew nothing of the promise and was able to say with truth, and to prove, that he had authorised no promises and no engagements whatsoever. He had, in fact, absolutely prohibited Davis and the one or two other men who were supposed to have some right to speak for him in the convention, from the acceptance of any engagements or obligations whatsoever. Davis made the promise to Pennsylvania on his own responsibility and at his own risk; Lincoln felt under too much obligation to Davis for personal service and for friendly loyalty to be willing, when the claim was finally pressed, to put it to one side as unwarranted. The appointment of Cameron was made and proved to be expensive for the efficiency of the War Department and for the repute of the administration. It became necessary within a comparatively short period to secure his resignation. It was in evidence that he was trafficking in appointments and in contracts. He was replaced by Edwin M. Stanton, who was known later as "the Carnot of the War." Stanton's career as a lawyer had given him no direct experience of army affairs. He showed, however, exceptional ability, great will power, and an enormous capacity for work. He was ambitious, self-willed, and most arbitrary in deed and in speech. The difficulty with Stanton was that he was as likely to insult and to browbeat some loyal supporter of the government as to bring to book, and, when necessary, to crush, greedy speculators and disloyal tricksters. His judgment in regard to men was in fact very often at fault. He came into early and unnecessary conflict with his chief and he found there a will stronger than his own. The respect of the two men for each other grew into a cordial regard. Each recognised the loyalty of purpose and the patriotism by which the actions of both were influenced. Lincoln was able to some extent to soften and to modify the needless

truculency of the great War Secretary, and notwithstanding a good deal of troublesome friction, armies were organised and the troops were sent to the front.

The management of the Treasury, a responsibility hardly less in importance under the war conditions than that of the organisation of the armies, was placed in the hands of Senator Chase. He received from his precursor an empty treasury while from the administration came demands for immediate and rapidly increasing weekly supplies of funds. The task came upon him first of establishing a national credit and secondly of utilising this credit for loans such as the civilised world had not before known. The expenditures extended by leaps and bounds until by the middle of 1864 they had reached the sum of \$2,000,000 a day. Blunders were made in large matters and in small, but, under the circumstances, blunders were not to be avoided and the chief purpose was carried out. A sufficient credit was established, first with the citizens at home and later with investors abroad, to make a market for the millions of bonds in the two great issues, the so-called seven-thirties and five-twenties. The sales of these bonds, together with a wide-reaching and, in fact, unduly complex system of taxation, secured the funds necessary for the support of the army and the navy. At the close of the War, the government, after meeting this expenditure, had a national war debt of something over four thousand millions of dollars. The gross indebtedness resulting from the War was of course, however, much larger because each State had incurred war expenditures and counties as well as States had issued bonds for the payment of bounties, etc. The criticism was made at the time by the opponents of the financial system which was shaped by the Committee of Ways and Means in co-operation with the Secretary, a criticism that has often been repeated since, that the War expenditure would have been much less if the amounts needed beyond what could be secured by present taxation had been supplied entirely by the proceeds of bonds. In addition, however, to the issues of bonds, the government issued currency to a large amount, which was made legal tender and which on the face of it was not made subject to redemption.

In addition to the bills ranging in denomination from one dollar to one thousand, the government brought into distribution what was called "postal currency." I landed in New York in August, 1862, having returned from a University in Germany for the purpose of enlisting in the army. I was

amused to see my father make payment in the restaurant for my first lunch in postage stamps. He picked the requisite number, or the number that he believed would be requisite, from a ball of stamps which had, under the influence of the summer heat, stuck together so closely as to be very difficult to handle. Many of the stamps were in fact practically destroyed and were unavailable. Some question arose between the restaurant keeper and my father as to the availability of one or two of the stamps that had been handed over. My father explained to me that immediately after the outbreak of the War, specie, including even the nickels and copper pennies, had disappeared from circulation, and the people had been utilising for the small change necessary for current operations the postage stamps, a use which, in connection with the large percentage of destruction, was profitable to the government, but extravagant for the community. A little later, the postal department was considerate enough to bring into print a series of postage stamps without any gum on the back. These could, of course, be handled more easily, but were still seriously perishable. Towards the close of the year, the Treasury department printed from artistically engraved plates a baby currency in notes of about two and a half inches long by one and a half inches wide. The denominations comprised ten cents, fifteen cents, twenty-five cents, fifty cents, and seventy-five cents. The fifteen cents and the seventy-five cents were not much called for, and were probably not printed more than once. They would now be scarce as curiosities. The postal currency was well printed on substantial paper, but in connection with the large requirement for handling that is always placed upon small currency, these little paper notes became very dirty and were easily used up. The government must have made a large profit from the percentage that was destroyed. The necessary effect of this distribution of government "I.O.U.'s," based not upon any redemption fund of gold but merely upon the general credit of the government, was to appreciate the value of gold. In June, 1863, just before the battle of Gettysburg, the depreciation of this paper currency, which represented of course the appreciation of gold, was in the ratio of 100 to 290. It happened that the number 290, which marked the highest price reached by gold during the War, was the number that had been given in Laird's ship-yard (on the Mersey) to the Confederate cruiser *Alabama*.

Chase was not only a hard-working Secretary of the Treasury but an ambitious, active-minded, and intriguing politician. He represented in the administration the more extreme anti-slavery group. He was one of those who favoured from the beginning immediate action on the part of the government in regard to the slaves in the territory that was still controlled by the government. It is doubtless the case that he held these anti-slavery views as a matter of honest conviction. It is in evidence also from his correspondence that he connected with these views the hope and the expectation of becoming President. His scheming for the nomination for 1864 was carried on with the machinery that he had at his disposal as Secretary of the Treasury. The issues between Chase and Seward and between Chase and Stanton were many and bitter. The pressure on the part of the conservative Republicans to get Chase out of the Cabinet was considerable. Lincoln, believing that his service was valuable, refused to be influenced by any feeling of personal antagonism or personal rivalry. He held on to the Secretary until the last year of the War, when deciding that the Cabinet could then work more smoothly without him, he accepted his resignation. Even then, however, although he had had placed in his hands a note indicating a measure of what might be called personal disloyalty on the part of Chase, Lincoln was unwilling to lose his service for the country and appointed him as Chief Justice.

Montgomery Blair was put into the Cabinet as Postmaster-General more particularly as the representative of the loyalists of the Border States. His father was a leader in politics in Missouri, in which the family had long been of importance. His brother, Frank P. Blair, served with credit in the army, reaching the rank of Major-General. The Blair family was quite ready to fight for the Union, but was very unwilling to do any fighting for the black man. They wanted the Union restored as it had been, Missouri Compromise and all. It was Blair who had occasion from time to time to point out, and with perfect truth, that if, through the influence of Chase and of the men back of Chase in Massachusetts and northern Ohio, immediate action should be taken to abolish slavery in the Border States, fifty thousand men who had marched out of those States to the support of the Union might be and probably would be recalled. "By a stroke of the pen," said Blair, "Missouri, eastern Tennessee, western Maryland, loyal Kentucky, now loyally supporting the cause of the nation, will be thrown into the arms of

the Confederacy." During the first two years of the War, and in fact up to September, 1863, the views of Blair and his associates prevailed, and with the fuller history before us, we may conclude that it was best that they should have prevailed. This was, at least, the conclusion of Lincoln, the one man who knew no sectional prejudices, who had before him all the information and all the arguments, and who had upon him the pressure from all quarters. It was not easy under the circumstances to keep peace between Blair and Chase. Probably no man but Lincoln could have met the requirement.

The Secretary of the Navy, Gideon Welles, of Connecticut, while not a man of brilliancy or of great initiative, appears to have done his part quietly and effectively in the great work of the building and organising of a new fleet. He contributed nothing to the friction of the Cabinet and he was from the beginning a loyal supporter of the President. What we know now about the issues that arose between the different members of the Cabinet family comes to us chiefly through the Diary of Welles, who has described with apparent impartiality the idiosyncrasies of each of the secretaries and whose references to the tact, patience, and gracefully exercised will-power of the President are fully in line with the best estimates of Lincoln's character.

One of the first and most difficult tasks confronting the President and his secretaries in the organisation of the army and of the navy was in the matter of the higher appointments. The army had always been a favourite provision for the men from the South. The representatives of Southern families were, as a rule, averse to trade and there were, in fact, under the more restricted conditions of business in the Southern States, comparatively few openings for trading on the larger or mercantile scale. As a result of this preference, the cadetships in West Point and the commissions in the army had been held in much larger proportion (according to the population) by men of Southern birth. This was less the case in the navy because the marine interests of New England and of the Middle States had educated a larger number of Northern men for naval interests. When the war began, a very considerable number of the best trained and most valuable officers in the army resigned to take part with their States. The army lost the service of men like Lee, Johnston, Beauregard, and many others. A few good Southerners, such as Thomas of Virginia and Anderson of Kentucky, took the ground that their duty to the Union and to the flag was greater than their obligation to their

State. In the navy, Maury, Semmes, Buchanan, and other men of ability resigned their commissions and devoted themselves to the (by no means easy) task of building up a navy for the South; but Farragut of Tennessee remained with the navy to carry the flag of his country to New Orleans and to Mobile.

It was easy and natural during the heat of 1861 to characterise as traitors the men who went with their States to fight against the flag of their country. Looking at the matter now, forty-seven years later, we are better able to estimate the character and the integrity of the motives by which they were actuated. We do not need to-day to use the term traitors for men like Lee and Johnston. It was not at all unnatural that with their understanding of the government of the States in which they had been born, and with their belief that these States had a right to take action for themselves, they should have decided that their obligation lay to the State rather than to what they had persisted in thinking of not as a nation but as a mere confederation. We may rather believe that Lee was as honest in his way as Thomas and Farragut in theirs, but the view that the United States is a nation has been maintained through the loyal services of the men who held with Thomas and with Farragut.

V

THE BEGINNING OF THE CIVIL WAR

On April 12, 1861, came with the bombardment of Fort Sumter the actual beginning of the War. The foreseeing shrewdness of Lincoln had resisted all suggestions for any such immediate action on the part of the government as would place upon the North the responsibility for the opening of hostilities. Shortly after the fall of Sumter, a despatch was drafted by Seward for the guidance of American ministers abroad. The first reports in regard to the probable action of European governments gave the impression that the sympathy of these governments was largely with the South. In France and England, expressions had been used by leading officials which appeared to foreshadow an early recognition of the Confederacy. Seward's despatch as first drafted was unwisely angry and truculent in tone. If brought into publication, it would probably have increased the antagonism of the men who were ruling England. It appeared in fact to foreshadow war with England. Seward had assumed that England was going to take active part with the South and was at once throwing down the gauntlet of defiance. It was Lincoln who insisted that this was no time, whatever might be the provocation, for the United States to be shaking its fist at Europe. The despatch was reworded and the harsh and angry expressions were eliminated. The right claimed by the United States, in common with all nations, to maintain its own existence was set forth with full force, while it was also made clear that the nation was strong enough to maintain its rights against all foes whether within or without its boundaries. It is rather strange to recall that throughout the relations of the two men, it was the trained and scholarly statesman of the East who had to be repressed for unwise truculency and that the repression was done under the direction of the comparatively inexperienced representative of the West, the man who had been dreaded by the conservative Republicans of New York as likely to introduce into the national policy "wild and woolly" notions.

In Lincoln's first message to Congress, he asks the following question: "Must a government be of necessity too strong for the liberties of its own

people or too weak to maintain its own existence? Is there in all republics this inherent weakness?" The people of the United States were able under the wise leadership of Lincoln to answer this question "no." Lincoln begins at once with the public utterances of the first year of the War to take the people of the United States into his confidence. He is their representative, their servant. He reasons out before the people, as if it constituted a great jury, the analysis of their position, of their responsibilities, and the grounds on which as their representative this or that decision is arrived at. Says Schurz: "Lincoln wielded the powers of government when stern resolution and relentless force were the order of the day, and, won and ruled the popular mind and heart by the tender sympathies of his nature."

The attack on Sumter placed upon the administration the duty of organising at once for the contest now inevitable the forces of the country. This work of organisation came at best but late because those who were fighting to break up the nation had their preparations well advanced. The first call for troops directed the governors of the loyal States to supply seventy-five thousand men for the restoration of the authority of the government. Massachusetts was the first State to respond by despatching to the front, within twenty-four hours of the publication of the call, its Sixth Regiment of Militia; the Seventh of New York started twenty-four hours later. The history of the passage of the Sixth through Baltimore, of the attack upon the columns, and of the deaths, in the resulting affray, of soldiers and of citizens has often been told. When word came to Washington that Baltimore was obstructing the passage of troops bound southward, troops called for the defence of the capital, the isolation of the government became sadly apparent. For a weary and anxious ten days, Lincoln and his associates were dreading from morning to morning the approach over the long bridge of the troops from Virginia whose camp-fires could be seen from the southern windows of the White House, and were looking anxiously northward for the arrival of the men on whose prompt service the safety of the capital was to depend. I have myself stood in Lincoln's old study, the windows of which overlook the Potomac, and have recalled to mind the fearful pressure of anxiety that must have weighed upon the President during those long days; as looking across the river, he could trace by the smoke the picket lines of the Virginia troops. He must have thought of the possibility that he was to be the last President of the United States, that the torch handed over to him

by the faltering hands of his predecessor was to expire while he was responsible for the flame. The immediate tension was finally broken by the appearance of the weary and battered companies of the Massachusetts troops and the arrival two days later, by the way of Annapolis, of the New York Seventh with an additional battalion from Boston.

It was, however, not only in April, 1861, that the capital was in peril. The anxiety of the President (never for himself but only for his responsibilities) was to be repeated in July, 1863, when Lee was in Maryland, and in July, 1864, at the time of Early's raid.

We may remember the peculiar burdens that come upon the commander-in-chief through his position at the rear of the armies he is directing. The rear of a battle is, even in the time of victory, a place of demoralising influence. It takes a man of strong nerve not to lose heart when the only people with whom he is in immediate contact are those who through disability or discouragement are making their way to the rear. The sutlers, the teamsters, the wounded men, the panic-struck (and with the best of soldiers certain groups do lose heart from time to time, men who in another action when started right are ready to take their full share of the fighting)—these are the groups that in any action are streaming to the rear. It is impossible not to be affected by the undermining of their spirits and of their hopefulness. If the battle is going wrongly, if in addition to those who are properly making their way to the rear, there come also bodies of troops pushed out of their position who have lost heart and who have lost faith in their commanders, the pressure towards demoralisation is almost irresistible.

We may recall that during the entire four years of War, Lincoln, the commander-in-chief, was always in the rear. Difficult as was the task of the men who led columns into action, of the generals in the field who had the immediate responsibility for the direction of those columns and of the fighting line, it was in no way to be compared with the pressure and sadness of the burden of the man who stood back of all the lines, and to whom came all the discouragements, the complaints, the growls, the criticisms, the requisitions or demands for resources that were not available, the reports of disasters, sometimes exaggerated and sometimes unduly smoothed over, the futile suggestions, the conflicting counsels, the indignant protests, the absurd schemes, the self-seeking applications, that poured into the White

House from all points of the field of action and from all parts of the Border States and of the North. The man who during four years could stand that kind of battering and pressure and who, instead of having his hopefulness crushed out of him, instead of losing heart or power of direction or the full control of his responsibilities, steadily developed in patience, in strength, in width of nature, and in the wisdom of experience, so that he was able not only to keep heart firm and mind clear but to give to the soldiers in the front and to the nation behind the soldiers the influence of his great heart and clear mind and of his firm purpose, that man had within him the nature of the hero. Selected in time of need to bear the burdens of the nation, he was able so to fulfil his responsibilities that he takes place in the world's history as a leader of men.

In July, 1861, one of the special problems to be adjusted was the attitude of the Border States. Missouri, Kentucky, Tennessee, and West Virginia had not been willing at the outset to cast in their lot with the South, but they were not prepared to give any assured or active support to the authority of the national government. The Governor and the Legislature of Kentucky issued a proclamation of neutrality; they demanded that the soil of the State should be respected and that it should not be traversed by armed forces from either side. The Governor of Missouri, while not able to commit the State to secession, did have behind him what was possibly a majority of the citizens in the policy of attempting to prevent the Federal troops from entering the State. Maryland, or at least eastern Maryland, was sullen and antagonistic. Thousands of the Marylanders had in fact already made their way into Virginia for service with the Confederacy. On the other hand, there were also thousands of loyal citizens in these States who were prepared, under proper guidance and conservative management, to give their own direct aid to the cause of nationality. In the course of the succeeding two years, the Border States sent into the field in the Union ranks some fifty thousand men. At certain points of the conflict, the presence of these Union men of Kentucky, Tennessee, Maryland, and Missouri was the deciding factor. While these men were willing to fight for the Union, they were strongly opposed to being used for the destruction of slavery and for the freeing of the blacks. The acceptance, therefore, of the policy that was pressed by the extreme anti-slavery group, for immediate action in regard to the freeing of the slaves, would have meant at once the dissatisfaction of

this great body of loyalists important in number and particularly important on account of their geographical position. Lincoln was able, although with no little difficulty, to hold back the pressure of Northern sentiment in regard to anti-slavery action until the course of the War had finally committed the loyalists of the Border States to the support of the Union. For the support of this policy, it became necessary to restrain certain of the leaders in the field who were mixing up civil and constitutional matters with their military responsibilities. Proclamations issued by Fremont in Missouri and later by Hunter in South Carolina, giving freedom to the slaves within the territory of their departments, were promptly and properly disavowed. Said Lincoln: "A general cannot be permitted to make laws for the district in which he happens to have an army."

The difficulties in regard to the matter of slavery during the war brought Lincoln into active correspondence with men like Beecher and Greeley, anti-slavery leaders who enjoyed a large share of popular confidence and support. In November, 1861, Lincoln says of Greeley: "His backing is as good as that of an army of one hundred thousand men." There could be no question of the earnest loyalty of Horace Greeley. Under his management, the New York *Tribune* had become a great force in the community. The paper represented perhaps more nearly than any paper in the country the purpose and the policy of the new Republican party. Unfortunately, Mr. Greeley's judgment and width of view did not develop with his years and with the increasing influence of his journal. He became unduly self-sufficient; he undertook not only to lay down a policy for the guidance of the constitutional responsibilities of the government, but to dictate methods for the campaigns. The *Tribune* articles headed "On to Richmond!" while causing irritation to commanders in the field and confusion in the minds of quiet citizens at home, were finally classed with the things to be laughed at. In the later years of the War, the influence of the *Tribune* declined very considerably. Henry J. Raymond with his newly founded *Times* succeeded to some of the power as a journalist that had been wielded by Greeley.

In November, 1861, occurred an incident which for a time threatened a very grave international complication, a complication that would, if unwisely handled, have determined the fate of the Republic. Early in the year, the Confederate government had sent certain representatives across the Atlantic to do what might be practicable to enlist the sympathies of European

governments, or of individuals in these governments, to make a market for the Confederate cotton bonds, to arrange for the purchase of supplies for the army and navy, and to secure the circulation of documents presenting the case of the South. Mr. Yancey of Mississippi was the best-known of this first group of emissaries. With him was associated Judge Mann of Virginia and it was Mann who in November, 1861, was in charge of the London office of the Confederacy. In this month, Mr. Davis appointed as successor to Mann, Mr. Mason of Virginia, to whom was given a more formal authorisation of action. At the same time, Judge Slidell of Louisiana was appointed as the representative to France. Mason and Slidell made their way to Jamaica and sailed from Jamaica to Liverpool in the British mail steamer *Trent*. Captain Charles Wilkes, in the United States frigate *San Jacinto*, had been watching the West Indies waters with reference to blockade runners and to Wilkes came knowledge of the voyage of the two emissaries. Wilkes took the responsibility of stopping the *Trent* when she was a hundred miles or more out of Kingston and of taking from her as prisoners the two commissioners. The commissioners were brought to Boston and were there kept under arrest awaiting the decision from Washington as to their status. This stopping on the high seas of a British steamer brought out a great flood of indignation in Great Britain. It gave to Palmerston and Russell, who were at that time in charge of the government, the opportunity for which they had been looking to place on the side of the Confederacy the weight of the influence of Great Britain. It strengthened the hopes of Louis Napoleon for carrying out, in conjunction with Great Britain, a scheme that he had formulated under which France was to secure a western empire in Mexico, leaving England to do what she might find convenient in the adjustment of the affairs of the so-called United States.

The first report secured from the law officers of the Crown took the ground that the capture was legal under international law and under the practice of Great Britain itself. This report was, however, pushed to one side, and Palmerston drafted a demand for the immediate surrender of the commissioners. This demand was so worded that a self-respecting government would have had great difficulty in assenting to it without risk of forfeiting support with its own citizens. It was in fact intended to bring about a state of war. Under the wise influence of Prince Albert, Queen Victoria refused to give her approval to the document. It was reworded by

Albert in such fashion as to give to the government of the United States an opportunity for adjustment without loss of dignity. Albert was clear in his mind that Great Britain ought not to be committed to war for the destruction of the great Republic of the West and for the establishment of a state of which the corner-stone was slavery. Fortunately, Victoria was quite prepared to accept in this matter Albert's judgment. Palmerston protested and threatened resignation, but finally submitted.

When the news of the capture of the commissioners came to Washington, Seward for once was in favour of a conservative rather than a truculent course of action. He advised that the commissioners should be surrendered at once rather than to leave to Great Britain the opportunity for making a dictatorial demand. Lincoln admitted the risk of such demand and the disadvantage of making the surrender under pressure, but he took the ground that if the United States waited for the British contention, a certain diplomatic advantage could be gained. When the demand came, Lincoln was able, with a rewording (not for the first time) of Seward's despatch, to take the ground that the government of the United States was "well pleased that Her Majesty's government should have finally accepted the old-time American contention that vessels of peace should not be searched on the high seas by vessels of war." It may be recalled that the exercise of the right of search had been one of the most important of the grievances which had brought about the War of 1812-1814. In the discussion of the Treaty of Ghent in 1814, the English and American commissioners, while agreeing that this right of search must be given up, had not been able to arrive at a form of words, satisfactory to both parties, for its revocation. Both sets of commissioners were very eager to bring their proceedings to a close. The Americans could of course not realise that if they had waited a few weeks the news of the battle of New Orleans, fought in January, 1815, would have greatly strengthened their position. It was finally agreed "as between gentlemen" that the right of search should be no longer exercised by Great Britain. This right was, however, not formally abrogated until December, 1861, nearly half a century later. This little diplomatic triumph smoothed over for the public of the North the annoyance of having to accept the British demand. It helped to strengthen the administration, which in this first year of the War was by no means sure of its foundations. It

strengthened also the opinion of citizens generally in their estimate of the wise management and tactfulness of the President.

Some of the most serious of the perplexities that came upon Lincoln during the first two years of the War were the result of the peculiar combination of abilities and disabilities that characterised General McClellan. McClellan's work prior to the War had been that of an engineer. He had taken high rank at West Point and later, resigning from the army, had rendered distinguished service in civil engineering. At the time of the Lincoln-Douglas debates, McClellan was president of the Illinois Central Railroad. He was a close friend and backer of Douglas and he had done what was practicable with the all-important machinery of the railroad company to render comfortable the travelling of his candidate and to insure his success. Returning to the army with the opening of the War, he had won success in a brief campaign in Virginia in which he was opposed by a comparatively inexperienced officer and by a smaller force than his own. Placed in command of the army of the Potomac shortly after the Bull Run campaign, he had shown exceptional ability in bringing the troops into a state of organisation. He was probably the best man in the United States to fit an army for action. There were few engineer officers in the army who could have rendered better service in the shaping of fortifications or in the construction of an entrenched position. He showed later that he was not a bad leader for a defeated army in the supervision of the retreat. He had, however, no real capacity for leadership in an aggressive campaign. His disposition led him to be full of apprehension of what the other fellow was doing. He suffered literally from nightmares in which he exaggerated enormously the perils in his paths, making obstacles where none existed, multiplying by two or by three the troops against him, insisting upon the necessity of providing not only for probable contingencies but for very impossible contingencies. He was never ready for an advance and he always felt proudly triumphant, after having come into touch with the enemy, that he had accomplished the task of saving his army.

The only thing about which he was neither apprehensive nor doubtful was his ability as a leader, whether military or political. While he found it difficult to impress his will upon an opponent in the field, he was very sturdy with his pen in laying down the law to the Commander-in-chief (the President) and in emphasising the importance of his own views not only in

things military but in regard to the whole policy of the government. The peculiarity about the nightmares and miscalculations of McClellan was that they persisted long after the data for their correction were available. In a book brought into print years after the War, when the Confederate rosters were easily accessible in Washington, McClellan did not hesitate to make the same statements in regard to the numbers of the Confederate forces opposed to him that he had brought into the long series of complaining letters to Lincoln in which he demanded reinforcements that did not exist.

The records now show that at the time of the slow advance of McClellan's army by the Williamsburg Peninsula, General Magruder had been able, with a few thousand men and with dummy guns made of logs, to give the impression that a substantial army was blocking the way to Richmond. McClellan's advance was, therefore, made with the utmost "conservatism," enabling General Johnston to collect back of Magruder the army that was finally to drive McClellan back to his base. It is further in evidence from the later records that when some weeks later General Johnston concentrated his army at Gaines's Mill upon Porter, who was separated from McClellan by the Chickahominy, there was but an inconsiderable force between McClellan and Richmond.

At the close of the seven days' retreat, McClellan, who had with a magnificent army thrown away a series of positions, writes to Lincoln that he (Lincoln) "had sacrificed the army." In another letter, McClellan lays down the laws of a national policy with a completeness and a dictatorial utterance such as would hardly have been justified if he had succeeded through his own military genius in bringing the War to a close, but which, coming from a defeated general, was ridiculous enough. Lincoln's correspondence with McClellan brings out the infinite patience of the President, and his desire to make sure that before putting the General to one side as a vainglorious incompetent, he had been allowed the fullest possible test. Lincoln passes over without reference and apparently without thought the long series of impertinent impersonalities of McClellan. In this correspondence, as in all his correspondence, the great captain showed himself absolutely devoted to the cause he had in mind. Early in the year, months before the Peninsular campaign, when McClellan had had the army in camp for a series of months without expressing the least intention of action, Lincoln had in talking with the Secretary of War used the

expression: "If General McClellan does not want to use the army just now, I would like to borrow it for a while." That was as far as the Commander-in-chief ever went in criticism of the General in the field. While operations in Virginia, conducted by a vacillating and vainglorious engineer officer, gave little encouragement, something was being done to advance the cause of the Union in the West. In 1862, a young man named Grant, who had returned to the army and who had been trusted with the command of a few brigades, captured Fort Donelson and thus opened the Tennessee River to the advance of the army southward. The capture of Fort Donelson was rendered possible by the use of mortars and was the first occasion in the war in which mortars had been brought to bear. I chanced to come into touch with the record of the preparation of the mortars that were supplied to Grant's army at Cairo. Sometime in the nineties I was sojourning with the late Abram S. Hewitt at his home in Ringwood, New Jersey. I noticed, in looking out from the piazza, a mortar, properly mounted on a mortar-bed and encompassed by some yards of a great chain, placed on the slope overlooking the little valley below, as if to protect the house. I asked my host what was the history of this piece of ordnance. "Well," he said, "the chain you might have some personal interest in. It is a part of the chain your great-uncle Israel placed across the river at West Point for the purpose of blocking or at least of checking the passage of the British vessels. The chain was forged here in the Ringwood foundry and I have secured a part of it as a memento. The mortar was given to me by President Lincoln, as also was the mortar-bed." This report naturally brought out the further question as to the grounds for the gift. "I made this mortar-bed," said Hewitt, "together with some others, and Lincoln was good enough to say that I had in this work rendered a service to the State. It was in December, 1861, when the expedition against Fort Donelson and Fort Henry was being organised at Fort Cairo under the leadership of General Grant. Grant reported that the field-pieces at his command would not be effective against the earthworks that were to be shelled and made requisition for mortars." The mortar I may explain to my unmilitary readers is a short carronade of large bore and with a comparatively short range. The mortar with a heavy charge throws its missile at a sharp angle upwards, so that, instead of attempting to go through an earthwork, it is thrown into the enclosure. The recoil from a mortar is very heavy, necessitating the construction of a foundation called a mortar-bed which is not only solid but which possesses a certain amount of

elasticity through which the shock of the recoil is absorbed. It is only through the use of such a bed that a mortar can be fired from the deck of a vessel. Without such, protection, the shock would smash through the deck and might send the craft to the bottom.

The Ordnance Department reported to the Secretary of War and the Secretary to Lincoln that mortars were on hand but that no mortar-beds were available. It was one of the many cases in which the unpreparedness of the government had left a serious gap in the equipment. The further report was given to Lincoln that two or three months' time would be required to manufacture the thirty mortar-beds that were needed. A delay of any such period would have blocked the entire purpose of Grant's expedition. In his perplexity, Lincoln remembered that in his famous visit to New York two years before, he had been introduced to Mr. Hewitt, "a well-known iron merchant," as "a man who does things." Lincoln telegraphed to Hewitt asking if Hewitt could make thirty mortar-beds and how long it would take. Hewitt told me that the message reached him on a Saturday evening at the house of a friend. He wired an acknowledgment with the word that he would send a report on the following day. Sunday morning he looked up the ordnance officer of New York for the purpose of ascertaining where the pattern mortar-bed was kept. "It was rather important, Major," said Hewitt to me, "that I should have an opportunity of examining this pattern for I had never seen a mortar-bed in my life, but this of course I did not admit to the ordnance officer." The pattern required was, it seemed, in the armory at Springfield. Hewitt wired to Lincoln asking that the bed should be forwarded by the night boat to him in New York. Hewitt and his men met the boat, secured the pattern bed, and gave some hours to puzzling over the construction. At noon on Monday, Hewitt wired to Lincoln that he could make thirty mortar-beds in thirty days. In another hour he received by wire instructions from Lincoln to go ahead. In twenty-eight days he had the thirty mortar-beds in readiness; and Tom Scott, who had at the time, very fortunately for the country, taken charge of the military transportation, had provided thirty flat-cars for the transit of the mortar-beds to Cairo. The train was addressed to "U.S. Grant, Cairo," and each car contained a notification, painted in white on a black ground, "not to be switched on the penalty of death." That train got through and as other portions of the equipment had also been delayed, the mortars were not so very late. Six schooners, each

equipped with a mortar, were hurried up the river to support the attack of the army on Fort Donelson. A first assault had been made and had failed. The field artillery was, as Grant had anticipated, ineffective against the earthworks, while the fire of the Confederate infantry, protected by their works, had proved most severe. The instant, however, that from behind a point on the river below the fort shells were thrown from the schooners into the inner circle of the fortifications, the Confederate commander, Floyd, recognised that the fort was untenable. He slipped away that night leaving his junior, General Buckner, to make terms with Grant, and those terms were "unconditional surrender," which were later so frequently connected with the initials of U.S.G.

Buckner's name comes again into history in a pleasant fashion. Years after the War, when General Grant had, through the rascality of a Wall Street "pirate," lost his entire savings, Buckner, himself a poor man, wrote begging Grant to accept as a loan, "to be repaid at his convenience," a check enclosed for one thousand dollars. Other friends came to the rescue of Grant, and through the earnings of his own pen, he was before his death able to make good all indebtedness and to leave a competency to his widow. The check sent by Buckner was not used, but the prompt friendliness was something not to be forgotten.

Hewitt's mortar-beds were used again a few weeks later for the capture of Island Number Ten and they also proved serviceable, used in the same fashion from the decks of schooners, in the capture of Forts Jackson and St. Philip which blocked the river below New Orleans. It was only through the fire from these schooners, which were moored behind a point on the river below the forts, that it was possible to reach the inner circle of the works.

I asked Hewitt whether he had seen Lincoln after this matter of the mortar-beds. "Yes," said Hewitt, "I saw him a year later and Lincoln's action was characteristic. I was in Washington and thought it was proper to call and pay my respects. I was told on reaching the White House that it was late in the day and that the waiting-room was very full and that I probably should not be reached. 'Well,' I said, 'in that case, I will simply ask you to take in my card.' No sooner had the card been delivered than the door of the study opened and Lincoln appeared reaching out both hands. 'Where is Mr. Hewitt?' he said; 'I want to see, I want to thank, the man who does things.' I

sat with him for a time, a little nervous in connection with the number of people who were waiting outside, but Lincoln would not let me go. Finally he asked, 'What are you in Washington for?' 'Well, Mr. Lincoln,' said I, 'I have some business here. I want to get paid for those mortar-beds.' 'What?' said Lincoln, 'you have not yet got what the nation owes you? That is disgraceful.' He rang the bell violently and sent an aid for Secretary Stanton and when the Secretary appeared, he was questioned rather sharply. 'How about Mr. Hewitt's bill against the War Department? Why does he have to wait for his money?' 'Well, Mr. Lincoln,' said Stanton, 'the order for those mortar-beds was given rather irregularly. It never passed through the War Department and consequently the account when rendered could not receive the approval of any ordnance officer, and until so approved could not be paid by the Treasury.' 'If,' said Lincoln, 'I should write on that account an order to have it paid, do you suppose the Secretary of the Treasury would pay it?' 'I suppose that he would,' said Stanton. The account was sent for and Lincoln wrote at the bottom: 'Pay this bill now. A. Lincoln.' 'Now, Mr. Stanton,' said Lincoln, 'Mr. Hewitt has been very badly treated in this matter and I want you to take a little pains to see that he gets his money. I am going to ask you to go over to the Treasury with Mr. Hewitt and to get the proper signatures on this account so that Mr. Hewitt can carry a draft with him back to New York.' Stanton, rather reluctantly, accepted the instruction and," said Hewitt, "he walked with me through the various departments of the Treasury until the final signature had been placed on the bill and I was able to exchange this for a Treasury warrant. I should," said Hewitt, "have been much pleased to retain the bill with that signature of Lincoln beneath the words, 'Pay this now.'

"Towards the end of the War," he continued, "when there was no further requirement for mortars, I wrote to Mr. Lincoln and asked whether I might buy a mortar with its bed. Lincoln replied promptly that he had directed the Ordnance Department to send me mortar and bed with 'the compliments of the administration.' I am puzzled to think," said Hewitt, "how that particular item in the accounts of the Ordnance Department was ever adjusted, but I am very glad to have this reminiscence of the War and of the President."

Lincoln's relations with McClellan have already been touched upon. There would not be space in this paper to refer in detail to the action taken by Lincoln with other army commanders East and West. The problem that

confronted the Commander-in-chief of selecting the right leaders for this or that undertaking, and of promoting the men who gave evidence of the greater capacity that was required for the larger armies that were being placed in the field, was one of no little difficulty. The reader of history, looking back to-day, with the advantage of the full record of the careers of the various generals, is tempted to indulge in easy criticism of the blunders made by the President. Why did the President put up so long with the vaingloriousness and ineffectiveness of McClellan? Why should he have accepted even for one brief and unfortunate campaign the service of an incompetent like Pope? Why was a slow-minded closet-student like Halleck permitted to fritter away in the long-drawn-out operations against Corinth the advantage of position and of force that had been secured by the army of the West? Why was a political trickster like Butler, with no army experience, or a well-meaning politician like Banks with still less capacity for the management of troops, permitted to retain responsibilities in the field, making blunders that involved waste of life and of resources and the loss of campaigns? Why were not the real men like Sherman, Grant, Thomas, McPherson, Sheridan, and others brought more promptly into the important positions? Why was the army of the South permitted during the first two years of the War to have so large an advantage in skilled and enterprising leadership? A little reflection will show how unjust is the criticism implied through such questions. We know of the incapacity of the generals who failed and of the effectiveness of those who succeeded, only through the results of the campaigns themselves. Lincoln could only study the men as he came to know about them and he experimented first with one and then with another, doing what seemed to be practicable to secure a natural selection and the survival of the fittest. Such watchful supervision and painstaking experimenting was carried out with infinite patience and with an increasing knowledge both of the requirements and of the men fitted to fill the requirements.

We must also recall that, Commander-in-chief as he was, Lincoln was not free to exercise without restriction his own increasingly valuable judgment in the appointment of the generals. It was necessary to give consideration to the opinion of the country, that is to say, to the individual judgments of the citizens whose loyal co-operation was absolutely essential for the support of the nation's cause. These opinions of the citizens were expressed sometimes

through the appeals of earnestly loyal governors like Andrew of Massachusetts, or Curtin of Pennsylvania, and sometimes through the articles of a strenuous editor like Greeley, whose influence and support it was, of course, all important to retain. Greeley's absolute ignorance of military conditions did not prevent him from emphasising with the President and the public his very decided conclusions in regard to the selection of men and the conduct of campaigns. In this all-perplexing problem of the shaping of campaigns, Lincoln had to consider the responsibilities of representative government. The task would, of course, have been much easier if he had had power as an autocrat to act on his own decisions simply. The appointment of Butler and Banks was thought to be necessary for the purpose of meeting the views of the loyal citizens of so important a State as Massachusetts, and other appointments, the results of which were more or less unfortunate, may in like manner be traced to causes or influences outside of a military or army policy.

General Frank V. Greene, in a paper on Lincoln as Commander-in-chief, writes in regard to his capacity as a leader as follows:

"As time goes on, Lincoln's fame looms ever larger and larger. Great statesman, astute politician, clear thinker, classic writer, master of men, kindly, lovable man,—these are his titles. To these must be added—military leader. Had he failed in that quality, the others would have been forgotten. Had peace been made on any terms but those of the surrender of the insurgent forces and the restoration of the Union, Lincoln's career would have been a colossal failure and the Emancipation Proclamation a subject of ridicule. The prime essential was military success. Lincoln gained it. Judged in the retrospect of nearly half a century, with his every written word now in print and with all the facts of the period brought out and placed in proper perspective by the endless studies, discussions, and arguments of the intervening years, it becomes clear that, first and last and at all times during his Presidency, in military affairs his was not only the guiding but the controlling hand."

It is interesting, as the War progressed, to trace the development of Lincoln's own military judgment. He was always modest in regard to matters in which his experience was limited, and during the first twelve months in Washington, he had comparatively little to say in regard to the

planning or even the supervision of campaigns. His letters, however, to McClellan and his later correspondence with Burnside, with Hooker, and with other commanders give evidence of a steadily developing intelligence in regard to larger military movements. History has shown that Lincoln's judgment in regard to the essential purpose of a campaign, and the best methods for carrying out such purpose, was in a large number of cases decidedly sounder than that of the general in the field. When he emphasised with McClellan that the true objective was the Confederate army in the field and not the city of Richmond, he laid down a principle which seems to us elementary but to which McClellan had been persistently blinded. Lincoln writes to Hooker: "We have word that the head of Lee's army is near Martinsburg in the Shenandoah Valley while you report that you have a substantial force still opposed to you on the Rappahannock. It appears, therefore that the line must be forty miles long. The animal is evidently very slim somewhere and it ought to be possible for you to cut it at some point." Hooker had the same information but did not draw the same inference.

Apart from Lincoln's work in selecting, and in large measure in directing, the generals, he had a further important relation with the army as a whole. We are familiar with the term "the man behind the gun." It is a truism to say that the gun has little value whether for offence or for defence unless the man behind it possesses the right kind of spirit which will infuse and guide his purpose and his action with the gun. For the long years of the War, the Commander-in-chief was the man behind all the guns in the field. The men in the front came to have a realising sense of the infinite patience, the persistent hopefulness, the steadiness of spirit, the devoted watchfulness of the great captain in Washington. It was through the spirit of Lincoln that the spirit in the ranks was preserved during the long months of discouragement and the many defeats and retreats. The final advance of Grant which ended at Appomattox, and the triumphant march of Sherman which culminated in the surrender at Goldsborough of the last of the armies of the Confederacy, were the results of the inspiration, given alike to soldier and to general, from the patient and devoted soul of the nation's leader.

In March, 1862, Lincoln received the news of the victory won at Pea Ridge, in Arkansas, by Curtis and Sigel, a battle which had lasted three days. The first day was a defeat and our troops were forced back; the fighting of the second resulted in what might be called a drawn battle; but on the third, our

army broke its way through the enclosing lines, bringing the heavier loss to the Confederates, and regained its base. This battle was in a sense typical of much of the fighting of the War. It was one of a long series of fights which continued for more than one day. The history of the War presents many instances of battles that lasted two days, three days, four days, and in one case seven days. It was difficult to convince the American soldier, on either side of the line, that he was beaten. The general might lose his head, but the soldiers, in the larger number of cases, went on fighting until, with a new leader or with more intelligent dispositions on the part of the original leader, a first disaster had been repaired. There is no example in modern history of fighting of such stubborn character, or it is fairer to say, there was no example until the Russo-Japanese War in Manchuria. The record shows that European armies, when outgeneralled or outmanoeuvred, had the habit of retiring from the field, sometimes in good order, more frequently in a state of demoralisation. The American soldier fought the thing out because he thought the thing out. The patience and persistence of the soldier in the field was characteristic of, and, it may fairly be claimed, was in part due to, the patience and persistence of the great leader in Washington.

VI

THE DARK DAYS OF 1862

The dark days of 1862 were in April brightened by the all-important news that Admiral Farragut had succeeded in bringing the Federal fleet, or at least the leading vessels in this fleet, past the batteries of Forts St. Philip and Jackson on the Mississippi, and had compelled the surrender of New Orleans. The opening of the Mississippi River had naturally been included among the most essential things to be accomplished in the campaign for the restoration of the national authority. It was of first importance that the States of the North-west and the enormous contiguous territory which depended upon the Mississippi for its water connection with the outer world should not be cut off from the Gulf. The prophecy was in fact made more than once that in case the States of the South had succeeded in establishing their independence, there would have come into existence on the continent not two confederacies, but probably four. The communities on the Pacific Coast would naturally have been tempted to set up for themselves, and a similar course might also naturally have been followed by the great States of the North-west whose interests were so closely bound up with the waterways running southward. It was essential that no effort should be spared to bring the loyal States of the West into control of the line of the Mississippi. More than twelve months was still required after the capture of New Orleans on the first of May, 1862, before the surrender of Vicksburg to Grant and of Port Hudson to Banks removed the final barriers to the Federal control of the great river. The occupation of the river by the Federals was of importance in more ways than one. The States to the west of the river—Arkansas, Missouri, and Texas—were for the first two years of the War important sources of supplies for the food of the Confederate army. Corn on the cob or in bags was brought across the river by boats, while the herds of live cattle were made to swim the stream, and were then most frequently marched across country to the commissary depots of the several armies. After the fall of Port Hudson, the connection for such supplies was

practically stopped; although I may recall that even as late as 1864, the command to which I was attached had the opportunity of stopping the swimming across the Mississippi of a herd of cattle that was in transit for the army of General Joe Johnston.

In April, 1862, just after the receipt by Lincoln of the disappointing news of the first repulse at Vicksburg, he finds time to write a little autograph note to a boy, "Master Crocker," with thanks for a present of a white rabbit that the youngster had sent to the President with the suggestion that perhaps the President had a boy who would be pleased with it.

During the early part of 1862, Lincoln is giving renewed thought to the great problem of emancipation. He becomes more and more convinced that the success of the War calls for definite action on the part of the administration in the matter of slavery. He was, as before pointed out, anxious, not only as a matter of justice to loyal citizens, but on the ground of the importance of retaining for the national cause the support of the Border States, to act in such manner that the loyal citizens of these States should be exposed to a minimum loss and to the smallest possible risk of disaffection. In July, 1862, Lincoln formulated a proposition for compensated emancipation. It was his idea that the nation should make payment of an appraised value in freeing the slaves that were in the ownership of citizens who had remained loyal to the government. It was his belief that the funds required would be more than offset by the result in furthering the progress of the War. The daily expenditure of the government was at the time averaging about a million and a half dollars a day, and in 1864 it reached two million dollars a day. If the War could be shortened a few months, a sufficient amount of money would be saved to offset a very substantial payment to loyal citizens for the property rights in their slaves.

The men of the Border States were, however, still too bound to the institution of slavery to be prepared to give their assent to any such plan. Congress was, naturally, not ready to give support to such a policy unless it could be made clear that it was satisfactory to the people most concerned. The result of the unwise stubbornness in this matter of the loyal citizens of Missouri, Kentucky, Tennessee, and Maryland was that they were finally obliged to surrender without compensation the property control in their slaves. When the plan for compensated emancipation had failed, Lincoln

decided that the time had come for unconditional emancipation. In July, 1862, he prepares the first draft of the Emancipation Proclamation. It was his judgment, which was shared by the majority of his Cabinet, that the issue of the proclamation should, however, be deferred until after some substantial victory by the armies of the North. It was undesirable to give to such a step the character of an utterance of despair or even of discouragement. It seemed evident, however, that the War had brought the country to the point at which slavery, the essential cause of the cleavage between the States, must be removed. The bringing to an end of the national responsibility for slavery would consolidate national opinion throughout the States of the North and would also strengthen the hands of the friends of the Union in England where the charge had repeatedly been made that the North was fighting, not against slavery or for freedom of any kind, but for domination. The proclamation was held until after the battle of Antietam in September, 1862, and was then issued to take effect on the first of January, 1863. It did produce the hoped-for results. The cause of the North was now placed on a consistent foundation. It was made clear that when the fight for nationality had reached a successful termination, there was to be no further national responsibility for the great crime against civilisation. The management of the contrabands, who were from week to week making their way into the lines of the Northern armies, was simplified. There was no further question of holding coloured men subject to the possible claim of a possibly loyal master. The work of organising coloured troops, which had begun in Massachusetts some months earlier in the year, was now pressed forward with some measure of efficiency. Boston sent to the front the 54th and 55th Massachusetts regiments composed of coloured troops and led by such men as Shaw and Hallowell. The first South Carolina coloured regiment was raised and placed under the command of Colonel Higginson.

I had myself some experience in Louisiana with the work of moulding plantation hands into disciplined soldiers and I was surprised at the promptness of the transformation. A contraband who made his way into the camp from the old plantation with the vague idea that he was going to secure freedom was often in appearance but an unpromising specimen out of which to make a soldier. He did not know how to hold himself upright or to look the other man in the face. His gait was shambly, his perceptions dull. It was difficult for him either to hear clearly, or to understand when

heard, the word of instruction or command. When, however, the plantation rags had been disposed of and (possibly after a souse in the Mississippi) the contraband had been put into the blue uniform and had had the gun placed on his shoulder, he developed at once from a "chattel" to a man. He was still, for a time at least, clumsy and shamblly. The understanding of the word of command did not come at once and his individual action, if by any chance he should be left to act alone, was, as a rule, less intelligent, less to be depended upon, than that of the white man. But he stood up straight in the garb of manhood, looked you fairly in the face, showed by his expression that he was anxious for the privilege of fighting for freedom and for citizenship, and in Louisiana, and throughout the whole territory of the War, every black regiment that came into engagement showed that it could be depended upon. Before the War was closed, some two hundred thousand negroes had been brought into the ranks of the Federal army and their service constituted a very valuable factor in the final outcome of the campaigns. A battle like that at Milliken's Bend, Mississippi, inconsiderable in regard to the numbers engaged, was of distinctive importance in showing what the black man was able and willing to do when brought under fire for the first time. A coloured regiment made up of men who only a few weeks before had been plantation hands, had been left on a point of the river to be picked up by an expected transport. The regiment was attacked by a Confederate force of double or treble the number, the Southerners believing that there would be no difficulty in driving into the river this group of recent slaves. On the first volley, practically all of the officers (who were white) were struck down and the loss with the troops was also very heavy. The negroes, who had but made a beginning with their education as soldiers, appeared, however, not to have learned anything about the conditions for surrender and they simply fought on until no one was left standing. The percentage of loss to the numbers engaged was the heaviest of any action in the War. The Southerners, in their contempt for the possibility of negroes doing any real fighting, had in their rushing attack exposed themselves much and had themselves suffered seriously. When, in April, 1865, after the forcing back of Lee's lines, the hour came, so long waited for and so fiercely fought for, to take possession of Richmond, there was a certain poetic justice in allowing the negro division, commanded by General Weitzel, to head the column of advance.

Through 1862, and later, we find much correspondence from Lincoln in regard to the punishment of deserters. The army penalty for desertion when the lines were in front of the enemy, was death. Lincoln found it very difficult, however, to approve of a sentence of death for any soldier. Again and again he writes, instructing the general in the field to withhold the execution until he, Lincoln, had had an opportunity of passing upon the case. There is a long series of instances in which, sometimes upon application from the mother, but more frequently through the personal impression gained by himself of the character of the delinquent, Lincoln decided to pardon youngsters who had, in his judgment, simply failed to realise their full responsibility as soldiers. Not a few of these men, permitted to resume their arms, gained distinction later for loyal service.

In December, 1862, Jefferson Davis issued an order which naturally attracted some attention, directing that General Benjamin F. Butler, when captured, should be "reserved for execution." Butler never fell into the hands of the Confederates and it is probable that if he had been taken prisoner, the order would have remained an empty threat. From Lincoln came the necessary rejoinder that a Confederate officer of equal rank would be held as hostage for the safety of any Northern general who, as prisoner, might not be protected under the rules of war.

Lincoln's correspondence during 1862, a year which was in many ways the most discouraging of the sad years of the war, shows how much he had to endure in the matter of pressure of unrequested advice and of undesired counsel from all kinds of voluntary advisers and active-minded citizens, all of whom believed that their views were important, if not essential, for the salvation of the state. In September, 1862, Lincoln writes to a friend:

"I am approached with the most opposite opinions expressed on the part of religious men, each of whom is equally certain that he represents the divine will."

To one of these delegations of ministers, Lincoln gave a response which while homely in its language must have presented to his callers a vivid picture of the burdens that were being carried by the leader of the state:

"Gentlemen," he said, "suppose all the property you possess were in gold, and you had placed it in the hands

of Blondin to carry across the Niagara River on a rope. With slow, cautious, steady steps he walks the rope, bearing your all. Would you shake the cable and keep shouting to him, 'Blondin, stand up a little straighter! Blondin, stoop a little more; go a little faster; lean more to the south! Now lean a little more to north! Would that be your behaviour in such an emergency? No, you would hold your breath, every one of you, as well as your tongues. You would keep your hands off until he was safe on the other side."

Another delegation, which had been urging some months in advance of what Lincoln believed to be the fitting time for the issuing of the Proclamation of Emancipation, called asking that there should be no further delay in the action. One of the ministers, as he was retiring, turned and said to Lincoln: "What you have said to us, Mr. President, compels me to say to you in reply that it is a message to you from our Divine Master, through me, commanding you, sir, to open the doors of bondage, that the slave may go free!" Lincoln replied: "That may be, sir, for I have studied this question by night and by day, for weeks and for months, but if it is, as you say, a message from your Divine Master, is it not odd that the only channel He could send it by was that roundabout route through the wicked city of Chicago?"

Another version of the story omits the reference to Chicago, and makes Lincoln's words:

"I hope it will not be irreverent for me to say that if it is probable that God would reveal His will to others on a point so connected with my duty, it might be supposed He would reveal it directly to me.... Whatever shall appear to be God's will, I will do."

In September, 1862, General Lee carried his army into Maryland, threatening Baltimore and Washington. It is probable that the purpose of this invasion was more political than military. The Confederate correspondence shows that Davis was at the time hopeful of securing the intervention of Great Britain and France, and it was natural to assume that the prospects of such intervention would be furthered if it could be shown

that the Southern army, instead of being engaged in the defence of its own capital, was actually threatening Washington and was possibly strong enough to advance farther north.

General Pope had, as a result of his defeat at the second Bull Run, in July, 1862, lost the confidence of the President and of the country. The defeat alone would not necessarily have undermined his reputation, which had been that of an effective soldier. He had, however, the fatal quality, too common with active Americans, of talking too much, whether in speech or in the written word, of promising things that did not come off, and of emphasising his high opinion of his own capacity. Under the pressure of the new peril indicated by the presence of Lee's troops within a few miles of the capital, Lincoln put to one side his own grave doubts in regard to the effectiveness and trustworthiness of McClellan and gave McClellan one further opportunity to prove his ability as a soldier. The personal reflections and aspersions against his Commander-in-chief of which McClellan had been guilty, weighed with Lincoln not at all; the President's sole thought was at this time, as always, how with the material available could the country best be served.

McClellan had his chance (and to few men is it given to have more than one great opportunity) and again he threw it away. His army was stronger than that of Lee and he had the advantage of position and (for the first time against this particular antagonist) of nearness to his base of supplies. Lee had been compelled to divide his army in order to get it promptly into position on the north side of the Potomac. McClellan's tardiness sacrificed Harper's Ferry (which, on September 15th, was actually surrounded by Lee's advance) with the loss of twelve thousand prisoners. Through an exceptional piece of good fortune, there came into McClellan's hands a despatch showing the actual position of the different divisions of Lee's army and giving evidence that the two wings were so far separated that they could not be brought together within twenty-four hours. The history now makes clear that for twenty-four hours McClellan had the safety of Lee's army in his hands, but those precious hours were spent by McClellan in "getting ready," that is to say, in vacillating.

Finally, there came the trifling success at South Mountain and the drawn battle of Antietam. Lee's army was permitted to recross the Potomac with

all its trains and even with the captured prisoners, and McClellan lay waiting through the weeks for something to turn up.

A letter written by Lincoln on the 13th of October shows a wonderfully accurate understanding of military conditions, and throws light also upon the character and the methods of thought of the two men:

"Are you not overcautious when you assume that you cannot do what the enemy is constantly doing? Should you not claim to be at least his equal in prowess, and act upon the claim? As I understand, you telegraphed General Halleck that you cannot subsist your army at Winchester unless the railroad from Harper's Ferry to that point be put in working order. But the enemy does now subsist his army at Winchester, at a distance nearly twice as great as you would have to do, without the railroad last named. He now waggons from Culpeper Court House, which is just about twice as far as you would have to do from Harper's Ferry. He is certainly not more than half as well provided with waggons as you are.... Again, one of the standard maxims of war, as you know, is to 'operate upon the enemy's communications without exposing your own.' You seem to act as if this applies against you, but cannot apply it in your favour. Change positions with the enemy, and think you not he would break your communication with Richmond in twenty-four hours?... You are now nearer Richmond than the enemy is by the route you can and he must take. Why can you not reach there before him, unless you admit that he is more than your equal on a march? His route is the arc of a circle, while yours is the chord. The roads are as good on your side as on his ... If he should move northward, I would follow him closely, holding his communications. If he should prevent our seizing his communications and move towards Richmond, I would press closely to him, fight him, if a favourable opportunity should present, and at least try to beat him to Richmond on the inside track. I

say 'Try'; if we never try, we shall never succeed.... If we cannot beat him when he bears the wastage of coming to us, we never can when we bear the wastage of going to him.... As we must beat him somewhere or fail finally, we can do it, if at all, easier near to us than far away.... It is all easy if our troops march as well as the enemy, and it is unmanly to say that they cannot do it."

The patience of Lincoln and that of the country behind Lincoln were at last exhausted. McClellan was ordered to report to his home in New Jersey and the General who had come to the front with such flourish of trumpets and had undertaken to dictate a national policy at a time when he was not able to keep his own army in position, retires from the history of the War.

The responsibility again comes to the weary Commander-in-chief of finding a leader who could lead, in whom the troops and the country would have confidence, and who could be trusted to do his simple duty as a general in the field without confusing his military responsibilities with political scheming. The choice first fell upon Burnside. Burnside was neither ambitious nor self-confident. He was a good division general, but he doubted his ability for the general command. Burnside loyally accepts the task, does the best that was within his power and, pitted against a commander who was very much his superior in general capacity as well as in military skill, he fails. Once more has the President on his hands the serious problem of finding the right man. This time the commission was given to General Joseph Hooker. With the later records before us, it is easy to point out that this selection also was a blunder. There were better men in the group of major-generals. Reynolds, Meade, or Hancock would doubtless have made more effective use of the power of the army of the Potomac, but in January, 1863, the relative characters and abilities of these generals were not so easily to be determined. Lincoln's letter to Hooker was noteworthy, not only in the indication that it gives of Hooker's character but as an example of the President's width of view and of his method of coming into the right relation with men. He writes:

"You have confidence in yourself, which is a valuable if not an indispensable quality.... I think, however, that

during General Burnside's command of the army, you have taken counsel of your ambition and have thwarted him as much as you could, in which you did a great wrong to the country and to a most meritorious and honourable brother officer. I have heard of your recently saying that both the army and the government needed a dictator. Of course it was not for this but in spite of it that I have given you the command. Only those generals who gain success can set up as dictators. What I now ask of you is military success and I will risk the dictatorship. The government will support you to the best of its ability, which is neither more nor less than it has done and will do for all its commanders.... Beware of rashness, but with energy and sleepless vigilance go forward and give us victories."

Hooker, like Burnside, undoubtedly did the best that he could. He was a loyal patriot and had shown himself a good division commander. It is probable, however, that the limit of his ability as a general in the field was the management of an army corps; he seems to have been confused in the attempt to direct the movements of the larger body. At Chancellorsville, he was clearly outwitted by his opponents, Lee and Jackson. The men of the army of the Potomac fought steadily as always but with the discouraging feeling that the soldiers on the other side of the line had the advantage of better brain power behind them. It is humiliating to read in the life of Jackson the reply given by him to Lee when Lee questioned the safety of the famous march planned by Jackson across the front of the Federal line. Said Lee: "There are several points along the line of your proposed march at which your column could be taken in flank with disastrous results." "But, General Lee," replies Jackson, "we must surely in planning any military movements take into account the personality of the leaders to whom we are opposed."

VII

THE THIRD AND CRUCIAL YEAR OF THE WAR

Chancellorsville was fought and lost, and again, under political pressure from Richmond rather than with any hope of advantage on simple military lines, Lee leads his army to an invasion of the North. For this there were at the time several apparent advantages; the army of the Potomac had been twice beaten and, while by no means demoralised, was discouraged and no longer had faith in its commander. There was much inevitable disappointment throughout the North that, so far from making progress in the attempt to restore the authority of the government, the national troops were on the defensive but a few miles from the national capital. The Confederate correspondence from London and from Paris gave fresh hopes for the long expected intervention.

Lee's army was cleverly withdrawn from Hooker's front and was carried through western Maryland into Pennsylvania by the old line of the Shenandoah Valley and across the Potomac at Falling Waters. Hooker reports to Lincoln under date of June 4th that the army or an army is still in his front on the line of the Rappahannock, Lincoln writes to Hooker under date of June 5th, "We have report that Lee's army is moving westward and that a large portion of it is already to the west of the Blue Ridge. The 'bull' [Lee's army] is across the fence and it surely ought to be possible to worry him." On June 14th, Lincoln writes again, reporting to Hooker that Lee with the body of his troops is approaching the Potomac at a point forty miles away from the line of the entrenchments on the Rappahannock. "The animal [Lee's army] is extended over a line of forty miles. It must be very slim somewhere. Can you not cut it?" The phrases are not in military form but they give evidence of sound military judgment. Hooker was unable to grasp the opportunity, and realising this himself, he asked to be relieved. The troublesome and anxious honour of the command of the army now falls upon General Meade. He takes over the responsibility at a time when Lee's

army is already safely across the Potomac and advancing northward, apparently towards Philadelphia. His troops are more or less scattered and no definite plan of campaign appears to have been formulated. The events of the next three weeks constitute possibly the best known portion of the War. Meade shows good energy in breaking up his encampment along the Rappahannock and getting his column on to the road northward. Fortunately, the army of the Potomac for once has the advantage of the interior line so that Meade is able to place his army in a position that protects at once Washington on the south-west, Baltimore on the east, and Philadelphia on the north-east. We can, however, picture to ourselves the anxiety that must have rested upon the Commander-in-chief in Washington during the weeks of the campaign and during the three days of the great battle which was fought on Northern soil and miles to the north of the Northern capital. If, on that critical third day of July, the Federal lines had been broken and the army disorganised, there was nothing that could prevent the national capital from coming into the control of Lee's army. The surrender of Washington meant the intervention of France and England, meant the failure of the attempt to preserve the nation's existence, meant that Abraham Lincoln would go down to history as the last President of the United States, the President under whose leadership the national history had come to a close. But the Federal lines were not broken. The third day of Gettysburg made clear that with equality of position and with substantial equality in numbers there was no better fighting material in the army of the grey than in the army of the blue. The advance of Pickett's division to the crest of Cemetery Ridge marked the high tide of the Confederate cause. Longstreet's men were not able to prevail against the sturdy defence of Hancock's second corps and when, on the Fourth of July, Lee's army took up its line of retreat to the Potomac, leaving behind it thousands of dead and wounded, the calm judgment of Lee and his associates must have made clear to them that the cause of the Confederacy was lost. The army of Northern Virginia had shattered itself against the defences of the North, and there was for Lee no reserve line. For a long series of months to come, Lee, magnificent engineer officer that he was, and with a sturdy persistency which withstood all disaster, was able to maintain defensive lines in the Wilderness, at Cold Harbor, and in front of Petersburg, but as his brigades crumbled away under the persistent and unceasing attacks of the army of the Potomac, he must have realised long before the day of Appomattox that

his task was impossible. What Gettysburg decided in the East was confirmed with equal emphasis by the fall of Vicksburg in the West. On the Fourth of July, 1863, the day on which Lee, defeated and discouraged, was taking his shattered army out of Pennsylvania, General Grant was placing the Stars and Stripes over the earthworks of Vicksburg. The Mississippi was now under the control of the Federalists from its source to the mouth, and that portion of the Confederacy lying to the west of the river was cut off so that from this territory no further co-operation of importance could be rendered to the armies either of Johnston or of Lee.

Lincoln writes to Grant after the fall of Vicksburg giving, with his word of congratulation, the admission that he (Lincoln) had doubted the wisdom or the practicability of Grant's movement to the south of Vicksburg and inland to Jackson. "You were right," said Lincoln, "and I was wrong."

On the 19th of November, 1863, comes the Gettysburg address, so eloquent in its simplicity. It is probable that no speaker in recorded history ever succeeded in putting into so few words so much feeling, such suggestive thought, and such high idealism. The speech is one that children can understand and that the greatest minds must admire.

FAC-SIMILE OF GETTYSBURG ADDRESS.

Address delivered at the dedication of the
Cemetery at Gettysburg.

Four score and seven years ago our fathers
brought forth on this continent, a new na-
tion, conceived in liberty, and dedicated
to the proposition that all men are cre-
ated equal.

Now we are engaged in a great civil war;
testing whether that nation, or any nation
so conceived and so dedicated, can long
endure. We are met on a great battle-field
of that war. We have come to dedicate a
portion of that field, as a final resting
place for those who here gave their lives,
that that nation might live. It is alto-
gether fitting and proper that we should
do this.

But, in a larger sense, we can not dedis

eds— we can not consecrate— we can not
hallow this ground. The brave men, living
and dead, who struggled here, have con-
secrated it, far above our poor power to add
or detract. The world will little note, nor
long remember what we say here; but it can
never forget what they did here. It is for as
the living, rather, to be dedicated here to
the unfinished work which they who fought
here have thus far so nobly advanced.
It is rather for us to be here dedicated to
the great task remaining before us,— that
from these honored dead we take increased
devotion to that cause for which they gave
the last full measure of devotion— that
we here highly resolve that these dead shall
not have died in vain— that this nation,
under God, shall have a new birth of free-
dom— and that government of the people,
by the people, for the people, shall not per-
ish from the earth.

Abraham Lincoln.

November 19. 1863.

FACSIMILE OF GETTYSBURG ADDRESS.

Address delivered at the dedication of the cemetery at
Gettysburg.

Four score and seven years ago our fathers brought forth on this continent a new nation, conceived in liberty, and dedicated to the proposition that all men are created equal.

Now we are engaged in a great civil war, testing whether that nation, or any nation, so conceived and so dedicated, can long endure. We are met on a great battlefield of that war. We have come to dedicate a portion of that field, as a final resting place for those who here gave their lives that their nation might live. It is altogether fitting and proper that we should this.

But in a larger sense, we cannot dedicate, we cannot consecrate, we cannot hallow this ground. The brave men, living and dead who struggled here have consecrated it far above our poor power to add or detract. The world will little note nor long remember what we say here, but it can never forget what they did here. It is for us the living rather to be dedicated here to the unfinished work which they who fought here have thus far so nobly advanced. It is rather for us to be here dedicated to the great task remaining before us—that from these honored dead we take increased devotion to that cause for which they gave the last full measure of devotion—that we here highly resolve that these dead shall not have died in vain, that this nation under God shall have a new birth of freedom, and that government of the people, by the people, for the people shall not perish from the earth.

Abraham Lincoln

November 19, 1863

There was disappointment that Meade had not shown more energy after Gettysburg in the pursuit of Lee's army and that some attempt, at least, had not been made to interfere with the retreat across the Potomac. Military critics have in fact pointed out that Meade had laid himself open to criticism

in the management of the battle itself. At the time of the repulse of Pickett's charge, Meade had available at the left and in rear of his centre the sixth corps which had hardly been engaged on the previous two days, and which included some of the best fighting material in the army. It has been pointed out more than once that if that corps had been thrown in at once with a countercharge upon the heels of the retreating divisions of Longstreet, Lee's right must have been curled up and overwhelmed. If this had happened, Lee's army would have been so seriously shattered that its power for future service would have been inconsiderable. Meade was accepted as a good working general but the occasion demanded something more forcible in the way of leadership and, early in 1864, Lincoln sends for the man who by his success in the West had won the hopeful confidence of the President and the people.

Before this appointment of General-in-chief was given to General Grant, and he came to the East to take charge of the armies in Virginia, he had brought to a successful conclusion a dramatic campaign, of which Chattanooga was the centre. In September, 1863, General Rosecrans, who had occupied Chattanooga, was defeated some twenty miles to the south on the field of Chickamauga, a defeat which was the result of too much confidence on the part of the Federal commander, who in pressing his advance had unwisely separated the great divisions of his army, and of excellent skill and enterprise on the part of the Confederate commander, General Bragg. If the troops of Rosecrans had not been veterans, and if the right wing had not been under the immediate command of so sturdy and unconquered a veteran as General Thomas, the defeat might have become a rout. As it was, the army retreated with some discouragement but in good fighting force, to the lines of Chattanooga. By skilful disposition of his forces across the lines of connection between Chattanooga and the base of supplies, General Bragg brought the Federals almost to the point of starvation, and there was grave risk that through the necessary falling back of the army to secure supplies, the whole advantage of the previous year's campaign might be lost. Grant was placed in charge of the forces in Chattanooga, and by a good management of the resources available, he succeeded in reopening the river and what became known as "the cracker line," and in November, 1863, in the dramatic battles of Lookout Mountain, fought more immediately by General Hooker, and of Missionary Ridge, the

troops of which were under the direct command of General Sherman, overwhelmed the lines of Bragg, and pressed his forces back into a more or less disorderly retreat. An important factor in the defeat of Bragg was the detaching from his army of the corps under Longstreet which had been sent to Knoxville in a futile attempt to crush Burnside and to reconquer East Tennessee for the Confederacy. This plan, chiefly political in purpose, was said to have originated with President Davis. The armies of the West were now placed under the command of General Sherman, and early in 1864, Grant was brought to Virginia to take up the perplexing problem of overcoming the sturdy veterans of General Lee.

The first action of Grant as commander of all the armies in the field was to concentrate all the available forces against the two chief armies of the Confederacy. The old policy of occupying outlying territory for the sake of making a show of political authority was given up. If Johnston in the West and Lee in the East could be crushed, the national authority would be restored in due season, and that was the only way in which it could be restored. Troops were gathered in from Missouri and Arkansas and Louisiana and were placed under the command of Sherman for use in the final effort of breaking through the centre of the Confederacy, while in the East nothing was neglected on the part of the new administration to secure for the direction of the new commander all resources available of men and of supplies.

Grant now finds himself pitted against the first soldier of the continent, the leader who is to go down to history as probably the greatest soldier that America has ever produced. Lee's military career is a wonderful example of a combination of brilliancy, daring ingenuity of plan, promptness of action, and patient persistence under all kinds of discouragement, but it was not only through these qualities that it was possible for him to retain control, through three years of heavy fighting, of the territory of Virginia, which came to be the chief bulwark of the Confederacy. Lee's high character, sweetness of nature, and unselfish integrity of purpose had impressed themselves not only upon the Confederate administration which had given him the command but upon every soldier in that command. For the army of Northern Virginia Lee was the man behind the guns just as Lincoln came to be for all the men in blue. There never was a more devoted army and there probably never was a better handled army than that with which Lee

defended for three years the lines across Northern Virginia and the remnants of which were finally surrendered at Appomattox.

Grant might well have felt concerned with such an opponent in front of him. He had on his hands (as had been the almost uniform condition for the army of the Potomac) the disadvantage of position. His advance must be made from exterior lines and nearly every attack was to be against well entrenched positions that had been first selected years back and had been strengthened from season to season. On the other hand, Grant was able to depend upon the loyal support of the administration through which came to his army the full advantage of the great resources of the North. His ranks as depleted were filled up, his commissary trains need never be long unsupplied, his ammunition waggons were always equipped. For Lee, during the years following the Gettysburg battle, the problem was unending and increasing: How should the troops be fed and whence should they secure the fresh supplies of ammunition?

Between Grant and Lincoln there came to be perfect sympathy of thought and action. The men had in their nature (though not in their mental equipment) much in common. Grant carries his army through the spring of 1864, across the much fought over territory, marching and fighting from day to day towards the south-west. The effort is always to outflank Lee's right, getting in between him and his base at Richmond, but after each fight, Lee's army always bars the way. Marching out of the Wilderness after seven days' fierce struggle, Grant still finds the line of grey blocking his path to Richmond. The army of the Potomac had been marching and fighting without break for weeks. There had been but little sleep, and the food in the trains was often far out of the reach of the men in the fighting line. Men and officers were alike exhausted. While advantages had been gained at one point or another along the line, and while it was certain that the opposing army had also suffered severely, there had been no conclusive successes to inspire the troops with the feeling that they were to seize victory out of the campaign.

In emerging from the Wilderness, the head of the column reached the cross-roads the left fork of which led back to the Potomac and the right fork to Richmond or to Petersburg. In the previous campaigns, the army of the Potomac, after doing its share of plucky fighting and taking more than its

share of discouragement, had at such a point been withdrawn for rest and recuperation. It was not an unnatural expectation that this course would be taken in the present campaign. The road to the right meant further fatigue and further continuous fighting for men who were already exhausted. In the leading brigade it was only the brigade commander and the adjutant who had knowledge of the instructions for the line of march. When, with a wave of the hand of the adjutant, the guidon flag of the brigade was carried to the right and the head of the column was set towards Richmond, a shout went up from the men marching behind the guidon. It was an utterance not of discouragement but of enthusiasm. Exhausting as the campaign had been, the men in the ranks preferred to fight it out then and to get through with it. Old soldiers as they were, they were able to understand the actual issue of the contest. Their plucky opponents were as exhausted as themselves and possibly even more exhausted. It was only through the hammering of Lee's diminishing army out of existence that the War could be brought to a close. The enthusiastic shout of satisfaction rolled through the long column reaching twenty miles back, as the news passed from brigade to brigade that the army was not to be withdrawn but was, as Grant's report to Lincoln was worded, "to fight it out on this line if it took all summer." When this report reached Lincoln, he felt that the selection of Grant as Lieutenant-General had been justified. He said: "We need this man. He fights."

In July, 1864, Washington is once more within reach if not of the invader at least of the raider. The Federal forces had been concentrated in Grant's lines along the James, and General Jubal Early, one of the most energetic fighters of the Southern army, tempted by the apparently unprotected condition of the capital, dashed across the Potomac on a raid that became famous. It is probable that in this undertaking, as in some of the other movements that have been referred to on the part of the Southern leaders, the purpose was as much political as military. Early's force of from fifteen to sixteen thousand men was, of course, in no way strong enough to be an army of invasion. The best success for which he could hope would be, in breaking through the defences of Washington, to hold the capital for a day or even a few hours. The capture of Washington in 1864, as in 1863 or in 1862, would in all probability have brought about the long-hoped-for intervention of France and England. General Lew Wallace, whose name became known in the years after the War through some noteworthy romances, *Ben Hur* and *The*

Fair God, and who was in command of a division of troops stationed west of Washington, and composed in part of loyal Marylanders and in part of convalescents who were about to be returned to the front, fell back before Early's advance to Monocacy Creek. He disposed his thin line cleverly in the thickets on the east side of the creek in such fashion as to give the impression of a force of some size with an advance line of skirmishers. Early's advance was checked for some hours before he realised that there was nothing of importance in front of him; when Wallace's division was promptly overwhelmed and scattered. The few hours that had thus been saved were, however, of first importance for the safety of Washington. Early reached the outer lines of the fortifications of the capital some time after sunset. His immediate problem was to discover whether the troops which were, as he knew, being hurried up from the army of the James, had reached Washington or whether the capital was still under the protection only of its so-called home-guard of veteran reserves. These reserves were made up of men more or less crippled and unfit for work in the field but who were still able to do service on fortifications. They comprised in all about six thousand men and were under the command of Colonel Wisewell. The force was strengthened somewhat that night by the addition of all of the male nurses from the hospitals (themselves convalescents) who were able to bear arms. That night the women nurses, who had already been in attendance during the hours of the day, had to render double service. Lincoln had himself in the afternoon stood on the works watching the dust of the Confederate advance. Once more there came to the President who had in his hands the responsibility for the direction of the War the bitterness of the feeling, if not of possible failure, at least of immediate mortification. He knew that within twenty-four or thirty-six hours Washington could depend upon receiving the troops that were being hurried up from Grant's army, but he also realised what enormous mischief might be brought about by even a momentary occupation of the national capital by Confederate troops. I had some personal interest in this side campaign. The 19th army corps, to which my own regiment belonged, had been brought from Louisiana to Virginia and had been landed on the James River to strengthen the ranks of General Butler. There had not been time to assign to us posts in the trenches and we had, in fact, not even been placed in position. We were more nearly in marching order than any other troops available and it was therefore the divisions of the 19th army corps that were selected to be

hurried up to Washington. To these were added two divisions of the 6th corps.

Colonel Wisewell, commanding the defences of the city, realised the nature of his problem. He had got to hold the lines of Washington, cost what it might, until the arrival of the troops from Grant. He took the bold step of placing on the picket line that night every man within reach, or at least every loyal man within reach (for plenty of the men in Washington were looking and hoping for the success of the South). The instructions usually given to pickets were in this instance reversed. The men were ordered, in place of keeping their positions hidden and of maintaining absolute quiet, to move from post to post along the whole line, and they were also ordered, without any reference to the saving of ammunition, to shoot off their carbines on the least possible pretext and without pretext. The armories were then beginning to send to the front Sharp's repeating carbines. The invention of breech-loading rifles came too late to be of service to the infantry on either side, but during the last year of the War, certain brigades of cavalry were armed with Sharp's breech-loaders. The infantry weapon used through the War by the armies of the North as by those of the South was the muzzle-loading rifle which bore the name on our side of the Springfield and on the Confederate side of the Enfield. The larger portion of the Northern rifles were manufactured in Springfield, Massachusetts, while the Southern rifles, in great part imported from England, took their name from the English factory. It was of convenience for both sides that the two rifles were practically identical so that captured pieces and captured ammunition could be interchanged without difficulty.

Early's skirmish line was instructed early in the night to "feel" the Federal pickets, an instruction which resulted in a perfect blaze of carbine fire from Wisewell's men. The report that went to Early was that the picket line must be about six thousand strong. The conclusion on the part of the old Confederate commander was that the troops from the army of the Potomac must have reached the city. If that were true, there was, of course, no chance that on the following day he could break through the entrenchments, while there was considerable risk that his retreat to the Shenandoah might be cut off. Early the next morning, therefore, the disappointed Early led his men back to Falling Waters.

I happened during the following winter, when in prison in Danville, to meet a Confederate lieutenant who had been on Early's staff and who had lost an arm in this little campaign. He reported that when Early, on recrossing the Potomac, learned that he had had Washington in his grasp and that the divisions marching to its relief did not arrive and could not have arrived for another twenty-four hours, he was about the maddest Early that the lieutenant had ever seen. "And," added the lieutenant, "when Early was angry, the atmosphere became blue."

VIII

THE FINAL CAMPAIGN

After this close escape, it was clear to Grant as it had been clear to Lincoln that whatever forces were concentrated before Petersburg, the line of advance for Confederate invaders through the Shenandoah must be blocked. General Sheridan was placed in charge of the army of the Shenandoah and the 19th corps, instead of returning to the trenches of the James, marched on from Washington to Martinsburg and Winchester.

In September, the commander in Washington had the satisfaction of hearing that his old assailant Early had been sent "whirling through Winchester" by the fierce advance of Sheridan. Lincoln recognised the possibility that Early might refuse to stay defeated and might make use, as had so often before been done by Confederate commanders in the Valley, of the short interior line to secure reinforcements from Richmond and to make a fresh attack. On the 29th of September, twenty days before this attack came off, Lincoln writes to Grant: "Lee may be planning to reinforce Early. Care should be taken to trace any movement of troops westward." On the 19th of October, the persistent old fighter Early, not willing to acknowledge himself beaten and understanding that he had to do with an army that for the moment did not have the advantage of Sheridan's leadership, made his plucky, and for the time successful, fight at Cedar Creek. The arrival of Sheridan at the critical hour in the afternoon of the 19th of October did not, as has sometimes been stated, check the retreat of a demoralised army. Sheridan found his army driven back, to be sure, from its first position, but in occupation of a well supported line across the pike from which had just been thrown back the last attack made by Early's advance. It was Sheridan however who decided not only that the battle which had been lost could be regained, but that the work could be done to best advantage right away on that day, and it was Sheridan who led his troops through the too short hours of the October afternoon back to their original position from which before

dark they were able to push Early's fatigued fighters across Cedar Creek southward. Lincoln had found another man who could fight. He was beginning to be able to put trust in leaders who, instead of having to be replaced, were with each campaign gathering fresh experience and more effective capacity.

From the West also came reports, in this autumn of 1864, from a fighting general. Sherman had carried the army, after its success at Chattanooga, through the long line of advance to Atlanta, by outflanking movements against Joe Johnston, the Fabius of the Confederacy, and when Johnston had been replaced by the headstrong Hood, had promptly taken advantage of Hood's rashness to shatter the organisation of the army of Georgia. The capture of Atlanta in September, 1864, brought to Lincoln in Washington and to the North the feeling of certainty that the days of the Confederacy were numbered.

The second invasion of Tennessee by the army of Hood, rendered possible by the march of Sherman to the sea, appeared for the moment to threaten the control that had been secured of the all-important region of which Nashville was the centre, but Hood's march could only be described as daring but futile. He had no base and no supplies. His advance did some desperate fighting at the battle of Franklin and succeeded in driving back the rear-guard of Thomas's army, ably commanded by General Schofield, but the Confederate ranks were so seriously shattered that when they took position in front of Nashville they no longer had adequate strength to make the siege of the city serious even as a threat. Thomas had only to wait until his own preparations were completed and then, on the same day in December on which Sherman was entering Savannah, Thomas, so to speak, "took possession" of Hood's army. After the fight at Nashville, there were left of the Confederate invaders only a few scattered divisions.

It was just before the news of the victory at Nashville that Lincoln made time to write the letter to Mrs. Bixby whose name comes into history as an illustration of the thoughtful sympathy of the great captain:

"I have been shown in the files of the War Department a statement of the adjutant-general of Massachusetts that you are the mother of five sons who died gloriously on

the field of battle. I feel how weak and fruitless must be any words of mine which should attempt to beguile you from the grief of a loss so overwhelming, but I cannot refrain from tendering to you the consolation that may be found in the thanks of the Republic they died to save. I pray that our Heavenly Father may assuage the anguish of your bereavement and leave you only the cherished memory of the loved and lost and the pride that must be yours to have laid so costly a sacrifice upon the altar of freedom."

In March, 1864, Lincoln writes to Grant: "New York votes to give votes to the soldiers. Tell the soldiers." The decision of New York in regard to the collection from the soldiers in each field of the votes for the coming Presidential election was in line with that arrived at by all of the States. The plan presented difficulties and, in connection with the work of special commissioners, it involved also expense. It was, however, on every ground desirable that the men who were risking their lives in defence of the nation should be given the opportunity of taking part in the selection of the nation's leader, who was also under the Constitution the commander-in-chief of the armies in the field. The votes of some four hundred thousand men constituted also an important factor in the election itself. I am not sure that the attempt was ever made to separate and classify the soldiers' vote but it is probable that although the Democratic candidate was McClellan, a soldier who had won the affection of the men serving under him, and the opposing candidate was a civilian, a substantial majority of the vote of the soldiers was given to Lincoln.

Secretary Chase had fallen into the habit of emphasising what he believed to be his indispensability in the Cabinet by threatening to resign, or even by submitting a resignation, whenever his suggestions or conclusions met with opposition. These threats had been received with patience up to the point when patience seemed to be no longer a virtue; but finally, when (in May, 1864) such a resignation was tendered under some aggravation of opposition or of criticism, very much to Chase's surprise the resignation was accepted.

The Secretary had had in train for some months active plans for becoming the Republican candidate for the Presidential campaign of 1864. Evidence had from time to time during the preceding year been brought to Lincoln of Chase's antagonism and of his hopes of securing the leadership of the party. Chase's opposition to certain of Lincoln's policies was doubtless honest enough. He had brought himself to believe that Lincoln did not possess the force and the qualities required to bring the War to a close. He had also convinced himself that he, Chase, was the man, and possibly was the only man, who was fitted to meet the special requirements of the task. Mr. Chase did possess the confidence of the more extreme of the anti-slavery groups throughout the country. His administration of the Treasury had been able and valuable, but the increasing difficulty that had been found in keeping the Secretary of the Treasury in harmonious relations with the other members of the administration caused his retirement to be on the whole a relief. Lincoln came to the conclusion that more effective service could be secured from some other man, even if possessing less ability, whose temperament made it possible for him to work in co-operation. The unexpected acceptance of the resignation caused to Chase and to Chase's friends no little bitterness, which found vent in sharp criticisms of the President. Neither bitterness nor criticisms could, however, prevent Lincoln from retaining a cordial appreciation for the abilities and the patriotism of the man, and, later in the year, Lincoln sent in his nomination as Chief Justice of the Supreme Court. Chase himself, in his lack of capacity to appreciate the self-forgetfulness of Lincoln's nature, was probably more surprised by his nomination as Chief Justice than he had been by the acceptance of his resignation as Secretary of the Treasury.

In July, 1864, comes a fresh risk of international complications through the invasion of Mexico by a French army commanded by Bazaine, seven years later to be known as the (more or less) hero of Metz. Louis Napoleon had been unwilling to give up his dream of a French empire, or of an empire instituted under French influence, in the Western Hemisphere. He was still hopeful, if not confident, that the United States would not be able to maintain its existence; and he felt assured that if the Southern Confederacy should finally be established with the friendly co-operation of France, he would be left unmolested to carry out his own schemes in Mexico. He had induced an honest-minded but not very clearheaded Prince, Maximilian, the

brother of the Emperor of Austria, to accept a throne in Mexico to be established by French bayonets, and which, as the result showed, could sustain itself only while those bayonets were available. The presence of French troops on American soil brought fresh anxieties to the administration; but it was recognised that nothing could be done for the moment, and Lincoln and his advisers were hopeful that the Mexicans, before their capital had been taken possession of by the invader, would be able to maintain some national government until, with the successful close of its own War, the United States could come to the defence of the sister republic.

The extreme anti-slavery group of the Republican party had, as indicated, never been fully satisfied with the thoroughness of the anti-slavery policy of the administration and Mr. Chase retained until the action of the convention in June the hope that he might through the influence of this group secure the Presidency. Lincoln remarks in connection with this candidacy: "If Chase becomes President, all right. I hope we may never have a worse man." From the more conservative wing of the Republican party came suggestions as to the nomination of Grant and this plan brought from Lincoln the remark: "If Grant takes Richmond, by all means let him have the nomination." When the delegates came together, however, in Baltimore, it was evident that, representing as they did the sober and well-thought-out convictions of the people, no candidacy but that of Lincoln could secure consideration and his nomination was practically unanimous.

The election in November gave evidence that, even in the midst of civil war, a people's government can sustain the responsibility of a national election. The large popular majorities in nearly all of the voting States constituted not only a cordial recognition of the service that was being rendered by Lincoln and by Lincoln's administration, but a substantial assurance that the cause of nationality was to be sustained with all the resources of the nation. The Presidential election of this year gave the final blow to the hopes of the Confederacy.

I had myself a part in a very small division of this election, a division which could have no effect in the final gathering of the votes, but which was in a way typical of the spirit of the army. On the 6th of November, 1864, I was in Libby Prison, having been captured at the battle of Cedar Creek in

October. It was decided to hold a Presidential election in the prison, although some of us were rather doubtful as to the policy and anxious in regard to the result. The exchange of prisoners had been blocked for nearly a year on the ground of the refusal on the part of the South to exchange the coloured troops or white officers who held commissions in coloured regiments. Lincoln took the ground, very properly, that all of the nation's soldiers must be treated alike and must be protected by a uniform policy. Until the coloured troops should be included in the exchange, "there can," said Lincoln, "be no exchanging of prisoners." This decision, while sound, just, and necessary, brought, naturally, a good deal of dissatisfaction to the men in prison and to their friends at home. When I reached Libby in October, I found there men who had been prisoners for six or seven months and who (as far as they lived to get out) were to be prisoners for five months more. Through the winter of 1864-65, the illness and mortality in the Virginia prisons of Libby and Danville were very severe. It was in fact a stupid barbarity on the part of the Confederate authorities to keep any prisoners in Richmond during that last winter of the War. It was not easy to secure by the two lines of road (one of which was continually being cut by our troops) sufficient supplies for Lee's army. It was difficult to bring from the granaries farther south, in addition to the supplies required for the army, food for the inhabitants of the town. It was inevitable under the circumstances that the prisoners should be neglected and that in addition to the deaths from cold (the blankets, the overcoats, and the shoes had been taken from the prisoners because they were needed by the rebel troops) there should be further deaths from starvation.

It was not unnatural that under such conditions the prisoners should have ground not only for bitter indignation with the prison authorities, but for discontent with their own administration. One may in fact be surprised that starving and dying men should have retained any assured spirit of loyalty. When the vote for President came to be counted, we found that we had elected Lincoln by more than three to one. The soldiers felt that Lincoln was the man behind the guns. The prison votes, naturally enough, reached no ballot boxes and my individual ballot in any case would not have been legal as I was at the time but twenty years of age. I can but feel, however, that this vote of the prisoners was typical and important, and I have no

doubt it was so recognised when later the report of the voting reached Washington.

In December, 1864, occurred one of the too-frequent cabals on the part of certain members of the Cabinet. Pressure was brought to bear upon Lincoln to get rid of Seward. Lincoln's reply made clear that he proposed to remain President. He says to the member reporting for himself and his associates the protest against Seward: "I propose to be the sole judge as to the dismissal or appointment of the members of my Cabinet." Lincoln could more than once have secured peace within the Cabinet and a smoother working of the administrative machinery if he had been willing to replace the typical and idiosyncratic men whom he had associated with himself in the government by more commonplace citizens, who would have been competent to carry on the routine responsibilities of their posts. The difficulty of securing any consensus of opinion or any working action between men differing from each other as widely as did Chase, Stanton, Blair, and Seward, in temperament, in judgment, and in honest convictions as to the proper policy for the nation, was an attempt that brought upon the chief daily burdens and many keen anxieties. Lincoln insisted, however, that it was all-important for the proper carrying on of the contest that the Cabinet should contain representatives of the several loyal sections of the country and of the various phases of opinion. The extreme anti-slavery men were entitled to be heard even though their spokesman Chase was often intemperate, ill-judged, bitter, and unfair. The Border States men had a right to be represented and it was all-essential that they should feel that they had a part in the War government even though their spokesman Blair might show himself, as he often did show himself, quite incapable of understanding, much less of sympathising with, the real spirit of the North. Stanton might be truculent and even brutal, but he was willing to work, he knew how to organise, he was devotedly loyal. Seward, scholar and statesman as he was, had been ready to give needless provocation to Europe and was often equally ill-judged in his treatment of the conservative Border States on the one hand and of the New England abolitionists on the other, but Seward was a patriot as well as a scholar and was a representative not only of New York but of the best of the Whig Republican sentiment of the entire North, and Seward could not be spared. It is difficult to recall in

history a government made up of such discordant elements which through the patience, tact, and genius of one man was made to do effective work.

In February, 1865, in response to suggestions from the South which indicated the possibility of peace, Lincoln accepted a meeting with Alexander H. Stephens and two other commissioners to talk over measures for bringing the War to a close. The meeting was held on a gun-boat on the James River. It seems probable from the later history that Stephens had convinced himself that the Confederacy could not conquer its independence and that it only remained to secure the best terms possible for a surrender. On the other hand, Jefferson Davis was not yet prepared to consider any terms short of a recognition of the independence of the Confederacy, and Stephens could act only under the instructions received from Richmond. It was Lincoln's contention that the government of the United States could not treat with rebels (or, dropping the word "rebels," with its own citizens) in arms. "The first step in negotiations, must," said Lincoln, "be the laying down of arms. There is no precedent in history for a government entering into negotiations with its own armed citizens."

"But there is a precedent, Mr. Lincoln," said Stephens, "King Charles of England treated with the Cromwellians."

"Yes," said Lincoln, "I believe that is so. I usually leave historical details to Mr. Seward, who is a student. It is, however, my memory that King Charles lost his head."

It soon became evident that there was no real basis for negotiations, and Stephens and his associates had to return to Richmond disappointed. In the same month, was adopted by both Houses of Congress the Thirteenth Amendment, which prohibited slavery throughout the whole dominion of the United States. By the close of 1865, this amendment had been confirmed by thirty-three States. It is probable that among these thirty-three there were several States the names of which were hardly familiar to some of the older citizens of the South, the men who had accepted the responsibility for the rebellion. The state of mind of these older Southerners in regard more particularly to the resources of the North-west was recalled to me years after the War by an incident related by General Sherman at a dinner of the New England Society. Sherman said that during the march

through Georgia he had found himself one day at noon, when near the head of his column, passing below the piazza of a comfortable-looking old plantation house. He stopped to rest on the piazza with one or two of his staff and was received by the old planter with all the courtliness that a Southern gentleman could show, even to an invader, when doing the honours of his own house. The General and the planter sat on the piazza, looking at the troops below and discussing, as it was inevitable under the circumstances that they must discuss, the causes of the War.

"General," said the planter, "what troops are those passing below?" The General leans over the piazza, and calls to the standard bearers, "Throw out your flag, boys," and as the flag was thrown out, he reports to his host, "The 30th Wisconsin."

"Wisconsin?" said the planter, "Wisconsin? Where is Wisconsin?"

"It is one of the States of the North-west," said Sherman.

"When I was studying geography," said the planter, "I knew of Wisconsin simply as the name of a tribe of Indians. How many men are there in a regiment?"

"Well, there were a thousand when they started," said Sherman.

"Do you mean to say," said the planter, "that there is a State called Wisconsin that has sent thirty thousand men into your armies?"

"Oh, probably forty thousand," answered Sherman.

With the next battalion the questions and the answers are repeated. The flag was that of a Minnesota regiment, say the 32d. The old planter had never heard that there was such a State.

"My God!" he said when he had figured out the thousands of men who had come to the front, from these so-called Indian territories, to maintain the existence of the nation, "If we in the South had known that you had turned those Indian territories into great States, we never should have gone into this war." The incident throws a light upon the state of mind of men in the South, even of well educated men in the South, at the outbreak of the War. They might, of course, have known by statistics that great States had grown

up in the North-west, representing a population of millions and able themselves to put into the field armies to be counted by the thousand. They might have realised that these great States of the North-west were vitally concerned with the necessity of keeping the Mississippi open for their trade from its source to the Gulf of Mexico. They might have known that those States, largely settled from New England, were absolutely opposed to slavery. This knowledge was within their reach but they had not realised the facts of the case. It was their feeling that in the coming contest they would have to do only with New England and the Middle States and they felt that they were strong enough to hold their own against this group of opponents. That feeling would have been justified. The South could never have been overcome and the existence of the nation could never have been maintained if it had not been for the loyal co-operation and the magnificent resources of men and of national wealth that were contributed to the cause by the States of the North-west. In 1880, I had occasion, in talking to the two thousand students of the University of Minnesota, to recall the utterance of the old planter. The students of that magnificent University, placed in a beautiful city of two hundred and fifty thousand inhabitants, found it difficult on their part to realise, amidst their laughter at the ignorance of the old planter, just what the relations of the South had been before the War to the new free communities of the North-west.

In February, 1865, with the fall of Fort Fisher and the capture of Wilmington, the control of the coast of the Confederacy became complete. The Southerners and their friends in Great Britain and the Bahamas (a group of friends whose sympathies for the cause were very much enhanced by the opportunity of making large profits out of their friendly relations) had shown during the years of the War exceptional ingenuity, daring, and persistence in carrying on the blockade-running. The ports of the British West Indies were very handy, and, particularly during the stormy months of the winter, it was hardly practicable to maintain an absolutely assured barrier of blockades along a line of coast aggregating about two thousand miles. The profits on a single voyage on the cotton taken out and on the stores brought back were sufficient to make good the loss of both vessel and cargo in three disastrous trips. The blockade-runners, Southerners and Englishmen, took their lives in their hands and they fairly earned all the returns that came to them. I happened to have early experience of the result

of the fall of Fort Fisher and of the final closing of the last inlet for British goods. I was at the time in prison in Danville, Virginia. I was one of the few men in the prison (the group comprised about a dozen) who had been fortunate enough to retain a tooth-brush. We wore our tooth-brushes fastened into the front button-holes of our blouses, partly possibly from ostentation, but chiefly for the purpose of keeping them from being stolen. I was struck by receiving an offer one morning from the lieutenant of the prison guard of \$300 for my tooth-brush. The "dollars" meant of course Confederate dollars and I doubtless hardly realised from the scanty information that leaked into the prison how low down in February, 1865, Confederate currency had depreciated. But still it was a large sum and the tooth-brush had been in use for a number of months. It then leaked out from a word dropped by the lieutenant that no more English tooth-brushes could get into the Confederacy and those of us who had been studying possibilities on the coast realised that Fort Fisher must have fallen.

In this same month of February, into which were crowded some of the most noteworthy of the closing events of the War, Charleston was evacuated as Sherman's army on its sweep northward passed back of the city. I am not sure whether the fiercer of the old Charlestonians were not more annoyed at the lack of attention paid by Sherman to the fire-eating little city in which four years back had been fired the gun that opened the War, than they would have been by an immediate and strenuous occupation. Sherman had more important matters on hand than the business of looking after the original fire-eaters. He was hurrying northward, close on the heels of Johnston, to prevent if possible the combination of Johnston's troops with Lee's army which was supposed to be retreating from Virginia.

On the 4th of March comes the second inaugural, in which Lincoln speaks almost in the language of a Hebrew prophet. The feeling is strong upon him that the clouds of war are about to roll away but he cannot free himself from the oppression that the burdens of the War have produced. The emphasis is placed on the all-important task of bringing the enmities to a close with the end of the actual fighting. He points out that responsibilities rest upon the North as well as upon the South and he invokes from those who under his leadership are bringing the contest to a triumphant close, their sympathy and their help for their fellow-men who have been overcome. The address is possibly the most impressive utterance ever made by a national leader and it

is most characteristic of the fineness and largeness of nature of the man. I cite the closing paragraph:

"If we shall suppose that slavery is one of those offences which in the providence of God needs must come, and which having continued through His appointed time, He now wills to remove, and that He gives to both North and South this terrible war as the woe to those by whom the offence came, shall we discern therein any departure from those Divine attributes, which the believers in the Living God always ascribe to Him? Fondly do we hope, fervently do we pray, that this mighty scourge of war may speedily pass away. Yet if God wills that it should continue until all the wealth piled by the bondsmen in two hundred and fifty years of unrequited toil shall be sunk, and until every drop of blood drawn with the lash shall be paid for by another drop of blood drawn by the War, as was said two thousand years ago so still it must be said, that the judgments of the Lord are true, and righteous altogether.... With malice towards none, with charity for all, with firmness in the right as God gives us to see the right, let us strive to finish the work we are in, to bind up the nation's wounds, to care for him who shall have borne the battle and for his widow and for his orphans, to do all which may achieve and cherish a just and a lasting peace among ourselves and with all nations."

After the election of 1864, Lincoln's word had been "a common cause, a common interest, and a common country." The invocation in this last inaugural is based upon the understanding that there is again a common country and that in caring for those who have been in the battle and in the binding up of the wounds, there is to be no distinction between the men of the grey and those of the blue.

At the close of February, Lee, who realises that his weakened lines cannot much longer be maintained, proposes to Grant terms of adjustment. Grant replies that his duties are purely military and that he has no authority to

discuss any political relations. On the first of April, the right wing of Lee's army is overwhelmed and driven back by Sheridan at Five Forks, and on the day following Richmond is evacuated by the rear-guard of Lee's army. The defence of Richmond during the long years of the War (a defence which was carried on chiefly from the entrenchments of Petersburg), by the skill of the engineers and by the patient courage of the troops, had been magnificent. It must always take a high rank in the history of war operations. The skilful use made of positions of natural strength, the high skill shown in the construction of works to meet first one emergency and then another, the economic distribution of constantly diminishing resources, the clever disposition of forces, (which during the last year were being steadily reduced from month to month), in such fashion that at the point of probable contact there seemed to be always men enough to make good the defence, these things were evidence of the military skill, the ingenuity, the resourcefulness, and the enduring courage of the leaders. The skill and character of Lee and his associates would however of course have been in vain and the lines would have been broken not in 1865, but in 1863 or in 1862, if it had not been for the magnificent patience and heroism of the rank and file that fought in the grey uniform under the Stars and Bars and whose fighting during the last of those months was done in tattered uniforms and with a ration less by from one quarter to one half than that which had been accepted as normal.

On the second of April, the Stars and Stripes are borne into Richmond by the advance brigade of the right wing of Grant's army under the command of General Weitzel. There was a certain poetic justice in the decision that the responsibility for making first occupation of the city should be entrusted to the coloured troops. The city had been left by the rear-guard of the Confederate army in a state of serious confusion. The Confederate general in charge (Lee had gone out in the advance hoping to be able to break his way through to North Carolina) had felt justified, for the purpose of destroying such army stores (chiefly ammunition) as remained, in setting fire to the storehouses, and in so doing he had left whole quarters of the city exposed to flame. White stragglers and negroes who had been slaves had, as would always be the case where all authority is removed, yielded to the temptation to plunder, and the city was full of drunken and irresponsible men. The coloured troops restored order and appear to have behaved with

perfect discipline and consideration. The marauders were arrested, imprisoned, and, when necessary, shot. The fires were put out as promptly as practicable, but not until a large amount of very unnecessary damage and loss had been brought upon the stricken city. The women who had locked themselves into their houses, more in dread of the Yankee invader than of their own street marauders, were agreeably surprised to find that their immediate safety and the peace of the town depended upon the invaders and that the first battalions of these were the despised and much hated blacks.

Upon the 4th of April, against the counsel and in spite of the apprehensions of nearly all his advisers, Lincoln insisted upon coming down the river from Washington and making his way into the Rebel capital. There was no thought of vaingloriousness or of posing as the victor. He came under the impression that some civil authorities would probably have remained in Richmond with whom immediate measures might be taken to stop unnecessary fighting and to secure for the city and for the State a return of peaceful government. Thomas Nast, who while not a great artist was inspired to produce during the War some of the most graphic and storytelling records in the shape of pictures of events, made a drawing which was purchased later by the New York Union League Club, showing Lincoln on his way through Main Street, with the coloured folks of the town and of the surrounding country crowding about the man whom they hailed as their deliverer, and in their enthusiastic adoration trying to touch so much as the hem of his garment. The picture is history in showing what actually happened and it is pathetic history in recalling how great were the hopes that came to the coloured people from the success of the North and from the certainty of the end of slavery. It is sad to recall the many disappointments that during the forty years since the occupation of Richmond have hampered the uplifting of the race. Lincoln's hope that some representative of the Confederacy might have remained in Richmond, if only for the purpose of helping to bring to a close as rapidly as possible the waste and burdens of continued war, was not realised. The members of the Confederate government seem to have been interested only in getting away from Richmond and to have given no thought to the duty they owed to their own people to cooperate with the victors in securing a prompt return of law and order.

On the 9th of April, came the surrender of Lee at Appomattox, four years, less three days, from the date of the firing of the first gun of the War at Charleston. The muskets turned in by the ragged and starving files of the remnants of Lee's army represented only a small portion of those which a few days earlier had been holding the entrenchments at Petersburg. As soon as it became evident that the army was not going to be able to break through the Federal lines and begin a fresh campaign in North Carolina, the men scattered from the retreating columns right and left, in many cases carrying their muskets to their own homes as a memorial fairly earned by plucky and persistent service. There never was an army that did better fighting or that was better deserving of the recognition, not only of the States in behalf of whose so-called "independence" the War had been waged, but on the part of opponents who were able to realise the character and the effectiveness of the fighting.

The scene in the little farm-house where the two commanders met to arrange the terms of surrender was dramatic in more ways than one. General Lee had promptly given up his own baggage waggon for use in carrying food for the advance brigade and as he could save but one suit of clothes, he had naturally taken his best. He was, therefore, notwithstanding the fatigues and the privations of the past week, in full dress uniform. He was one of the handsomest men of his generation, and his beauty was not only of feature but of expression of character. Grant, who never gave much thought to his personal appearance, had for days been away from his baggage train, and under the urgency of keeping as near as possible to the front line with reference to the probability of being called to arrange terms for surrender, he had not found the opportunity of securing a proper coat in place of his fatigue blouse. I believe that even his sword had been mislaid, but he was able to borrow one for the occasion from a staff officer. When the main details of the surrender had been talked over, Grant looked about the group in the room, which included, in addition to two staff officers who had come with Lee, a group of five or six of his own assistants, who had managed to keep up with the advance, to select the aid who should write out the paper. His eye fell upon Colonel Ely Parker, a brigade commander who had during the past few months served on Grant's staff. "Colonel Parker, I will ask you," said Grant, "as the only real American in the room, to draft

this paper." Parker was a full-blooded Indian, belonging to one of the Iroquois tribes of New York.

Grant's suggestion that the United States had no requirement for the horses of Lee's army and that the men might find these convenient for "spring ploughing" was received by Lee with full appreciation. The first matter in order after the completion of the surrender was the issue of rations to the starving Southern troops. "General Grant," said Lee, "a train was ordered by way of Danville to bring rations to meet my army and it ought to be now at such a point," naming a village eight or nine miles to the south-west. General Sheridan, with a twinkle in his eye, now put in a word: "The train from the south is there, General Lee, or at least it was there yesterday. My men captured it and the rations will be available." General Lee turns, mounts his old horse Traveller, a valued comrade, and rides slowly through the ranks first of the blue and then of the grey. Every hat came off from the men in blue as an expression of respect to a great soldier and a true gentleman, while from the ranks in grey there was one great sob of passionate grief and finally, almost for the first time in Lee's army, a breaking of discipline as the men crowded forward to get a closer look at, or possibly a grasp of the hand of, the great leader who had fought and failed but whose fighting and whose failure had been so magnificent.

IX

LINCOLN'S TASK ENDED

On the 11th of April, Lincoln makes his last public utterance. In a brief address to some gathering in Washington, he says, "There will shortly be announcement of a new policy." It is hardly to be doubted that the announcement which he had in mind was to be concerned with the problem of reconstruction. He had already outlined in his mind the essential principles on which the readjustment must be made. In this same address, he points out that "whether or not the seceded States be out of the Union, they are out of their proper relations to the Union." We may feel sure that he would not have permitted the essential matters of readjustment to be delayed while political lawyers were arguing over the constitutional issue. On one side was the group which maintained that in instituting the Rebellion and in doing what was in their power to destroy the national existence, the people of the seceding States had forfeited all claims to the political liberty of their communities. According to this contention, the Slave States were to be treated as conquered territory, and it simply remained for the government of the United States to reshape this territory as might be found convenient or expedient. According to the other view, as secession was itself something which was not to be admitted, being, from the constitutional point of view, impossible, there never had in the legal sense of the term been any secession. The instant the armed rebellion had been brought to an end, the rebelling States were to be considered as having resumed their old-time relations with the States of the North and with the central government. They were under the same obligations as before for taxation, for subordination in foreign relations, and for the acceptance of the control of the Federal government on all matters classed as Federal. On the other hand, they were entitled to the privileges that had from the beginning been exercised by independent States: namely, the control of their local affairs on matters not classed as Federal, and they had a right to their proportionate representation in Congress and to their proportion of the

electoral vote for President. It has been very generally recognised in the South as in the North that if Lincoln could have lived, some of the most serious of the difficulties that arose during the reconstruction period through the friction between these conflicting theories would have been avoided. The Southerners would have realised that the head of the government had a cordial and sympathetic interest in doing what might be practicable not only to re-establish their relations as citizens of the United States, but to further in every way the return of their communities to prosperity, a prosperity which, after the loss of the property in their slaves and the enormous destruction of their general resources, seemed to be sadly distant.

On the 14th of April, comes the dramatic tragedy ending on the day following in the death of Lincoln. The word dramatic applies in this instance with peculiar fitness. While the nation mourned for the loss of its leader, while the soldiers were stricken with grief that their great captain should have been struck down, while the South might well be troubled that the control and adjustment of the great interstate perplexities was not to be in the hands of the wise, sympathetic, and patient ruler, for the worker himself the rest after the four years of continuous toil and fearful burdens and anxieties might well have been grateful. The great task had been accomplished and the responsibilities accepted in the first inaugural had been fulfilled.

In March, 1861, Lincoln had accepted the task of steering the nation through the storm of rebellion, the divided opinions and counsels of friends, and the fierce onslaught of foes at home and abroad. In April, 1865, the national existence was assured, the nation's credit was established, the troops were prepared to return to their homes and resume their work as citizens. At no time in history had any people been able against such apparently overwhelming perils and difficulties to maintain a national existence. There was, therefore, notwithstanding the great misfortune, for the people South and North, in the loss of the wise ruler at a time when so many difficulties remained to be adjusted, a dramatic fitness in having the life of the leader close just as the last army of antagonists was laying down its arms. The first problem of the War that came to the administration of 1861 was that of restoring the flag over Fort Sumter. On the 14th of April, the day when Booth's pistol was laying low the President, General

Anderson, who four years earlier had so sturdily defended Sumter, was fulfilling the duty of restoring the Stars and Stripes.

The news of the death of Lincoln came to the army of Sherman, with which my own regiment happened at the time to be associated, on the 17th of April. On leaving Savannah, Sherman had sent word to the north to have all the troops who were holding posts along the coasts of North Carolina concentrated on a line north of Goldsborough. It was his dread that General Johnston might be able to effect a junction with the retreating forces of Lee and it was important to do whatever was practicable, either with forces or with a show of forces, to delay Johnston and to make such combination impossible. A thin line of Federal troops was brought into position to the north of Johnston's advance, but Sherman himself kept so closely on the heels of his plucky and persistent antagonist that, irrespective of any opposing line to the north, Johnston would have found it impossible to continue his progress towards Virginia. He was checked at Goldsborough after the battle of Bentonville and it was at Goldsborough that the last important force of the Confederacy was surrendered.

We soldiers learned only later some of the complications that preceded that surrender. President Davis and his associates in the Confederate government had, with one exception, made their way south, passing to the west of Sherman's advance. The exception was Post-master-General Reagan, who had decided to remain with General Johnston. He appears to have made good with Johnston the claim that he, Reagan, represented all that was left of the Confederate government. He persuaded Johnston to permit him to undertake the negotiations with Sherman, and he had, it seems, the ambition of completing with his own authority the arrangements that were to terminate the War. Sherman, simple-hearted man that he was, permitted himself, for the time, to be confused by Reagan's semblance of authority. He executed with Reagan a convention which covered not merely the surrender of Johnston's army but the preliminaries of a final peace. This convention was of course made subject to the approval of the authorities in Washington. When it came into the hands of President Johnson, it was, under the counsel of Seward and Stanton, promptly disavowed. Johnson instructed Grant, who had reported to Washington from Appomattox, to make his way at once to Goldsborough and, relieving Sherman, to arrange for the surrender of Johnston's army on the terms of Appomattox. Grant's

response was characteristic. He said in substance: "I am here, Mr. President, to obey orders and under the decision of the Commander-in-chief I will go to Goldsborough and will carry out your instructions. I prefer, however, to act as a messenger simply. I am entirely unwilling to take out of General Sherman's hands the command of the army that is so properly Sherman's army and that he has led with such distinctive success. General Sherman has rendered too great a service to the country to make it proper to have him now humiliated on the ground of a political blunder, and I at least am unwilling to be in any way a party to his humiliation."

Stanton was disposed to approve of Johnson's first instruction and to have Sherman at once relieved, but the man who had just come from Appomattox was too strong with the people to make it easy to disregard his judgment on a matter which was in part at least military. The President was still new to his office and he was still prepared to accept counsel. The matter was, therefore, arranged as Grant desired. Grant took the instructions and had his personal word with Sherman, but this word was so quietly given that none of the men in Sherman's army, possibly no one but Sherman himself, knew of Grant's visit. Grant took pains so to arrange the last stage of his journey that he came into the camp at Goldsborough well after dark, and, after an hour's interview with Sherman, he made his way at once northward outside of our lines and of our knowledge.

On Grant's arrival, Sherman at once assumed that he was to be superseded. "No, no," said Grant; "do you not see that I have come without even a sword? There is here no question of superseding the commander of this army, but simply of correcting an error and of putting things as they were. This convention must be cancelled. You will have no further negotiation with Mr. Reagan or with any civilian claiming to represent the Confederacy. Your transactions will be made with the commander of the Confederate army, and you will accept the surrender of that army on the terms that were formulated at Appomattox." Sherman was keen enough to understand what must have passed in Washington, and was able to appreciate the loyal consideration shown by General Grant in the successful effort to protect the honour and the prestige of his old comrade. The surrender was carried out on the 26th of April, eleven days after the death of Lincoln. Johnston's troops, like those of Lee, were distributed to their homes. The officers retained their side-arms, and the men, leaving their rifles, took with them

not only such horses and mules as they still had with them connected with the cavalry or artillery, but also a number of horses and mules which had been captured by Sherman's army and which had not yet been placed on the United States army roster. Sherman understood, as did Grant, the importance of giving to these poor farmers whatever facilities might be available to enable them again to begin their home work. Word was at once sent to General Johnston after Grant's departure that the only terms that could be considered was a surrender of the army, and that the details of such surrender Sherman would himself arrange with Johnston. Reagan slipped away southward and is not further heard of in history.

The record of Lincoln's relations to the events of the War would not be complete without a reference to the capture of Jefferson Davis. On returning to Washington after his visit to Richmond, Lincoln had been asked what should be done with Davis when he was captured. The answer was characteristic: "I do not see," said Lincoln, "that we have any use for a white elephant." Lincoln's clear judgment had at once recognised the difficulties that would arise in case Davis should become a prisoner. The question as to the treatment of the ruler of the late Confederacy was very different from, and much more complicated than, the fixing of terms of surrender for the Confederate armies. If Davis had succeeded in getting out of the country, it is probable that the South, or at least a large portion of the South, would have used him as a kind of a scapegoat. Many of the Confederate soldiers were indignant with Davis for his bitter animosities to some of their best leaders. Davis was a capable man and had in him the elements of statesmanship. He was, however, vain and, like some other vain men, placed the most importance upon the capacities in which he was the least effective. He had had a brief and creditable military experience, serving as a lieutenant with Scott's army in Mexico, and he had impressed himself with the belief that he was a great commander. Partly on this ground, and partly apparently as a result of general "incompatibility of temper," Davis managed to quarrel at different times during the War with some of the generals who had shown themselves the most capable and the most serviceable. He would probably have quarrelled with Lee, if it had been possible for any one to make quarrel relations with that fine-natured gentleman, and if Lee had not been too strongly entrenched in the hearts of his countrymen to make any interference with him unwise, even for the

President. Davis had, however, managed to interfere very seriously with the operations of men like Beauregard, Sidney Johnson, Joseph Johnston, and other commanders whose continued leadership was most important for the Confederacy. It was the obstinacy of Davis that had protracted the War through the winter and spring of 1865, long after it was evident from the reports of Lee and of the other commanders that the resources of the Confederacy were exhausted and that any further struggle simply meant an inexcusable loss of life on both sides. As a Northern soldier who has had experience in Southern prisons, I may be excused also from bearing in mind the fearful responsibility that rests upon Davis for the mismanagement of those prisons, a mismanagement which caused the death of thousands of brave men on the frozen slopes of Belle Isle, on the foul floors of Libby and Danville, and on the rotten ground used for three years as a living place and as a dying place within the stockade at Andersonville. Davis received from month to month the reports of the conditions in these and in the other prisons of the Confederacy. Davis could not have been unaware of the stupidity and the brutality of keeping prisoners in Richmond during the last winter of the War when the lines of road still open were absolutely inadequate to supply the troops in the trenches or the people of the town. Reports were brought to Davis more than once from Andersonville showing that a large portion of the deaths that were there occurring were due to the vile and rotten condition of the hollow in which for years prisoners had been huddled together; but the appeal made to Richmond for permission to move the stockade to a clean and dry slope was put to one side as a matter of no importance. The entire authority in the matter was in the hands of Davis and a word from him would have remedied some of the worst conditions. He must share with General Winder, the immediate superintendent of the prisons, the responsibility for the heedless and brutal mismanagement,—a mismanagement which brought death to thousands and which left thousands of others cripples for life.

As a result of the informal word given by Lincoln, it was generally understood, by all the officers, at least, in charge of posts and picket lines along the eastern slope, that Davis was not to be captured. Unfortunately it had not proved possible to get this informal expression of a very important piece of policy conveyed throughout the lines farther west. An enterprising and over-zealous captain of cavalry, riding across from the Mississippi to

the coast, heard of Davis's party in Florida and, "butting in," captured, on May 10th, "the white elephant."

The last commands of the Confederate army were surrendered with General Taylor in Louisiana on the 4th of May and with Kirby Smith in Texas on the 26th of May. As Lincoln had foreshadowed, not a few complications resulted from this unfortunate capture of Davis, complications that were needlessly added to by the lack of clear-headedness or of definite policy on the part of a confused and vacillating President. During the months in which Davis was a prisoner at Fortress Monroe, and while the question of his trial for treason was being fiercely debated in Washington, the sentiment of the Confederacy naturally concentrated upon its late President. He was, as the single prisoner, the surviving emblem of the contest. His vanities, irritability, and blunders were forgotten. It was natural that, under the circumstances, his people, the people of the South, should hold in memory only the fact that he had been their leader and that he had through four strenuous years borne the burdens of leadership with unflagging zeal, with persistent courage, and with an almost foolhardy hopefulness. He had given to the Confederacy the best of his life, and he was entitled to the adoration that the survivors of the Confederacy gave to him as representing the ideal of the lost cause.

The feeling with which Lincoln was regarded by the men in the front, for whom through the early years of their campaigning he had been not only the leader but the inspiration, was indicated by the manner in which the news of his death was received. I happened myself on the day of those sad tidings to be with my division in a little village just outside of Goldsborough, North Carolina. We had no telegraphic communication with the North, but were accustomed to receive despatches about noon each day, carried across the swamps from a station through which connection was made with Wilmington and the North. In the course of the morning, I had gone to the shanty of an old darky whom I had come to know during the days of our sojourn, for the purpose of getting a shave. The old fellow took up his razor, put it down again and then again lifted it up, but his arm was shaking and I saw that he was so agitated that he was not fitted for the task. "Massa," he said, "I can't shave yer this mornin'." "What is the matter?" I inquired. "Well," he replied, "somethin's happened to Massa Linkum." "Why!" said I, "nothing has happened to Lincoln. I know what there is to be

known. What are you talking about?" "Well!" the old man replied with a half sob, "we coloured folks—we get news or we get half news sooner than you-uns. I dun know jes' what it is, but somethin' has gone wrong with Massa Linkum." I could get nothing more out of the old man, but I was sufficiently anxious to make my way to Division headquarters to see if there was any news in advance of the arrival of the regular courier. The coloured folks were standing in little groups along the village street, murmuring to each other or waiting with anxious faces for the bad news that they were sure was coming. I found the brigade adjutant and those with him were puzzled like myself at the troubled minds of the darkies, but still sceptical as to the possibility of any information having reached them which was not known through the regular channels.

At noon, the courier made his appearance riding by the wood lane across the fields; and the instant he was seen we all realised that there was bad news. The man was hurrying his pony and yet seemed to be very unwilling to reach the lines where his report must be made. In this instance (as was, of course, not usually the case) the courier knew what was in his despatches. The Division Adjutant stepped out on the porch of the headquarters with the paper in his hand, but he broke down before he could begin to read. The Division Commander took the word and was able simply to announce: "Lincoln is dead." The word "President" was not necessary and he sought in fact for the shortest word. I never before had found myself in a mass of men overcome by emotion. Ten thousand soldiers were sobbing together. No survivor of the group can recall the sadness of that morning without again being touched by the wave of emotion which broke down the reserve and control of these war-worn veterans on learning that their great captain was dead.

The whole people had come to have with the President a relation similar to that which had grown up between the soldiers and their Commander-in-chief. With the sympathy and love of the people to sustain him, Lincoln had over them an almost unlimited influence. His capacity for toil, his sublime patience, his wonderful endurance, his great mind and heart, his out-reaching sympathies, his thoughtfulness for the needs and requirements of all, had bound him to his fellow-citizens by an attachment of genuine sentiment. His appellation throughout the country had during the last year of the war become "Father Abraham." We may recall in the thought of this

relation to the people the record of Washington. The first President has come into history as the "Father of his Country," but for Washington this rôle of father is something of historic development. During Washington's lifetime, or certainly at least during the years of his responsibilities as General and as President, there was no such general recognition of the leader and ruler as the father of his country. He was dear to a small circle of intimates; he was held in respectful regard by a larger number of those with whom were carried on his responsibilities in the army, and later in the nation's government. To many good Americans, however, Washington represented for years an antagonistic principle of government. He was regarded as an aristocrat and there were not a few political leaders, with groups of voters behind them, who dreaded, and doubtless honestly dreaded, that the influence of Washington might be utilised to build up in this country some fresh form of the monarchy that had been overthrown. The years of the Presidency had to be completed and the bitter antagonisms of the seven years' fighting and of the issues of the Constitution-building had to be outgrown, before the people were able to recognise as a whole the perfect integrity of purpose and consistency of action of their great leader, the first President. Even then when the animosities and suspicions had died away, while the people were ready to honour the high character and the accomplishments of Washington, the feeling was one of reverence rather than of affection. This sentiment gave rise later to the title of the "Father of his Country"; but there was no such personal feeling towards Washington as warranted, at least during his life, the term father of the people. Thirty years later, the ruler of the nation is Andrew Jackson, a man who was, like Lincoln, eminently a representative of the common people. His fellow-citizens knew that Jackson understood their feelings and their methods and were ready to have full confidence in Jackson's patriotism and honesty of purpose. His nature lacked, however, the sweet sympathetic qualities that characterised Lincoln; and while to a large body of his fellow-citizens he commended himself for sturdiness, courage, and devotion to the interests of the state, he was never able for himself to overcome the feeling that a man who failed to agree with a Jackson policy must be either a knave or a fool. He could not place himself in the position from which the other fellow was thinking or acting. He believed that it was his duty to maintain what he held to be the popular cause against the "schemes of the aristocrats," the bugbear of that day. He was a fighter from his youth up and his theory of

government was that of enforcing the control of the side for which he was the partisan. Such a man could never be accepted as the father of the people.

Lincoln, coming from those whom he called the common people, feeling with their feelings, sympathetic with their needs and ideals, was able in the development of his powers to be accepted as the peer of the largest intellects in the land. While knowing what was needed by the poor whites of Kentucky, he could understand also the point of view of Boston, New York, or Philadelphia. In place of emphasising antagonisms, he held consistently that the highest interest of one section of the country must be the real interest of the whole people, and that the ruler of the nation had upon him the responsibility of so shaping the national policy that all the people should recognise the government as their government. It was this large understanding and width of sympathy that made Lincoln in a sense which could be applied to no other ruler of this country, the people's President, and no other ruler in the world has ever been so sympathetically, so effectively in touch with all of the fellow-citizens for whose welfare he made himself responsible. The Latin writer, Aulus Gellius, uses for one of his heroes the term "a classic character." These words seem to me fairly to apply to Abraham Lincoln.

An appreciative Englishman, writing in the London *Nation* at the time of the Centennial commemoration, says of Lincoln:

The greatness of Lincoln was that of a common man raised to a high dimension. The possibility, still more the existence, of such a man is itself a justification of democracy. We do not say that so independent, so natural, so complete a man cannot in older societies come to wield so large a power over the affairs and the minds of men; we can only say that amid all the stirring movements of the nineteenth century he has not so done. The existence of what may be called a widespread commonalty explains the rarity of personal eminence in America. There has been and still remains a higher general level of personality than in any European country, and the degree of eminence is correspondingly

reduced. It is just because America has stood for opportunity that conspicuous individuals have been comparatively rare. Strong personality, however, has not been rare; it is the abundance of such personality that has built up silently into the rising fabric of the American Commonwealth, pioneers, roadmakers, traders, lawyers, soldiers, teachers, toiling terribly over the material and moral foundation of the country, few of whose names have emerged or survived. Lincoln was of this stock, was reared among these rude energetic folk, had lived all those sorts of lives. He was no "sport"; his career is a triumphant refutation of the traditional views of genius. He had no special gift or quality to distinguish him; he was simply the best type of American at a historic juncture when the national safety wanted such a man. The confidence which all Americans express that their country will be equal to any emergency which may threaten it, is not so entirely superstitious as it seems at first sight. For the career of Lincoln shows how it has been done in a country where the "necessary man" can be drawn not from a few leading families, or an educated class, but from the millions.

Rabbi Schechter, in an eloquent address delivered at the Centennial celebration, speaks of Lincoln's personality as follows:

The half century that has elapsed since Lincoln's death has dispelled the mists that encompassed him on earth. Men now not only recognise the right which he championed, but behold in him the standard of righteousness, of liberty, of conciliation, and truth. In him, as it were personified, stands the Union, all that is best and noblest and enduring in its principles in which he devoutly believed and served mightily to save. When to-day, the world celebrates the century of his existence, he has become the ideal of both North and South, of a common country, composed not only of the factions

that once confronted each other in war's dreadful array, but of the myriad thousands that have since found in the American nation the hope of the future and the refuge from age-entrenched wrong and absolutism. To them, Lincoln, his life, his history, his character, his entire personality, with all its wondrous charm and grace, its sobriety, patience, self-abnegation, and sweetness, has come to be the very prototype of a rising humanity.

Carl Schurz, himself a man of large nature and wide and sympathetic comprehension, says of Lincoln:

In the most conspicuous position of the period, Lincoln drew upon himself the scoffs of polite society; but even then he filled the souls of mankind with utterances of wonderful beauty and grandeur. It was distinctly the weird mixture in him of qualities and forces, of the lofty with the common, the ideal with the uncouth, of that which he had become with that which he had not ceased to be, that made him so fascinating a character among his fellow-men, that gave him his singular power over minds and hearts, that fitted him to be the greatest leader in the greatest crisis of our national life.

He possessed the courage to stand alone—that courage which is the first requisite of leadership in a great cause. The charm of Lincoln's oratory flooded all the rare depth and genuineness of his convictions and his sympathetic feelings were the strongest element in his nature. He was one of the greatest Americans and the best of men.

The poet Whittier writes:

The weary form that rested not
Save in a martyr's grave;
The care-worn face that none forgot,
Turned to the kneeling slave.

We rest in peace where his sad eyes
Saw peril, strife, and pain;
His was the awful sacrifice,
And ours the priceless gain.

Says Bryant:

That task is done, the bound are free,
We bear thee to an honoured grave,
Whose noblest monument shall be
The broken fetters of the slave.

Pure was thy life; its bloody close
Hath blessed thee with the sons of light,
Among the noble host of those
Who perished in the cause of right.

Says Lowell:

Our children shall behold his fame,
The kindly-earnest, brave, foreseeing man,
Sagacious, patient, dreading praise, not blame;
New birth of our new soil, the first American.

Ordinary men die when their physical life is brought to a close, if perhaps not at once, yet in a brief space, with the passing of the little circle of those to whom they were dear.

The man of distinction lives for a time after death. His achievements and his character are held in appreciative remembrance by the community and the generation he has served. The waves of his influence ripple out in a somewhat wider circle before being lost in the ocean of time. We call that man great to whom it is given so to impress himself upon his fellow-men by deed, by creation, by service to the community, by character, by the inspiration from on high that has been breathed through his soul, that he is not permitted to die. Such a man secures immortality in this world. The knowledge and the influence of his life are extended throughout mankind and his memory gathers increasing fame from generation to generation.

It is thus that men are to-day honouring the memory of Abraham Lincoln. To-day, one hundred years after his birth, and nearly half a century since the dramatic close of his life's work, Lincoln stands enshrined in the thought and in the hearts of his countrymen. He is our "Father Abraham," belonging to us, his fellow-citizens, for ideals, for inspiration, and for affectionate regard; but he belongs now also to all mankind, for he has been canonised among the noblest of the world's heroes.

APPENDIX

THE ADDRESS OF ABRAHAM LINCOLN

Delivered at Cooper Institute, New York,

February 27, 1860.

With Introduction by Charles C. Nott; Historical and Analytical Notes by Charles C. Nott and Cephas Brainerd, and with the Correspondence between Mr. Lincoln and Mr. Nott as Representative of the Committee of the Young Men's Republican Union.

INTRODUCTORY NOTE

The address delivered by Lincoln at the Cooper Institute in February, 1860 in response to the invitation of certain representative New Yorkers, was, as well in its character as in its results, the most important of all of his utterances.

The conscientious study of the historical and constitutional record, and the arguments and conclusions based upon the analysis of this record, were accepted by the Republican leaders as constituting the principles and the policy to be maintained during the Presidential campaign of 1860, a campaign in which was involved not merely the election of a President, but the continued existence of the republic.

Under the wise counsels represented by the words of Lincoln, the election was fought out substantially on two contentions:

First, that the compact entered into by the Fathers and by their immediate successors should be loyally carried out, and that slavery should not be interfered with in the original slave States, or in the additional territory that had been conceded to it under the Missouri Compromise; and, secondly, that not a single further square mile of soil, that was still free, should be left available, or should be made available, for the incursion of slavery.

It was the conviction of Lincoln and of his associates, as it had been the conviction of the Fathers, that under such a restriction slavery must certainly in the near future come to an end. It was because these convictions, both in the debates with Douglas and in the Cooper Institute speech, were presented by Lincoln more forcibly and more conclusively than had been done by any other political leader, that Lincoln secured the nomination and the presidency. The February address was assuredly a deciding factor in the great issue of the time, and it certainly belongs, therefore, with the historic documents of the republic.

G.H.P.

NEW YORK, September 1, 1909.

CORRESPONDENCE WITH LINCOLN, NOTT, AND BRAINERD

(From Robert Lincoln)

MANCHESTER, VERMONT,

July 27, 1909.

DEAR MAJOR PUTNAM:

Your letter of July 23rd reaches me here, and I beg to express my thanks for your kind remembrances of me in London.... I am much interested in learning that you were present at the time my father made his speech at Cooper Institute. I, of course, remember the occasion very well, although I was not present. I was at that time in the middle of my year at Phillips Exeter Academy, preparing for the Harvard entrance examination of the summer of 1860.... After the Cooper Institute address, my father came to Exeter to see how I was getting along, and this visit resulted in his making a number of speeches in New England on his way and on his return, and at Exeter he wrote to my mother a letter which was mainly concerned with me, but which did make reference to these speeches.... He said that he had had some embarrassment with these New England speeches, because in coming East he had anticipated making no speech excepting the one at the Cooper Institute, and he had not prepared himself for anything else.... In the later speeches, he was addressing reading audiences who had, as he thought probable, seen the report of his Cooper Institute speech, and he was obliged, therefore, from day to day (he made about a dozen speeches in New England in all) to bear that fact in mind.

Sincerely yours,
ROBERT LINCOLN.

(From Judge Nott)

WILLIAMSTOWN, MASS.,

July 26, 1909.

DEAR PUTNAM:

I consider it very desirable that the report of Mr. Lincoln's speech, embodying the final revision, should be preserved in book form.... The text in the pamphlet now in your hands is authentic and conclusive. Mr. Lincoln read the proof both of the address and of the notes. I am glad that you are to include in your reprint the letters from Mr. Lincoln, as these letters authenticate this copy of the address as the copy which was corrected by him with his own hand....

The preface to the address, written in September, 1860, has interest because it shows what we thought of the address at that time.... Your worthy father was, if I remember rightly, one of the vice-presidents of the meeting....

Yours faithfully,

CHARLES C. NOTT.

(From Cephas Brainerd)

NEW YORK, August 18, 1909.

DEAR MAJOR PUTNAM:

I am very glad to learn that there is good prospect that the real Lincoln Cooper Institute address, with the evidence in regard to it, will now be available for the public.... I am glad also that with the address you are proposing to print the letters received by Judge Nott from Mr. Lincoln. One or two of these have, unfortunately, not been preserved. I recall in one an observation made by Lincoln to the effect that he "was not much of a literary man."

I did not see much of Mr. Lincoln when he was in New York, as my most active responsibility in regard to the meeting was in getting up an audience.... I remember in handing some weeks earlier to John Sherman, who, like Lincoln, had never before spoken in New York, five ten-dollar gold pieces, that he said he "had not expected his expenses to be paid." At a lunch that was given to Sherman a long time afterward, I referred to that meeting. Sherman cocked his eye at me and said: "Yes, I remember it very well; I never was so scar't in all my life." ...

The observations of Judge Nott in regard to the meeting are about as just as anything that has ever been put into print, and as I concur fully in the accuracy of these recollections, I do not undertake to give my own impressions at any length. I was expecting to hear some specimen of Western stump-speaking as it was then understood. You will, of course, observe that the speech contains nothing of the kind. I do remember, however, that Lincoln spoke of the condition of feeling between the North and the South.... He refers to the treatment which Northern men received in the South, and he remarked, parenthetically, that he had never known of a man who had been able "to whip his wife into loving him," an observation that produced laughter.

In making up the notes, we ransacked, as you may be sure, all the material available in the libraries in New York, and I also had interviews as to one special point with Mr. Bancroft, with Mr. Hildreth, and with Dr. William Goodell, who was in those times a famous anti-slavery man.

Your father^[3] and William Curtis Noyes were possibly more completely in sympathy than any other two men in New York, with the efforts of these younger men; they impressed me as standing in that respect on the same plane. The next man to them was Charles Wyllis Elliott, the author of a *History of New England*. We never went to your father for advice or assistance when he failed to help us, and he was always so kindly and gentle in what he did and said that every one of us youngsters acquired for him a very great affection. He always had time to see us and was always on hand when he was wanted, and if we desired to have anything, we got it if he had it. Neither your father, nor Mr. Noyes, nor for that matter Mr. Elliott, ever suggested that we were "young" or "fresh" or anything of that sort. The enthusiasm which young fellows have was always recognised by these men as an exceedingly valuable asset in the cause.... Pardon all this from a "veteran," and believe me,

Sincerely yours,

CEPHAS BRAINERD.

INTRODUCTION

BY CHARLES C. NOTT

The Cooper Institute address is one of the most important addresses ever delivered in the life of this nation, for at an eventful time it changed the course of history. When Mr. Lincoln rose to speak on the evening of February 27, 1860, he had held no administrative office; he had endeavoured to be appointed Commissioner of Patents, and had failed; he had sought to be elected United States Senator, and had been defeated; he had been a member of Congress, yet it was not even remembered; he was a lawyer in humble circumstances, persuasive of juries, but had not reached the front rank of the Illinois Bar. The record which Mr. Lincoln himself placed in the Congressional Directory in 1847 might still be taken as the record of his public and official life: "Born February 12th, 1809, in Hardin County, Kentucky. Education defective. Profession a lawyer. Have been a captain of volunteers in the Black Hawk War. Postmaster in a very small office. Four times a member of the Illinois Legislature and a member of the lower house of Congress." Was this the record of a man who should be made the head of a nation in troubled times? In the estimation of thoughtful Americans east of the Alleghanies all that they knew of Mr. Lincoln justified them in regarding him as only "a Western stump orator"—successful, distinguished, but nothing higher than that—a Western stump orator, who had dared to brave one of the strongest men in the Western States, and who had done so with wonderful ability and moral success. When Mr. Lincoln closed his address he had risen to the rank of statesman, and had stamped himself a statesman peculiarly fitted for the exigency of the hour.

Mr. William Cullen Bryant presided at the meeting; and a number of the first and ablest citizens of New York were present, among them Horace Greeley. Mr. Greeley was pronounced in his appreciation of the address; it was the ablest, the greatest, the wisest speech that had yet been made; it

would reassure the conservative Northerner; it was just what was wanted to conciliate the excited Southerner; it was conclusive in its argument, and would assure the overthrow of Douglas. Mr. Horace White has recently written: "I chanced to open the other day his Cooper Institute speech. This is one of the few printed speeches that I did not hear him deliver in person. As I read the concluding pages of that speech, the conflict of opinion that preceded the conflict of arms then sweeping upon the country like an approaching solar eclipse seemed prefigured like a chapter of the Book of Fate. Here again he was the Old Testament prophet, before whom Horace Greeley bowed his head, saying that he had never listened to a greater speech, although he had heard several of Webster's best." Later, Mr. Greeley became the leader of the Republican forces opposed to the nomination of Mr. Seward and was instrumental in concentrating those forces upon Mr. Lincoln. Furthermore, the great New York press on the following morning carried the address to the country, and before Mr. Lincoln left New York he was telegraphed from Connecticut to come and aid in the campaign of the approaching spring election. He went, and when the fateful moment came in the Convention, Connecticut was one of the Eastern States which first broke away from the Seward column and went over to Mr. Lincoln. When Connecticut did this, the die was cast.

It is difficult for younger generations of Americans to believe that three months before Mr. Lincoln was nominated for the Presidency he was neither appreciated nor known in New York. That fact can be better established by a single incident than by the opinions and assurances of a dozen men.

After the address had been delivered, Mr. Lincoln was taken by two members of the Young Men's Central Republican Union—Mr. Hiram Barney, afterward Collector of the Port of New York, and Mr. Nott, one of the subsequent editors of the address—to their club, The Athenæum, where a very simple supper was ordered, and five or six Republican members of the club who chanced to be in the building were invited in. The supper was informal—as informal as anything could be; the conversation was easy and familiar; the prospects of the Republican party in the coming struggle were talked over, and so little was it supposed by the gentlemen who had not heard the address that Mr. Lincoln could possibly be the candidate that one of them, Mr. Charles W. Elliott, asked, artlessly: "Mr. Lincoln, what

candidate do you really think would be most likely to carry Illinois?" Mr. Lincoln answered by illustration: "Illinois is a peculiar State, in three parts. In northern Illinois, Mr. Seward would have a larger majority than I could get. In middle Illinois, I think I could call out a larger vote than Mr. Seward. In southern Illinois, it would make no difference who was the candidate." This answer was taken to be merely illustrative by everybody except, perhaps, Mr. Barney and Mr. Nott, each of whom, it subsequently appeared, had particularly noted Mr. Lincoln's reply.

The little party broke up. Mr. Lincoln had been cordially received, but certainly had not been flattered. The others shook him by the hand and, as they put on their overcoats, said: "Mr. Nott is going down town and he will show you the way to the Astor House." Mr. Lincoln and Mr. Nott started on foot, but the latter observing that Mr. Lincoln was apparently walking with some difficulty said, "Are you lame, Mr. Lincoln?" He replied that he had on new boots and they hurt him. The two gentlemen then boarded a street car. When they reached the place where Mr. Nott would leave the car on his way home, he shook Mr. Lincoln by the hand and, bidding him good-bye, told him that this car would carry him to the side door of the Astor House. Mr. Lincoln went on alone, the only occupant of the car. The next time he came to New York, he rode down Broadway to the Astor House standing erect in an open barouche drawn by four white horses. He bowed to the patriotic thousands in the street, on the sidewalks, in the windows, on the house-tops, and they cheered him as the lawfully elected President of the United States and bade him go on and, with God's help, save the Union.

His companion in the street car has often wondered since then what Mr. Lincoln thought about during the remainder of his ride that night to the Astor House. The Cooper Institute had, owing to a snowstorm, not been full, and its intelligent, respectable, non-partisan audience had not rung out enthusiastic applause like a concourse of Western auditors magnetised by their own enthusiasm. Had the address—the most carefully prepared, the most elaborately investigated and demonstrated and verified of all the work of his life—been a failure? But in the matter of quality and ability, if not of quantity and enthusiasm, he had never addressed such an audience; and some of the ablest men in the Northern States had expressed their opinion of the address in terms which left no doubt of the highest appreciation. Did Mr. Lincoln regard the address which he had just delivered to a small and

critical audience as a success? Did he have the faintest glimmer of the brilliant effect which was to follow? Did he feel the loneliness of the situation—the want of his loyal Illinois adherents? Did his sinking heart infer that he was but a speck of humanity to which the great city would never again give a thought? He was a plain man, an ungainly man; unadorned, apparently uncultivated, showing the awkwardness of self-conscious rusticity. His dress that night before a New York audience was the most unbecoming that a fiend's ingenuity could have devised for a tall, gaunt man—a black frock coat, ill-setting and too short for him in the body, skirt, and arms—a rolling collar, low-down, disclosing his long thin, shrivelled throat uncovered and exposed. No man in all New York appeared that night more simple, more unassuming, more modest, more unpretentious, more conscious of his own defects than Abraham Lincoln; and yet we now know that within his soul there burned the fires of an unbounded ambition, sustained by a self-reliance and self-esteem that bade him fix his gaze upon the very pinnacle of American fame and aspire to it in a time so troubled that its dangers appalled the soul of every American. What were this man's thoughts when he was left alone? Did a faint shadow of the future rest upon his soul? Did he feel in some mysterious way that on that night he had crossed the Rubicon of his life-march—that care and trouble and political discord, and slander and misrepresentation and ridicule and public responsibilities, such as hardly ever before burdened a conscientious soul, coupled with war and defeat and disaster, were to be thenceforth his portion nearly to his life's end, and that his end was to be a bloody act which would appall the world and send a thrill of horror through the hearts of friends and enemies alike, so that when the woeful tidings came the bravest of the Southern brave should burst into tears and cry aloud, "Oh! the unhappy South, the unhappy South!"

The impression left on his companion's mind as he gave a last glance at him in the street car was that he seemed sad and lonely; and when it was too late, when the car was beyond call, he blamed himself for not accompanying Mr. Lincoln to the Astor House—not because he was a distinguished stranger, but because he seemed a sad and lonely man.

February 12, 1908.

CORRESPONDENCE WITH MR. LINCOLN

69 Wall St., New York,

February 9, 1860.

Dear Sir:

The "Young Men's Central Republican Union" of this city very cordially desire that you should deliver during the ensuing month—what I may term—a *political lecture*. The peculiarities of the case are these—A series of lectures has been determined upon—The first was delivered by Mr. Blair of St. Louis a short time ago—the second will be in a few days by Mr. C.M. Clay, and the third we would prefer to have from you, rather than from any other person. Of the audience I should add that it is not that of an ordinary political meeting. These lectures have been *contrived* to call out our better, but busier citizens, who never attend political meetings. A large part of the audience would also consist of ladies. The time we should prefer, would be about the middle of March, but if any earlier or later day will be more convenient for you we would alter our arrangements.

Allow me to hope that we shall have the pleasure of welcoming you to New York. You are, I believe, an entire stranger to your Republican brethren here; but they have, for you, the highest esteem, and your celebrated contest with Judge Douglas awoke their warmest sympathy and admiration. Those of us who are "in the ranks" would regard your presence as very material aid, and as an honor and pleasure which I cannot sufficiently express.

Respectfully,

Charles C. Nott.

To Hon. Abram Lincoln.

69 Wall St., New York,

May 23, 1860.

Dear Sir:

I enclose a copy of your address in New York.

We (the Young Men's Rep. Union) design to publish a new edition in larger type and better form, with such notes and references as will best attract readers seeking information. Have you any memoranda of your investigations which you would approve of inserting?

You and your Western friends, I think, underrate this speech. It has produced a greater effect here than any other single speech. It is the real platform in the Eastern States, and must carry the conservative element in New York, New Jersey, and Pennsylvania.

Therefore I desire that it should be as nearly perfect as may be. Most of the emendations are trivial and do not affect the substance—all are merely suggested for your judgment.

I cannot help adding that this speech is an extraordinary example of condensed English. After some experience in criticising for Reviews, I find hardly anything to touch and nothing to omit. It is the only one I know of which I cannot *shorten*, and—like a good arch—moving one word tumbles a whole sentence down.

Finally—it being a bad and foolish thing for a candidate to write letters, and you having doubtless more to do of that than is pleasant or profitable, we will not add to

your burden in that regard, but if you will let any friend who has nothing to do, advise us as to your wishes, in this or any other matter, we will try to carry them out.

Respectfully,

Charles C. Nott.

To Hon. Abraham Lincoln.

Springfield, Ills., May 31, 1860.

Charles C. Nott, Esq.

My Dear Sir:

Yours of the 23rd, accompanied by a copy of the speech delivered by me at the Cooper Institute, and upon which you have made some notes for emendations, was received some days ago—Of course I would not object to, but would be pleased rather, with a more perfect edition of that speech.

I did not preserve memoranda of my investigations; and I could not now re-examine, and make notes, without an expenditure of time which I can not bestow upon it—Some of your notes I do not understand.

So far as it is intended merely to improve in grammar, and elegance of composition, I am quite agreed; but I do not wish the sense changed, or modified, to a hair's breadth—And you, not having studied the particular points so closely as I have, can not be quite sure that you do not change the sense when you do not intend it—For instance, in a note at bottom of first page, you propose to substitute "Democrats" for "Douglas"—But what I am saying there is *true* of Douglas, and is not true of "Democrats" generally; so that the proposed substitution would be a very considerable blunder—

Your proposed insertion of "residences" though it would do little or no harm, is not at all necessary to the sense I was trying to convey—On page 5 your proposed grammatical change would certainly do no harm—The "*impudently absurd*" I stick to—The striking out "*he*" and inserting "*we*" turns the sense exactly wrong—The striking out "*upon it*" leaves the sense too general and incomplete—The sense is "act as they acted *upon that question*"—not as they acted generally.

After considering your proposed changes on page 7, I do not think them material, but I am willing to defer to you in relation to them.

On page 9, striking out "*to us*" is probably right—The word "*lawyer's*" I wish retained. The word "*Courts*" struck out twice, I wish reduced to "Court" and retained—"Court" as a collection more properly governs the plural "have" as I understand—"The" preceding "Court," in the latter case, must also be retained—The words "quite," "as," and "or" on the same page, I wish retained. The italicising, and quotation marking, I have no objection to.

As to the note at bottom, I do not think any too much is admitted—What you propose on page 11 is right—I return your copy of the speech, together with one printed here, under my own hasty supervising. That at New York was printed without any supervision by me—If you conclude to publish a new edition, allow me to see the proof-sheets.

And now thanking you for your very complimentary letter, and your interest for me generally, I subscribe myself.

Your friend and servant,

A. Lincoln.

69 Wall Street, New York.

August 28, 1860.

Dear Sir:

Mr. Judd insists on our printing the revised edition of your Cooper Ins. speech *without waiting to send you the proofs.*

If this is so determined, I wish you to know, that I have made no alterations other than those you sanctioned, except—

1. I do not find that Abraham Baldwin voted on the Ordinance of '87. On the contrary he appears *not* to have acted with Congress during the sitting of the Convention. Wm. Pierce seems to have taken his place then; and his name is recorded as voting for the Ordinance. This makes no difference in the result, but I presume you will not wish the historical inaccuracy (if it is such) to stand. I will therefore (unless you write to the contrary) strike out his name in that place and reduce the number from "four" to "three" where you sum up the number of times he voted.

2. In the quotations from the Constitution I have given its exact language; as "delegated" instead of "granted," etc. As it is given in *quo.* marks, I presume the exact letter of the text should be followed.

If these are not correct please write immediately.

Our apology for the delay is that we have been weighed down by other matters; *mine* that I have but to-day returned to town.

Respectfully,

Charles C. Nott.

To Hon. Abraham Lincoln.

69 WALL STREET, N.Y.

Sept. 17, 1860.

Dear Sir:

We forward you by this day's express 250 copies, with the last corrections. I delayed sending, thinking that you would prefer these to those first printed.

The "Abraham Baldwin letter" referred to in your last I regret to say has *not* arrived. From your not touching the proofs in that regard, I inferred (and hope) that the correction was not itself an error.

Should you wish a larger number of copies do not hesitate to let us know; it will afford us much pleasure to furnish them and no inconvenience whatever.

Respectfully, etc.,

CHARLES C. NOTT.

Hon. A. Lincoln.

SPRINGFIELD, ILLS., Sept. 22, 1860.

CHARLES C. NOTT, Esq.,

My Dear Sir:

Yours of the 17th was duly received—The 250 copies have not yet arrived—I am greatly obliged to you for what you have done, and what you propose to do.

The "Abraham Baldwin letter" in substance was that I could not find the Journal of the Confederation Congress for the session at which was passed the

Ordinance of 1787—and that in stating Mr. Baldwin had voted for its passage, I had relied on a communication of Mr. Greeley, over his own signature, published in the New York *Weekly Tribune* of October 15, 1859. If you will turn to that paper, you will there see that Mr. Greeley apparently copies from the Journal, and places the name of Mr. Baldwin among those of the men who voted for the measure.

Still; if the Journal itself shows differently, of course it is right.

Yours very truly,

A. LINCOLN.

The Address of
THE HON. ABRAHAM LINCOLN,

In Vindication of the Policy of the Framers of the Constitution
and the Principles of the Republican Party.

Delivered at Cooper Institute, February 27th, 1860.
Issued by the Young Men's Republican Union.

With Notes by
CHARLES C. NOTT and CEPHAS BRAINERD,
Members of the Board of Control.

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PREFACE

This edition of Mr. Lincoln's address has been prepared and published by the Young Men's Republican Union of New York, to exemplify its wisdom, truthfulness, and learning. No one who has not actually attempted to verify its details can understand the patient research and historical labor which it embodies. The history of our earlier politics is scattered through numerous journals, statutes, pamphlets, and letters; and these are defective in completeness and accuracy of statement, and in indices and tables of contents. Neither can any one who has not travelled over this precise ground appreciate the accuracy of every trivial detail, or the self-denying impartiality with which Mr. Lincoln has turned from the testimony of "the Fathers," on the general question of slavery, to present the single question which he discusses. From the first line to the last—from his premises to his conclusion, he travels with swift, unerring directness which no logician ever excelled—an argument complete and full, without the affectation of learning, and without the stiffness which usually accompanies dates and details. A single, easy, simple sentence of plain Anglo-Saxon words contains a chapter of history that, in some instances, has taken days of labor to verify and which must have cost the author months of investigation to acquire. And, though the public should justly estimate the labor bestowed on the facts which are stated, they cannot estimate the greater labor involved on those which are omitted—how many pages have been read—how many works examined—what numerous statutes, resolutions, speeches, letters, and biographies have been looked through. Commencing with this address as a political pamphlet, the reader will leave it as an historical work—brief, complete, profound, impartial, truthful—which will survive the time and the occasion that called it forth, and be esteemed hereafter, no less for its intrinsic worth than its unpretending modesty.

NEW YORK, *September*, 1860.

ADDRESS

MR. PRESIDENT AND FELLOW-CITIZENS OF NEW YORK:—The facts with which I shall deal this evening are mainly old and familiar; nor is there anything new in the general use I shall make of them. If there shall be any novelty, it will be in the mode of presenting the facts, and the inferences and observations following that presentation.

In his speech last autumn, at Columbus, Ohio, as reported in the *New York Times*, Senator Douglas said:

"Our fathers, when they framed the Government under which we live, understood this question just as well, and even better than we do now."

I fully indorse this, and I adopt it as a text for this discourse. I so adopt it because it furnishes a precise and an agreed starting-point for a discussion between Republicans and that wing of the Democracy headed by Senator Douglas. It simply leaves the inquiry: *"What was the understanding those fathers had of the question mentioned?"*

What is the frame of Government under which we live?

The answer must be: "The Constitution of the United States." That Constitution consists of the original, framed in 1787, (and under which the present Government first went into operation,) and twelve subsequently framed amendments, the first ten of which were framed in 1789.^[4]

Who were our fathers that framed the Constitution? I suppose the "thirty-nine" who signed the original

instrument may be fairly called our fathers who framed that part of the present Government. It is almost exactly true to say they framed it, and it is altogether true to say they fairly represented the opinion and sentiment of the whole nation at that time. Their names, being familiar to nearly all, and accessible to quite all, need not now be repeated.^[5]

I take these "thirty-nine" for the present, as being "our fathers who framed the Government under which we live."

What is the question which, according to the text, those fathers understood "just as well, and even better than we do now"?

It is this: Does the proper division of local from federal authority, or anything in the Constitution, forbid *our Federal Government* to control as to slavery in *our Federal Territories*?

Upon this, Senator Douglas holds the affirmative, and Republicans the negative. This affirmation and denial form an issue; and this issue—this question—is precisely what the text declares our fathers understood "better than we."

Let us now inquire whether the "thirty-nine," or any of them, ever acted upon this question; and if they did, how they acted upon it—how they expressed that better understanding.

In 1784, three years before the Constitution—the United States then owning the Northwestern Territory, and no other,^[6] the Congress of the Confederation had before them the question of prohibiting slavery in that Territory; and four of the "thirty-nine" who afterward

framed the Constitution, were in that Congress, and voted on that question. Of these, Roger Sherman, Thomas Mifflin, and Hugh Williamson voted for the prohibition,^[7] thus showing that, in their understanding, no line dividing local from federal authority, nor anything else, properly forbade the Federal Government to control as to slavery in federal territory. The other of the four—James M'Henry—voted against the prohibition, showing that, for some cause, he thought it improper to vote for it.^[8]

In 1787, still before the Constitution, but while the Convention was in session framing it, and while the Northwestern Territory still was the only territory owned by the United States, the same question of prohibiting Slavery in the Territories again came before the Congress of the Confederation; and two more of the "thirty-nine" who afterward signed the Constitution, were in that Congress, and voted on the question. They were William Blount and William Few^[9]; and they both voted for the prohibition—thus showing that, in their understanding, no line dividing local from federal authority, nor anything else, properly forbade the Federal Government to control as to slavery in federal territory. This time, the prohibition became a law, being part of what is now well known as the Ordinance of '87.^[10]

The question of federal control of slavery in the territories, seems not to have been directly before the Convention which framed the original Constitution; and hence it is not recorded that the "thirty-nine," or any of them, while engaged on that instrument, expressed any opinion on that precise question.^[11]

In 1789, by the first Congress which sat under the Constitution, an act was passed to enforce the Ordinance of '87, including the prohibition of slavery in

the Northwestern Territory. The bill for this act was reported by one of the "thirty-nine," Thomas Fitzsimmons, then a member of the House of Representatives from Pennsylvania. It went through all its stages without a word of opposition, and finally passed both branches without yeas and nays, which is equivalent to an unanimous passage.^[12] In this Congress, there were sixteen of the thirty-nine fathers who framed the original Constitution. They were John Langdon, Nicholas Oilman, Wm. S. Johnson, Roger Sherman, Robert Morris, Thos. Fitzsimmons, William Few, Abraham Baldwin, Rufus King, William Paterson, George Clymer, Richard Bassett, George Read, Pierce Butler, Daniel Carroll, James Madison.^[13]

This shows that, in their understanding, no line dividing local from federal authority, nor anything in the Constitution, properly forbade Congress to prohibit slavery in the federal territory; else both their fidelity to correct principle, and their oath to support the Constitution, would have constrained them to oppose the prohibition.

Again, George Washington, another of the "thirty-nine," was then President of the United States, and, as such, approved and signed the bill; thus completing its validity as a law, and thus showing that, in his understanding, no line dividing local from federal authority, nor anything in the Constitution, forbade the Federal Government to control as to slavery in federal territory.

No great while after the adoption of the original Constitution, North Carolina ceded to the Federal Government the country now constituting the State of Tennessee; and a few years later Georgia ceded that

which now constitutes the States of Mississippi and Alabama. In both deeds of cession it was made a condition by the ceding States that the Federal Government should not prohibit slavery in the ceded country.^[14] Besides this, slavery was then actually in the ceded country. Under these circumstances, Congress, on taking charge of these countries, did not absolutely prohibit slavery within them. But they did interfere with it—take control of it—even there to a certain extent. In 1798, Congress organized the Territory of Mississippi. In the act of organization, they prohibited the bringing of slaves into the Territory, from any place without the United States, by fine, and giving freedom to slaves so brought.^[15] This act passed both branches of Congress without yeas and nays. In that Congress were three of the "thirty-nine" who framed the original Constitution. They were John Langdon, George Read and Abraham Baldwin.^[16] They all, probably, voted for it. Certainly they would have placed their opposition to it upon record, if, in their understanding, any line dividing local from federal authority, or anything in the Constitution, properly forbade the Federal Government to control as to slavery in federal territory.

In 1803, the Federal Government purchased the Louisiana country. Our former territorial acquisitions came from certain of our own States; but this Louisiana country was acquired from a foreign nation. In 1804, Congress gave a territorial organization to that part of it which now constitutes the State of Louisiana. New Orleans, lying within that part, was an old and comparatively large city. There were other considerable towns and settlements, and slavery was extensively and thoroughly intermingled with the people. Congress did not, in the Territorial Act, prohibit slavery; but they did interfere with it—take control of it—in a more marked

and extensive way than they did in the case of Mississippi. The substance of the provision therein made, in relation to slaves, was:

First. That no slave should be imported into the territory from foreign parts.

Second. That no slave should be carried into it who had been imported into the United States since the first day of May, 1798.

Third. That no slave should be carried into it, except by the owner, and for his own use as a settler; the penalty in all the cases being a fine upon the violator of the law, and freedom to the slave.^[17]

This act also was passed without yeas and nays. In the Congress which passed it, there were two of the "thirty-nine." They were Abraham Baldwin and Jonathan Dayton.^[18] As stated in the case of Mississippi, it is probable they both voted for it. They would not have allowed it to pass without recording their opposition to it, if, in their understanding, it violated either the line properly dividing local from federal authority, or any provision of the Constitution.

In 1819-20, came and passed the Missouri question. Many votes were taken, by yeas and nays, in both branches of Congress, upon the various phases of the general question. Two of the "thirty-nine"—Rufus King and Charles Pinckney—were members of that Congress.^[19] Mr. King steadily voted for slavery prohibition and against all compromises, while Mr. Pinckney as steadily voted against slavery prohibition and against all compromises. By this, Mr. King showed that, in his understanding, no line dividing local from federal authority, nor anything in the Constitution, was violated by Congress prohibiting slavery in federal

territory; while Mr. Pinckney, by his votes, showed that, in his understanding, there was some sufficient reason for opposing such prohibition in that case.^[20]

The cases I have mentioned are the only acts of the "thirty-nine," or of any of them, upon the direct issue, which I have been able to discover.

To enumerate the persons who thus acted, as being four in 1784, two in 1787, seventeen in 1789, three in 1798, two in 1804, and two in 1819-20—there would be thirty of them. But this would be counting John Langdon, Roger Sherman, William Few, Rufus King, and George Read each twice, and Abraham Baldwin three times. The true number of those of the "thirty-nine" whom I have shown to have acted upon the question, which, by the text, they understood better than we, is twenty-three, leaving sixteen not shown to have acted upon it in anyway.^[21]

Here, then, we have twenty-three out of our thirty-nine fathers "who framed the Government under which we live," who have, upon their official responsibility and their corporal oaths, acted upon the very question which the text affirms they "understood just as well, and even better than we do now"; and twenty-one of them—a clear majority of the whole "thirty-nine"—so acting upon it as to make them guilty of gross political impropriety and wilful perjury, if, in their understanding, any proper division between local and federal authority, or anything in the Constitution they had made themselves, and sworn to support, forbade the Federal Government to control as to slavery in the federal territories. Thus the twenty-one acted; and, as actions speak louder than words, so actions under such responsibility speak still louder.

Two of the twenty-three voted against Congressional prohibition of slavery in the federal territories, in the instances in which they acted upon the question. But for what reasons they so voted is not known. They may have done so because they thought a proper division of local from federal authority, or some provision or principle of the Constitution, stood in the way; or they may, without any such question, have voted against the prohibition on what appeared to them to be sufficient grounds of expediency. No one who has sworn to support the Constitution can conscientiously vote for what he understands to be an unconstitutional measure, however expedient he may think it; but one may and ought to vote against a measure which he deems constitutional, if, at the same time, he deems it inexpedient. It, therefore, would be unsafe to set down even the two who voted against the prohibition, as having done so because, in their understanding, any proper division of local from federal authority, or anything in the Constitution, forbade the Federal Government to control as to slavery in federal territory. [\[22\]](#)

The remaining sixteen of the "thirty-nine," so far as I have discovered, have left no record of their understanding upon the direct question of federal control of slavery in the federal territories. But there is much reason to believe that their understanding upon that question would not have appeared different from that of their twenty-three compeers, had it been manifested at all. [\[23\]](#)

For the purpose of adhering rigidly to the text, I have purposely omitted whatever understanding may have been manifested by any person, however distinguished, other than the thirty-nine fathers who framed the original Constitution; and, for the same reason, I have also omitted whatever understanding may have been

manifested by any of the "thirty-nine" even, on any other phase of the general question of slavery. If we should look into their acts and declarations on those other phases, as the foreign slave trade, and the morality and policy of slavery generally, it would appear to us that on the direct question of federal control of slavery in federal territories, the sixteen, if they had acted at all, would probably have acted just as the twenty-three did. Among that sixteen were several of the most noted anti-slavery men of those times—as Dr. Franklin, Alexander Hamilton, and Gouverneur Morris—while there was not one now known to have been otherwise, unless it may be John Rutledge, of South Carolina.^[24]

The sum of the whole is, that of our thirty-nine fathers who framed the original Constitution, twenty-one—a clear majority of the whole—certainly understood that no proper division of local from federal authority, nor any part of the Constitution, forbade the Federal Government to control slavery in the federal territories; while all the rest probably had the same understanding. Such, unquestionably, was the understanding of our fathers who framed the original Constitution; and the text affirms that they understood the question "better than we."

But, so far, I have been considering the understanding of the question manifested by the framers of the original Constitution. In and by the original instrument, a mode was provided for amending it; and, as I have already stated, the present frame of "the Government under which we live" consists of that original, and twelve amendatory articles framed and adopted since. Those who now insist that federal control of slavery in federal territories violates the Constitution, point us to the provisions which they suppose it thus violates; and, as I understand, they all fix upon provisions in these amendatory articles and not in the original instrument.

The Supreme Court, in the Dred Scott case, plant themselves upon the fifth amendment, which provides that no person shall be deprived of "life, liberty or property without due process of law"; while Senator Douglas and his peculiar adherents plant themselves upon the tenth amendment, providing that "the powers not delegated to the United States by the Constitution" "are reserved to the States respectively, or to the people."^[25]

Now, it so happens that these amendments were framed by the first Congress which sat under the Constitution—the identical Congress which passed the act already mentioned, enforcing the prohibition of slavery in the Northwestern Territory. Not only was it the same Congress, but they were the identical same individual men who, at the same session, and at the same time within the session had under consideration, and in progress toward maturity, these Constitutional amendments, and this act prohibiting slavery in all the territory the nation then owned. The Constitutional amendments were introduced before, and passed after, the act enforcing the Ordinance of '87; so that, during the whole pendency of the act to enforce the Ordinance, the Constitutional amendments were also pending.^[26]

The seventy-six members of that Congress, including sixteen of the framers of the original Constitution, as before stated, were pre-eminently our fathers who framed that part of "the Government under which we live," which is now claimed as forbidding the Federal Government to control slavery in the federal territories.

Is it not a little presumptuous in any one at this day to affirm that the two things which that Congress deliberately framed, and carried to maturity at the same time, are absolutely inconsistent with each other? And does not such affirmation become impudently absurd

when coupled with the other affirmation from the same mouth, that those who did the two things, alleged to be inconsistent, understood whether they really were inconsistent better than we—better than he who affirms that they are inconsistent?

It is surely safe to assume that the thirty-nine framers of the original Constitution, and the seventy-six members of the Congress which framed the amendments thereto, taken together, do certainly include those who may be fairly called "our fathers who framed the Government under which we live."^[27] And so assuming, I defy any man to show that any one of them ever, in his whole life, declared that, in his understanding, any proper division of local from federal authority, or any part of the Constitution, forbade the Federal Government to control as to slavery in the federal territories. I go a step further. I defy any one to show that any living man in the whole world ever did, prior to the beginning of the present century, (and I might almost say prior to the beginning of the last half of the present century,) declare that, in his understanding, any proper division of local from federal authority, or any part of the Constitution, forbade the Federal Government to control as to slavery in the federal territories. To those who now so declare, I give, not only "our fathers who framed the Government under which we live," but with them all other living men within the century in which it was framed, among whom to search, and they shall not be able to find the evidence of a single man agreeing with them.

Now, and here, let me guard a little against being misunderstood. I do not mean to say we are bound to follow implicitly in whatever our fathers did. To do so, would be to discard all the lights of current experience—to reject all progress—all improvement. What I do say is, that if we would supplant the opinions and policy

of our fathers in any case, we should do so upon evidence so conclusive, and argument so clear, that even their great authority, fairly considered and weighed, cannot stand; and most surely not in a case whereof we ourselves declare they understood the question better than we.

If any man at this day sincerely believes that a proper division of local from federal authority, or any part of the Constitution, forbids the Federal Government to control as to slavery in the federal territories, he is right to say so, and to enforce his position by all truthful evidence and fair argument which he can. But he has no right to mislead others, who have less access to history, and less leisure to study it, into the false belief that "our fathers, who framed the Government under which we live," were of the same opinion—thus substituting falsehood and deception for truthful evidence and fair argument. If any man at this day sincerely believes "our fathers who framed the Government under which we live," used and applied principles, in other cases, which ought to have led them to understand that a proper division of local from federal authority or some part of the Constitution, forbids the Federal Government to control as to slavery in the federal territories, he is right to say so. But he should, at the same time, brave the responsibility of declaring that, in his opinion, he understands their principles better than they did themselves; and especially should he not shirk that responsibility by asserting that they "understood the question just as well, and even better, than we do now."

But enough! *Let all who believe that "our fathers, who framed the Government under which we live, understood this question just as well, and even better, than we do now," speak as they spoke, and act as they acted upon it. This is all Republicans ask—all Republicans desire—in relation to slavery. As those*

fathers marked it, so let it be again marked, as an evil not to be extended, but to be tolerated and protected only because of and so far as its actual presence among us makes that toleration and protection a necessity. Let all the guaranties those fathers gave it, be, not grudgingly, but fully and fairly maintained. For this Republicans contend, and with this, so far as I know or believe, they will be content.

And now, if they would listen—as I suppose they will not—I would address a few words to the Southern people.

I would say to them: You consider yourselves a reasonable and a just people; and I consider that in the general qualities of reason and justice you are not inferior to any other people. Still, when you speak of us Republicans, you do so only to denounce us as reptiles, or, at the best, as no better than outlaws. You will grant a hearing to pirates or murderers, but nothing like it to "Black Republicans." In all your contentions with one another each of you deems an unconditional condemnation of "Black Republicanism" as the first thing to be attended to. Indeed, such condemnation of us seems to be an indispensable prerequisite—licence, so to speak—among you to be admitted or permitted to speak at all. Now, can you, or not, be prevailed upon to pause and to consider whether this is quite just to us, or even to yourselves? Bring forward your charges and specifications, and then be patient long enough to hear us deny or justify.

You say we are sectional. We deny it. That makes an issue; and the burden of proof is upon you. You produce your proof; and what is it? Why, that our party has no existence in your section—gets no votes in your section. The fact is substantially true; but does it prove the issue? If it does, then in case we should, without

change of principle, begin to get votes in your section, we should thereby cease to be sectional. You cannot escape this conclusion; and yet, are you willing to abide by it? If you are, you will probably soon find that we have ceased to be sectional, for we shall get votes in your section this very year. You will then begin to discover, as the truth plainly is, that your proof does not touch the issue. The fact that we get no votes in your section, is a fact of your making, and not of ours. And if there be fault in that fact, that fault is primarily yours, and remains so until you show that we repel you by some wrong principle or practice. If we do repel you by any wrong principle or practice, the fault is ours; but this brings you to where you ought to have started—to a discussion of the right or wrong of our principle. If our principle, put in practice, would wrong your section for the benefit of ours, or for any other object, then our principle, and we with it, are sectional, and are justly opposed and denounced as such. Meet us, then, on the question of whether our principle, put in practice, would wrong your section; and so meet us as if it were possible that something may be said on our side. Do you accept the challenge? No! Then you really believe that the principle which "our fathers who framed the Government under which we live" thought so clearly right as to adopt it, and indorse it again and again, upon their official oaths, is in fact so clearly wrong as to demand your condemnation without a moment's consideration.

Some of you delight to flaunt in our faces the warning against sectional parties given by Washington in his Farewell Address. Less than eight years before Washington gave that warning, he had, as President of the United States, approved and signed an act of Congress, enforcing the prohibition of slavery in the Northwestern Territory, which act embodied the policy

of the Government upon that subject up to and at the very moment he penned that warning; and about one year after he penned it, he wrote Lafayette that he considered that prohibition a wise measure, expressing in the same connection his hope that we should at some time have a confederacy of free States.^[28]

Bearing this in mind, and seeing that sectionalism has since arisen upon this same subject, is that warning a weapon in your hands against us, or in our hands against you? Could Washington himself speak, would he cast the blame of that sectionalism upon us, who sustain his policy, or upon you who repudiate it? We respect that warning of Washington, and we commend it to you, together with his example pointing to the right application of it.

But you say you are conservative—eminently conservative—while we are revolutionary, destructive, or something of the sort. What is conservatism? Is it not adherence to the old and tried, against the new and untried? We stick to, contend for, the identical old policy on the point in controversy which was adopted by "our fathers who framed the Government under which we live"; while you with one accord reject, and scout, and spit upon that old policy, and insist upon substituting something new. True, you disagree among yourselves as to what that substitute shall be. You are divided on new propositions and plans, but you are unanimous in rejecting and denouncing the old policy of the fathers. Some of you are for reviving the foreign slave trade; some for a Congressional Slave-Code for the Territories; some for Congress forbidding the Territories to prohibit Slavery within their limits; some for maintaining Slavery in the Territories through the judiciary; some for the "gur-reat pur-rinciple" that "if

one man would enslave another, no third man should object," fantastically called "Popular Sovereignty"; but never a man among you in favor of federal prohibition of slavery in federal territories, according to the practice of "our fathers who framed the Government under which we live." Not one of all your various plans can show a precedent or an advocate in the century within which our Government originated. Consider, then, whether your claim of conservatism for yourselves, and your charge of destructiveness against us, are based on the most clear and stable foundations.

Again, you say we have made the slavery question more prominent than it formerly was. We deny it. We admit that it is more prominent, but we deny that we made it so. It was not we, but you, who discarded the old policy of the fathers. We resisted, and still resist, your innovation; and thence comes the greater prominence of the question. Would you have that question reduced to its former proportions? Go back to that old policy. What has been will be again, under the same conditions. If you would have the peace of the old times, readopt the precepts and policy of the old times.

You charge that we stir up insurrections among your slaves. We deny it; and what is your proof? Harper's Ferry! John Brown!! John Brown was no Republican; and you have failed to implicate a single Republican in his Harper's Ferry enterprise. If any member of our party is guilty in that matter, you know it or you do not know it. If you do know it, you are inexcusable for not designating the man and proving the fact. If you do not know it, you are inexcusable for asserting it, and especially for persisting in the assertion after you have tried and failed to make the proof. You need not be told that persisting in a charge which one does not know to be true, is simply malicious slander.^[29]

Some of you admit that no Republican designedly aided or encouraged the Harper's Ferry affair; but still insist that our doctrines and declarations necessarily lead to such results. We do not believe it. We know we hold to no doctrine, and make no declaration, which was not held to and made by "our fathers who framed the Government under which we live." You never dealt fairly by us in relation to this affair. When it occurred, some important State elections were near at hand, and you were in evident glee with the belief that, by charging the blame upon us, you could get an advantage of us in those elections. The elections came, and your expectations were not quite fulfilled. Every Republican man knew that, as to himself at least, your charge was a slander, and he was not much inclined by it to cast his vote in your favor. Republican doctrines and declarations are accompanied with a continual protest against any interference whatever with your slaves, or with you about your slaves. Surely, this does not encourage them to revolt. True, we do, in common with "our fathers, who framed the Government under which we live," declare our belief that slavery is wrong; but the slaves do not hear us declare even this. For anything we say or do, the slaves would scarcely know there is a Republican party. I believe they would not, in fact, generally know it but for your misrepresentations of us, in their hearing. In your political contests among yourselves, each faction charges the other with sympathy with Black Republicanism; and then, to give point to the charge, defines Black Republicanism to simply be insurrection, blood and thunder among the slaves.

Slave insurrections are no more common now than they were before the Republican party was organized. What induced the Southampton insurrection, twenty-eight years ago, in which, at least, three times as many lives

were lost as at Harper's Ferry?^[30] You can scarcely stretch your very elastic fancy to the conclusion that Southampton was "got up by Black Republicanism." In the present state of things in the United States, I do not think a general, or even a very extensive slave insurrection, is possible. The indispensable concert of action cannot be attained. The slaves have no means of rapid communication; nor can incendiary freemen, black or white, supply it. The explosive materials are everywhere in parcels; but there neither are, nor can be supplied, the indispensable connecting trains.

Much is said by Southern people about the affection of slaves for their masters and mistresses; and a part of it, at least, is true. A plot for an uprising could scarcely be devised and communicated to twenty individuals before some one of them, to save the life of a favorite master or mistress, would divulge it. This is the rule; and the slave revolution in Hayti was not an exception to it, but a case occurring under peculiar circumstances,^[31] The gunpowder plot of British history, though not connected with slaves, was more in point. In that case, only about twenty were admitted to the secret; and yet one of them, in his anxiety to save a friend, betrayed the plot to that friend, and, by consequence, averted the calamity. Occasional poisonings from the kitchen, and open or stealthy assassinations in the field, and local revolts extending to a score or so, will continue to occur as the natural results of slavery; but no general insurrection of slaves, as I think, can happen in this country for a long time. Whoever much fears, or much hopes for such an event, will be alike disappointed.

In the language of Mr. Jefferson, uttered many years ago, "It is still in our power to direct the process of emancipation, and deportation, peaceably, and in such slow degrees, as that the evil will wear off insensibly; and their places be, *pari passu*, filled up by free white

laborers. If, on the contrary, it is left to force itself on, human nature must shudder at the prospect held up."^[32]

Mr. Jefferson did not mean to say, nor do I, that the power of emancipation is in the Federal Government. He spoke of Virginia; and, as to the power of emancipation, I speak of the slaveholding States only. The Federal Government, however, as we insist, has the power of restraining the extension of the institution—the power to insure that a slave insurrection shall never occur on any American soil which is now free from slavery.

John Brown's effort was peculiar. It was not a slave insurrection. It was an attempt by white men to get up a revolt among slaves, in which the slaves refused to participate. In fact, it was so absurd that the slaves, with all their ignorance, saw plainly enough it could not succeed. That affair, in its philosophy, corresponds with the many attempts, related in history, at the assassination of kings and emperors. An enthusiast broods over the oppression of a people till he fancies himself commissioned by Heaven to liberate them. He ventures the attempt, which ends in little else than his own execution. Orsini's attempt on Louis Napoleon, and John Brown's attempt at Harper's Ferry were, in their philosophy, precisely the same. The eagerness to cast blame on old England in the one case, and on New England in the other, does not disprove the sameness of the two things.

And how much would it avail you, if you could, by the use of John Brown, Helper's Book, and the like, break up the Republican organization? Human action can be modified to some extent, but human nature cannot be changed. There is a judgment and a feeling against slavery in this nation, which cast at least a million and a half of votes. You cannot destroy that judgment and

feeling—that sentiment—by breaking up the political organization which rallies around it. You can scarcely scatter and disperse an army which has been formed into order in the face of your heaviest fire; but if you could, how much would you gain by forcing the sentiment which created it out of the peaceful channel of the ballot-box, into some other channel? What would that other channel probably be? Would the number of John Browns be lessened or enlarged by the operation?

But you will break up the Union rather than submit to a denial of your Constitutional rights.^[33]

That has a somewhat reckless sound; but it would be palliated, if not fully justified, were we proposing, by the mere force of numbers, to deprive you of some right, plainly written down in the Constitution. But we are proposing no such thing.

When you make these declarations, you have a specific and well-understood allusion to an assumed Constitutional right of yours, to take slaves into the federal territories, and to hold them there as property. But no such right is specifically written in the Constitution. That instrument is literally silent about any such right. We, on the contrary, deny that such a right has any existence in the Constitution, even by implication.

Your purpose, then, plainly stated, is, that you will destroy the Government, unless you be allowed to construe and enforce the Constitution as you please, on all points in dispute between you and us. You will rule or ruin in all events.

This, plainly stated, is your language. Perhaps you will say the Supreme Court has decided the disputed Constitutional question in your favor. Not quite so. But waiving the lawyer's distinction between dictum and

decision, the Court have decided the question for you in a sort of way. The Court have substantially said, it is your Constitutional right to take slaves into the federal territories, and to hold them there as property. When I say the decision was made in a sort of way, I mean it was made in a divided Court, by a bare majority of the Judges, and they not quite agreeing with one another in the reasons for making it;^[34] that it is so made as that its avowed supporters disagree with one another about its meaning, and that it was mainly based upon a mistaken statement of fact—the statement in the opinion that "the right of property in a slave is distinctly and expressly affirmed in the Constitution."^[35]

An inspection of the Constitution will show that the right of property in a slave is not "*distinctly* and *expressly* affirmed" in it. Bear in mind, the Judges do not pledge their judicial opinion that such right is *impliedly* affirmed in the Constitution; but they pledge their veracity that it is "*distinctly* and *expressly*" affirmed there—"distinctly," that is, not mingled with anything else—"expressly," that is, in words meaning just that, without the aid of any inference, and susceptible of no other meaning.

If they had only pledged their judicial opinion that such right is affirmed in the instrument by implication, it would be open to others to show that neither the word "slave" nor "slavery" is to be found in the Constitution, nor the word "property" even, in any connection with language alluding to the things slave, or slavery, and that wherever in that instrument the slave is alluded to, he is called a "person";—and wherever his master's legal right in relation to him is alluded to, it is spoken of as "service or labor which may be due,"—as a debt payable in service or labor.^[36] Also, it would be open to show, by contemporaneous history, that this mode of

alluding to slaves and slavery, instead of speaking of them, was employed on purpose to exclude from the Constitution the idea that there could be property in man.

To show all this, is easy and certain.^[37]

When this obvious mistake of the Judges shall be brought to their notice, is it not reasonable to expect that they will withdraw the mistaken statement, and reconsider the conclusion based upon it?

And then it is to be remembered that "our fathers, who framed the Government under which we live"—the men who made the Constitution—decided this same Constitutional question in our favor, long ago—decided it without division among themselves, when making the decision; without division among themselves about the meaning of it after it was made, and, so far as any evidence is left, without basing it upon any mistaken statement of facts.

Under all these circumstances, do you really feel yourselves justified to break up this Government, unless such a court decision as yours is, shall be at once submitted to as a conclusive and final rule of political action? But you will not abide the election of a Republican President! In that supposed event, you say, you will destroy the Union; and then, you say, the great crime of having destroyed it will be upon us! That is cool. A highwayman holds a pistol to my ear, and mutters through his teeth, "Stand and deliver or I shall kill you, and then you will be a murderer!"

To be sure, what the robber demanded of me—my money—was my own; and I had a clear right to keep it; but it was no more my own than my vote is my own; and the threat of death to me, to extort my money, and

the threat of destruction to the Union, to extort my vote, can scarcely be distinguished in principle.

A few words now to Republicans. *It is exceedingly desirable that all parts of this great Confederacy shall be at peace and in harmony, one with another. Let us Republicans do our part to have it so. Even though much provoked, let us do nothing through passion and ill temper. Even though the Southern people will not so much as listen to us, let us calmly consider their demands, and yield to them if, in our deliberate view of our duty, we possibly can.*^[38] Judging by all they say and do, and by the subject and nature of their controversy with us, let us determine, if we can, what will satisfy them.

Will they be satisfied if the Territories be unconditionally surrendered to them? We know they will not. In all their present complaints against us, the Territories are scarcely mentioned. Invasions and insurrections are the rage now. Will it satisfy them, if, in the future, we have nothing to do with invasions and insurrections? We know it will not. We so know, because we know we never had anything to do with invasions and insurrections; and yet this total abstaining does not exempt us from the charge and the denunciation.

The question recurs, what will satisfy them? Simply this: We must not only let them alone, but we must, somehow, convince them that we do let them alone. This, we know by experience, is no easy task. We have been so trying to convince them from the very beginning of our organization, but with no success. In all our platforms and speeches we have constantly protested our purpose to let them alone; but this has had no tendency to convince them. Alike unavailing to

convince them, is the fact that they have never detected a man of us in any attempt to disturb them.

These natural, and apparently adequate means all failing, what will convince them? This, and this only; cease to call slavery *wrong*, and join them in calling it *right*. And this must be done thoroughly—done in *acts* as well as in *words*. Silence will not be tolerated—we must place ourselves avowedly with them. Senator Douglas's new sedition law must be enacted and enforced, suppressing all declarations that slavery is wrong, whether made in politics, in presses, in pulpits, or in private. We must arrest and return their fugitive slaves with greedy pleasure. We must pull down our Free State constitutions. The whole atmosphere must be disinfected from all taint of opposition to slavery, before they will cease to believe that all their troubles proceed from us.

I am quite aware they do not state their case precisely in this way. Most of them would probably say to us, "Let us alone, *do* nothing to us, and *say* what you please about slavery." But we do let them alone—have never disturbed them—so that, after all, it is what we say, which dissatisfies them. They will continue to accuse us of doing, until we cease saying.

I am also aware they have not, as yet, in terms, demanded the overthrow of our Free-State Constitutions.^[39] Yet those Constitutions declare the wrong of slavery, with more solemn emphasis, than do all other sayings against it; and when all these other sayings shall have been silenced, the overthrow of these Constitutions will be demanded, and nothing be left to resist the demand. It is nothing to the contrary, that they do not demand the whole of this just now. Demanding what they do, and for the reason they do, they can voluntarily stop nowhere short of this consummation.

Holding, as they do, that slavery is morally right, and socially elevating, they cannot cease to demand a full national recognition of it, as a legal right, and a social blessing.^[40]

Nor can we justifiably withhold this on any ground save our conviction that slavery is wrong. If slavery is right, all words, acts, laws, and constitutions against it, are themselves wrong, and should be silenced, and swept away. If it is right, we cannot justly object to its nationality—its universality; if it is wrong, they cannot justly insist upon its extension—its enlargement. All they ask, we could readily grant, if we thought slavery right; all we ask, they could as readily grant, if they thought it wrong.^[41] Their thinking it right, and our thinking it wrong, is the precise fact upon which depends the whole controversy. Thinking it right, as they do, they are not to blame for desiring its full recognition, as being right; but, thinking it wrong, as we do, can we yield to them? Can we cast our votes with their view, and against our own? In view of our moral, social, and political responsibilities, can we do this?

Wrong as we think slavery is, we can yet afford to let it alone where it is, because that much is due to the necessity arising from its actual presence in the nation; but can we, while our votes will prevent it, allow it to spread into the National Territories, and to overrun us here in these Free States? If our sense of duty forbids this, then let us stand by our duty, fearlessly and effectively. Let us be diverted by none of those sophistical contrivances wherewith we are so industriously plied and belabored—contrivances such as groping for some middle ground between the right and the wrong, vain as the search for a man who should be neither a living man nor a dead man—such as a policy of "don't care" on a question about which all true men do care—such as Union appeals beseeching true

Union men to yield to Disunionists, reversing the divine rule, and calling, not the sinners, but the righteous to repentance—such as invocations to Washington, imploring men to unsay what Washington said, and undo what Washington did.

Neither let us be slandered from our duty by false accusations against us, nor frightened from it by menaces of destruction to the Government nor of dungeons to ourselves. LET US HAVE FAITH THAT RIGHT MAKES MIGHT, AND IN THAT FAITH, LET US, TO THE END, DARE TO DO OUR DUTY AS WE UNDERSTAND IT.

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FOOTNOTES:

[1]

This letter has not been published. It is cited here through the courtesy of Mr. Robert Lincoln and Mr. R.W. Gilder.

[2]

The text of the speech, as revised by Lincoln and with the introduction and notes by Nott and Brainerd, is given as an appendix to this volume.

[3]

The late George Palmer Putnam.

[4]

—The Constitution is attested September 17, 1787. It was ratified by all of the States, excepting North Carolina and Rhode Island, in 1788, and went into operation on the first Wednesday in January, 1789. The first Congress proposed, in 1789, ten articles of amendments, all of which were ratified. Article XI. of the amendments was prepared by the Third Congress, in 1794, and Article XII. by the Eighth Congress, in 1803. Another Article was proposed by the Eleventh Congress, prohibiting *citizens* from receiving titles of nobility, presents or offices, from foreign nations. Although this has been printed as one of the amendments, it was in fact never ratified, being approved by but twelve States. *Vide* Message of President Monroe, Feb. 4, 1818.

[5]

—The Convention consisted of *sixty-five* members. Of these, *ten* did not attend the Convention, and *sixteen* did not sign the Constitution. Of these sixteen, six refused to sign, and published

their reasons for so refusing, viz.: Robert Yates and John Lansing, of New-York; Edmund Randolph and George Mason, of Virginia; Luther Martin, of Maryland, and Elbridge Gerry, of Mass. Alexander Hamilton alone subscribed for New-York, and Rhode Island was not represented in the Convention. The names of the "thirty-nine," and the States which they represented are subsequently given.

[6]

—The cession of Territory was authorized by New-York, Feb. 19, 1780; by Virginia, January 2, 1781, and again, (without certain conditions at first imposed,) "at their sessions, begun on the 20th day of October, 1783;" by Mass., Nov. 13, 1784; by Conn., May —, 1786; by S. Carolina, March 8, 1787; by N. Carolina, Dec. —, 1789; and by Georgia at some time prior to April, 1802.

The deeds of cession were executed by New-York, March 1, 1781; by Virginia, March 1, 1784; by Mass., April 19, 1785; by Conn., Sept. 13, 1786; by S. Carolina, August 9, 1787; by N. Carolina, Feb. 25, 1790; and by Georgia, April 24, 1802. Five of these grants were therefore made before the adoption of the Constitution, and one afterward; while the sixth (North Carolina) was authorized before, and consummated afterward. The cession of this State contains the express proviso "that no regulations made, or to be made by Congress, shall tend to emancipate slaves." The cession of Georgia conveys the Territory subject to the Ordinance of '87, except the provision prohibiting slavery.

These dates are also interesting in connection with the extraordinary assertions of Chief Justice Taney, (19 How., page 434,) that "the example of Virginia was soon afterwards followed by other States," and that (p. 436) the power in the Constitution "to dispose of and make all needful rules and regulations respecting the Territory or other property belonging to the United States," was intended only "to transfer to the new Government the property then held in common," "and has no reference whatever to any Territory or other property which the new sovereignty

might afterwards itself acquire." On this subject, *vide Federalist*, No. 43, sub. 4 and 5.

[7]

—Sherman was from Connecticut; Mifflin from Penn.; Williamson from North Carolina, and M'Henry from Maryland.

[8]

—What Mr. M'Henry's views were, it seems impossible to ascertain. When the Ordinance of '87 was passed he was sitting in the Convention. He was afterwards appointed Secretary of War; yet no record has thus far been discovered of his opinion. Mr. M'Henry also wrote a biography of La Fayette, which, however, cannot be found in any of the public libraries, among which may be mentioned the State Library at Albany, and the Astor, Society, and Historical Society Libraries, at New York.

Hamilton says of him, in a letter to Washington (*Works*, vol. vi., p. 65): "M'Henry you know. He would give no strength to the Administration, but he would not disgrace the office; his views are good."

[9]

—William Blount was from North Carolina, and William Few from Georgia—the two States which afterward ceded their Territory to the United States. In addition to these facts the following extract from the speech of Rufus King in the Senate, on the Missouri Bill, shows the entire unanimity with which the Southern States approved the prohibition:

"The State of Virginia, which ceded to the United States her claims to this Territory, consented, by her delegates in the Old Congress, to this Ordinance. Not only Virginia, but North Carolina, South Carolina, and Georgia, by the unanimous votes of their delegates in the Old Congress, approved of the Ordinance of 1787, by which Slavery is forever abolished in the Territory northwest of the river Ohio. Without the votes of these States, the Ordinance could not have been passed; and there is no

recollection of an opposition from any of these States to the act of confirmation passed under the actual Constitution."

[10]

—"The famous Ordinance of Congress of the 13th July, 1787, which has ever since constituted, in most respects, the model of all our territorial governments, and is equally remarkable for the brevity and exactness of its text, and for its masterly display of the fundamental principles of civil and religious liberty."—*Justice Story, 1 Commentaries*: §1312.

"It is well known that the Ordinance of 1787 was drawn by the Hon. Nathan Dane, of Massachusetts, and adopted with scarcely a verbal alteration by Congress. It is a noble and imperishable monument to his fame."—*Id.* note.

The ordinance was reported by a committee, of which Wm. S. Johnson and Charles Pinckney were members. It recites that, "for extending the fundamental principles of civil and religious liberty, which form the basis whereon these republics, their laws and constitutions, are erected; to fix and establish those principles as the basis of all laws, constitutions, and governments which forever hereafter shall be formed in the said Territory; to provide also for the establishment of States and permanent government, and for their admission to a share in the federal councils, on an equal footing with the original States, at as early periods as may be consistent with the general interest—

"It is hereby ordained and declared, by the authority aforesaid, that the following articles shall be considered as articles of compact between the original States and the people and States in the said Territory, and forever remain unalterable, unless by common consent, to wit:"

"Art. 6. There shall be neither slavery nor involuntary servitude in the said Territory otherwise than in the punishment of crimes whereof the party shall have been duly convicted; provided always that any person escaping into the same, from whom labor

or service is lawfully claimed in any one of the original States, such fugitive may be lawfully reclaimed, and conveyed to the person claiming his or her labor or service."

On passing the ordinance, the ayes and nays were required by Judge Yates, of New York, when it appeared *that his was the only vote in the negative*.

The ordinance of April 23, 1784, was a brief outline of that of '87. It was reported by a Committee, of which Mr. Jefferson was chairman, and the report contained a slavery prohibition intended to take effect in 1800. This was stricken out of the report, six States voting to retain it—three voting to strike out—one being divided (N.C.), and the others not being represented. (The assent of nine States was necessary to retain any provision.) And this is the vote alluded to by Mr. Lincoln. But subsequently, March 16, 1785, a motion was made by Rufus King to commit a proposition "that there be neither slavery nor involuntary servitude" in any of the Territories; which was carried by the vote of eight States, including Maryland.—*Journal Am. Congress*, vol. 4, pp. 373, 380, 481, 752.

When, therefore, the ordinance of '87 came before Congress, on its final passage, the subject of slavery prohibition had been "*agitated*" for nearly three years; and the deliberate and almost unanimous vote of that body upon that question leaves no room to doubt what the fathers believed, and how, in that belief, they acted.

[11]

—It singularly and fortunately happens that one of the "thirty-nine," "while engaged on that instrument," viz., while advocating its ratification before the Pennsylvania Convention, did express an opinion upon this "precise question," which opinion was *never* disputed or doubted, in that or any other Convention, and was accepted by the opponents of the Constitution, as an indisputable fact. This was the celebrated James Wilson, of Pennsylvania. The opinion is as follows:—

MONDAY, Dec. 3, 1787.

"With respect to the clause restricting Congress from prohibiting the migration or importation of such persons as any of the States now existing shall think proper to admit, prior to the year 1808: The Hon. gentleman says that this clause is not only dark, but intended to grant to Congress, for that time, the power to admit the importation of slaves. No such thing was intended; but I will tell you what was done, and it gives me high pleasure that so much was done. Under the present Confederation, the States may admit the importation of slaves as long as they please; but by this article, after the year 1808, the Congress will have power to prohibit such importation, notwithstanding the disposition of any State to the contrary. I consider this as laying the foundation for banishing slavery out of this country; and though the period is more distant than I could wish, yet it will produce the same kind, gradual change which was pursued in Pennsylvania. It is with much satisfaction that I view this power in the general government, whereby they may lay an interdiction on this reproachful trade. But an immediate advantage is also obtained; for a tax or duty may be imposed on such importation, not exceeding \$10 for each person; and this, sir, operates as a partial prohibition; it was all that could be obtained. I am sorry it was no more; but from this I think there is reason to hope that yet a few years, and it will be prohibited altogether. *And in the meantime, the new States which are to be formed will be under the control of Congress in this particular, and slaves will never be introduced amongst them.*"—2 Elliott's Debates, 423.

It was argued by Patrick Henry in the Convention in Virginia, as follows:

"May not Congress enact that every black man must fight? Did we not see a little of this in the last war? We were not so hard pushed as to make emancipation general. But acts of Assembly passed, that every slave who would go to the army should be free. Another thing will contribute to bring this event about. Slavery is detested. We feel its fatal effects. We deplore it with all the pity of

humanity. Let all these considerations press with full force on the minds of Congress. Let that urbanity which, I trust, will distinguish America, and the necessity of national defence—let all these things operate on their minds, they will search that paper, and see if they have power of manumission. And have they not, sir? Have they not power to provide for the general defence and welfare? May they not think that these call for the abolition of slavery? May they not pronounce all slaves free, and will they not be warranted by that power? There is no ambiguous implication, no logical deduction. The paper speaks to the point; they have the power in clear, unequivocal terms, and will clearly and certainly exercise it."—3 *Elliott's Debates*, 534.

Edmund Randolph, one of the framers of the Constitution, replied to Mr. Henry, admitting the general force of the argument, but claiming that, because of other provisions, it had no application to the *States* where slavery *then* existed; thus conceding that power to exist in Congress as to all territory belonging to the United States.

Dr. Ramsay, a member of the Convention of South Carolina, in his history of the United States, vol. 3, pages 36, 37, says: "Under these liberal principles, Congress, in organizing *colonies*, bound themselves to impart to their inhabitants all the privileges of coequal States, as soon as they were capable of enjoying them. In their infancy, *government was administered for them* without any expense. As soon as they should have 60,000 inhabitants, they were authorized to call a convention, and, by common consent, to form their own constitution. This being done, they were entitled to representation in Congress, and every right attached to the original States. These privileges are not confined to any particular country or *complexion*. They are communicable to the emancipated slave (for in the new State of Ohio, slavery is altogether prohibited), to the copper-colored native, and all other human beings who, after a competent residence and degree of civilization, are capable of enjoying the blessings of regular government."

[12]

—The Act of 1789, as reported by the Committee, was received and read Thursday, July 16th. The second reading was on Friday, the 17th, when it was committed to the Committee of the whole house, "on Monday next." On Monday, July 20th, it was considered in Committee of the whole, and ordered to a third reading on the following day; on the 21st, it passed the House, and was sent to the Senate. In the Senate it had its first reading on the same day, and was ordered to a second reading on the following day (July 22d), and on the 4th of August it passed, and on the 7th was approved by the President.

[13]

—The "sixteen" represented these States: Langdon and Oilman, New Hampshire; Sherman and Johnson, Connecticut; Morris, Fitzsimmons, and Clymer, Pennsylvania; King, Massachusetts; Paterson, New Jersey; Few and Baldwin, Georgia; Bassett and Read, Delaware; Butler, South Carolina; Carroll, Maryland; and Madison, Virginia

[14]

—*Vide* note 3, *ante*.

[15]

—Chap. 28, § 7, U.S. Statutes, 5th Congress, 2d Session.

[16]

—Langdon was from New Hampshire, Read from Delaware, and Baldwin from Georgia.

[17]

—Chap. 38, § 10, U.S. Statutes, 8th Congress, 1st Session.

[18]

—Baldwin was from Georgia, and Dayton from New Jersey.

[19]

—Rufus King, who sat in the old Congress, and also in the Convention, as the representative of Massachusetts, removed to New York and was sent by that State to the U.S. Senate of the first Congress. Charles Pinckney was hi the House, as a representative of South Carolina.

[20]

—Although Mr. Pinckney opposed "slavery prohibition" in 1820, yet his views, with regard to the *powers* of the general government, may be better judged by his actions in the Convention:

FRIDAY, *June 8th*, 1787.—"Mr. Pinckney moved 'that the National Legislature shall have the power of negating all laws to be passed by the State Legislatures, which they may judge improper,' in the room of the clause as it stood reported.

"He grounds his motion on the necessity of one supreme controlling power, and he considers this as the *corner-stone* of the present system; and hence the necessity of retrenching the State authorities, in order to preserve the good government of the national council."—T. 400, *Elliott's Debates*.

And again, THURSDAY, *August 23d*, 1787, Mr. Pinckney renewed the motion with some modifications.—T. 1409. *Madison Papers*.

And although Mr. Pinckney, as correctly stated by Mr. Lincoln, "steadily voted against slavery prohibition, and against all compromises," he still regarded the passage of the Missouri Compromise as a great triumph of the South, which is apparent from the following letter:

CONGRESS HALL, *March 2d*, 1820, 3 o'clock at night.

DEAR SIR:—I hasten to inform you, that this moment we have carried the question to admit Missouri, and all Louisiana to the southward of 36° 30', free from the restriction of slavery, and give the South, in a short time, an addition of six, perhaps eight, members to the Senate of the United States. It is considered here by the slaveholding States as a great triumph.

The votes were close—ninety to eighty-six—produced by the seceding and absence of a few moderate men from the North. To the north of 36° 30,' there is to be, by the present law, restriction; which you will see by the votes, I voted against. But it is at present of no moment; it is a vast tract, uninhabited, only by savages and wild beasts, in which not a foot of the Indian claims to soil is extinguished, and in which, according to the ideas prevalent, no land office will be opened for a great length of time.

With respect, your obedient servant,

CHARLES PINCKNEY.

But conclusive evidence of Mr. Pinckney's views is furnished in the fact that *he was himself a member of the Committee which reported the Ordinance of '87, and that on every occasion, when it was under the consideration of Congress, he voted against all amendments.—Jour. Am. Congress, Sept. 29th, 1786. Oct. 4th.* When the ordinance came up for its final passage, Mr. Pinckney was sitting in the Convention, and did not take any part in the proceedings of Congress.

[21]

—By reference to notes 4, 6, 10, 13, 15, and 16 it will be seen that, of the twenty-three who acted upon the question of prohibition, twelve were from the present slaveholding States.

[22]

—*Vide* notes 5 and 17, *ante*.

[23]

—"The remaining sixteen" were Nathaniel Gorham, Massachusetts; Alex. Hamilton, New York; William Livingston and David Brearly, New Jersey; Benjamin Franklin, Jared Ingersoll, James Wilson, and Gouverneur Morris, Pennsylvania; Gunning Bedford, John Dickinson, and Jacob Broom, Delaware; Daniel, of St. Thomas, Jenifer, Maryland; John Blair, Virginia; Richard Dobbs Spaight, North Carolina; and John Rutledge and Charles Cotesworth Pinckney, South Carolina.

[24]

—"The only distinction between freedom and slavery consists in this: in the former state, a man is governed by the laws to which he has given his consent, either in person or by his representative; in the latter, he is governed by the will of another. In the one case, his life and property are his own; in the other, they depend upon the pleasure of a master. It is easy to discern which of the two states is preferable. No man in his senses can hesitate in choosing to be free rather than slave.... Were not the disadvantages of slavery too obvious to stand in need of it, I might enumerate and describe the tedious train of calamities inseparable from it. I might show that it is fatal to religion and morality; that it tends to debase the mind, and corrupt its noblest springs of action. I might show that it relaxes the sinews of industry and clips the wings of commerce, and works misery and indigence in every shape."—HAMILTON, *Works*, vol. 2, pp. 3, 9.

"That you will be pleased to countenance the restoration of *liberty* to those unhappy *men*, who, alone in this land of freedom, are degraded into perpetual bondage, and who, amidst the general joy of surrounding freemen, are groaning in servile subjection; that you will devise means for removing this inconsistency from the character of the American people; that you will promote mercy and *justice* toward this distressed race; and that you will step to the *very verge* of the power vested in you for discouraging every species of traffic in the persons of our fellow-men."—Philadelphia, Feb. 3rd, 1790. *Franklin's Petition to Congress for the Abolition of Slavery*.

Mr. Gouverneur Morris said: "He never would concur in upholding domestic slavery. It was a notorious institution. It was the curse of heaven on the States where it prevailed.... The admission of slavery into the representation, when fairly explained, comes to this—that the inhabitant of South Carolina or Georgia, who goes to the coast of Africa, and, in defiance of the most sacred laws of humanity, tears away his fellow-creatures from their dearest connections, and damns them to the most cruel bondage, shall have more votes, in a government instituted for the protection of the rights of mankind, than the citizen of Pennsylvania or New Jersey, who views with a laudable horror so notorious a practice.... He would sooner submit himself to a tax for paying for all the negroes in the United States than saddle posterity with such a constitution."—*Debate on Slave Representation in the Convention. Madison Papers.*

[25]

—An eminent jurist (Chancellor Walworth) has said that "The preamble which was prefixed to these amendments, as adopted by Congress, is important to show in what light that body considered them." (8 *Wend. R.*, p. 100.) It declares that a number of the State Conventions "having at the time of their adopting the Constitution *expressed a desire*, in order to prevent *misconstruction or abuse of its powers*, that further *declaratory* and restrictive clauses should be added," resolved, etc.

This preamble is in substance the preamble affixed to the "Conciliatory Resolutions" of Massachusetts, which were drawn by Chief Justice Parsons, and offered in the Convention as a compromise by John Hancock. (*Life Ch. J. Parsons*, p. 67.) They were afterward copied and adopted with some additions by New Hampshire.

The fifth amendment, on which the Supreme Court relies, is taken almost literally from the declaration of rights put forth by the Convention of New York, and the clause referred to forms the ninth paragraph of the declaration. The tenth amendment, on

which Senator Douglas relies, is taken from the Conciliatory Resolutions, and is the first of those resolutions somewhat modified. Thus, these two amendments, sought to be used for slavery, originated in the two great anti-slavery States, New York and Massachusetts.

[26]

—The amendments were proposed by Mr. Madison in the House of Representatives, June 8, 1789. They were adopted by the House, August 24, and some further amendments seem to have been transmitted by the Senate, September 9. The printed journals of the Senate do not state the time of the final passage, and the message transmitting them to the State Legislatures speaks of them as adopted at the first session, begun on the fourth day of March, 1789. The date of the introduction and passage of the act enforcing the Ordinance of '87 will be found at note 9, *ante*.

[27]

—It is singular that while two of the "thirty-nine" were in that Congress of 1819, there was but one (besides Mr. King) of the "seventy-six." The one was William Smith, of South Carolina. He was then a Senator, and, like Mr. Pinckney, occupied extreme Southern ground.

[28]

—The following is an extract from the letter referred to:

"I agree with you cordially in your views in regard to negro slavery. I have long considered it a most serious evil, both socially and politically, and I should rejoice in any feasible scheme to rid our States of such a burden. The Congress of 1787 adopted an ordinance which prohibits the existence of involuntary servitude in our Northwestern Territory forever. I consider it a wise measure. It meets with the approval and assent of nearly every member from the States more immediately interested in slave labor. The prevailing opinion in Virginia is against the

spread of slavery in our new Territories, and I trust we shall have a confederation of free States."

The following extract from a letter of Washington to Robert Morris, April, 12th, 1786, shows how strong were his views, and how clearly he deemed emancipation a subject for legislative enactment: "I can only say that there is no man living who wishes more sincerely than I do to see a plan adopted for the abolition of it; but there is but one proper and effective mode by which it can be accomplished, and that is, BY LEGISLATIVE AUTHORITY, and that, as far as *my suffrage will go, shall never be wanting.*"

[29]

—A Committee of five, consisting of Messrs. Mason, Davis, and Fitch (Democrats), and Collamer and Doolittle (Republicans), was appointed Dec. 14, 1859, by the U.S. Senate, to investigate the Harper's Ferry affair. That Committee was directed, among other things, to inquire: (1) "Whether such invasion and seizure was made under color of any organization intended to subvert the government of any of the States of the Union." (2) "What was the character and extent of such organisation." (3) "And whether any citizens of the United States, not present, were implicated therein, or accessory thereto, by contributions of money, arms, munitions, or otherwise."

The majority of the Committee, Messrs. Mason, Davis, and Fitch, reply to the inquiries as follows:

1. "There will be found in the Appendix a copy of the proceedings of a Convention held at Chatham, Canada, of the Provisional Form of Government there pretended to have been instituted, the object of which clearly was to subvert the government of one or more States, and of course, to that extent, the government of the United States." By reference to the copy of Proceedings it appears that *nineteen* persons were present at that Convention, *eight* of whom were either killed or executed at Charlestown, and one examined before the Committee.

2. "The character of the military organization appears, by the commissions issued to certain of the armed party as captains, lieutenants, etc., a specimen of which will be found in the Appendix."

(These Commissions are signed by John Brown as Commander-in-Chief, under the Provisional Government, and by J.H. Kagi as Secretary.)

"It clearly appeared that the scheme of Brown was to take with him comparatively but few men; but those had been carefully trained by military instruction previously, and were to act as officers. For his military force he relied, very clearly, on inciting insurrection amongst the Slaves."

3. "It does not appear that the contributions were made with actual knowledge of the use for which they were designed by Brown, although it does appear that money was freely contributed by those styling themselves the friends of this man Brown, and friends alike of what they styled the cause of freedom (of which they claimed him to be an especial apostle), without inquiring as to the way in which the money would be used by him to advance such pretended cause."

In concluding the report the majority of the Committee thus characterize the "invasion": "It was simply the act of lawless ruffians, under the sanction of no public or political authority—distinguishable only from ordinary felonies by the ulterior ends in contemplation by them," etc.

[30]

—The Southampton insurrection, August, 1831, was induced by the remarkable ability of a slave calling himself General Nat Turner. He led his fellow bondsmen to believe that he was acting under the order of Heaven. In proof of this he alleged that the singular appearance of the sun at that time was a divine signal for the commencement of the struggle which would result in the recovery of their freedom. This insurrection resulted in the death

of sixty-four white persons, and more than one hundred slaves. The Southampton was the eleventh large insurrection in the Southern States, besides numerous attempts and revolts.

[31]

—In March, 1790, the General Assembly of France, on the petition of the *free* people of color in St. Domingo, many of whom were intelligent and wealthy, passed a decree intended to be in their favor, but so ambiguous as to be construed in favor of both the whites and the blacks. The differences growing out of the decree created two parties—the *whites* and the people of color; and some blood was shed. In 1791, the blacks again petitioned, and a decree was passed declaring the colored people citizens, who were born of free parents on both sides. This produced great excitement among the whites, and the two parties armed against each other, and horrible massacres and conflagrations followed. Then the Assembly rescinded this last decree, and like results followed, the blacks being the exasperated parties and the aggressors. Then the decree giving citizenship to the blacks was restored, and commissioners were sent out to keep the peace. The commissioners, unable to sustain themselves, between the two parties, with the troops they had, issued a proclamation that all blacks who were willing to range themselves under the banner of the Republic should be free. As a result a very large proportion of the blacks became in fact free. In 1794, the Conventional Assembly *abolished slavery* throughout the French Colonies. Some years afterward, the French Government sought, with an army of 60,000 men, to reinstate slavery, but were unsuccessful, and then the white planters were driven from the Island.

[32]

—*Vide* Jefferson's Autobiography, commenced January 6th, 1821. JEFFERSON'S *Works*, vol. 1, p. 49.

[33]

—"I am not ashamed or afraid publicly to avow that the election of William H. Seward or Salmon P. Chase, or any such representative of the Republican party, upon a sectional platform, ought to be resisted to the disruption of every tie that binds this Confederacy together. (Applause on the Democratic side of the House.)" *Mr. Curry, of Alabama, in the House of Representatives.*

"Just so sure as the Republican party succeed in electing a sectional man, upon their sectional, anti-slavery platform, breathing destruction and death to the rights of my people, just so sure, in my judgment, the time will have come when the South must and will take an unmistakable and decided action, and then he who dallies is a dastard, and he who doubts is damned! I need not tell what I, a Southern man, will do. I think I may safely speak for the masses of the people of Georgia—that when that event happens, they, in my judgment, will consider it an overt act, a declaration of war, and meet immediately in convention, to take into consideration the mode and measure of redress. That is my position; and if that be treason to the Government, make the most of it."—*Mr. Gartell, of Georgia, in the House of Representatives.*

"I said to my constituents, and to the people of the capital of my State, on my way here, if such an event did occur," [*i.e.*, the election of a Republican President, upon a Republican platform], "while it would be their duty to determine the course which the State would pursue, it would be my privilege to counsel with them as to what I believed to be the proper course; and I said to them, what I say now, and what I will always say in such an event, that my counsel would be to take independence out of the Union in preference to the loss of constitutional rights, and consequent degradation and dishonor, in it. That is my position, and it is the position which I know the Democratic party of the State of Mississippi will maintain."—*Gov. McRae, of Mississippi.*

"It is useless to attempt to conceal the fact that, in the present temper of the Southern people, it" [*i.e.*, the election of a Republican President] "cannot be, and will not be, submitted to. The 'irrepressible conflict' doctrine, announced and advocated by

the ablest and most distinguished leader of the Republican party, is an open declaration of war against the institution of slavery, wherever it exists; and I would be disloyal to Virginia and the South, if I did not declare that the election of such a man, entertaining such sentiment, and advocating such doctrines, *ought to be resisted by the slaveholding States*. The idea of permitting such a man to have the control and direction of the army and navy of the United States, and the appointment of high judicial and executive officers, POSTMASTERS INCLUDED, *cannot* be entertained by the South for a moment."—*Gov. Letcher, of Virginia*.

"Slavery *must* be maintained—in the Union, if possible; out of it, if necessary: peaceably if we may; forcibly if we must."—*Senator Iverson, of Georgia*.

"Lincoln and Hamlin, the Black Republican nominees, will be elected in November next, and the South will then decide the great question whether they will submit to the domination of Black Republican rule—the fundamental principle of their organization being an open, undisguised, and declared war upon our social institutions. I believe that the honor and safety of the South, in that contingency, will require the prompt secession of the slaveholding States from the Union; and failing then to obtain from the free States additional and higher guaranties for the protection of our rights and property, that the seceding States should proceed to establish a new government. But while I think such would be the imperative duty of the South, I should emphatically reprobate and repudiate any scheme having for its object the separate secession of South Carolina. If Georgia, Alabama, and Mississippi alone—giving us a portion of the Atlantic and Gulf coasts—would unite with this State in a common secession upon the election of a Black Republican, I would give my consent to the policy."—*Letter of Hon. James L. Orr, of S.C., to John Martin and others, July 23, 1860*.

—The Hon. John A. Andrew, of the Boston Bar, made the following analysis of the Dred Scott case in the Massachusetts Legislature. Hon. Caleb Cushing was then a member of that body, but did not question its correctness.

"On the question of possibility of citizenship to one of the Dred Scott color, extraction, and origin, three Justices, viz., Taney, Wayne, and Daniels, held the negative. Nelson and Campbell passed over the plea by which the question was raised. Grier agreed with Nelson. Catron said the question was not open. McLean agreed with Catron, but thought the plea bad. Curtis agreed that the question was open, but attacked the plea, met its averments, and decided that a free-born colored person, native to any State, is a citizen thereof by birth, and is therefore a citizen of the Union, and entitled to sue in the Federal Courts.

"Had a majority of the court directly sustained the plea in abatement, and denied the jurisdiction of the Circuit Court appealed from, then all else they could have said and done would have been done and said in a cause not theirs to try and not theirs to discuss. In the absence of such a majority, one step more was to be taken. And the next step reveals an agreement of six of the Justices, on a point decisive of the cause, and putting an end to all the functions of the court.

"It is this. Scott was first carried to Rock Island, in the State of Illinois, where he remained about two years, before going with his master to Fort Snelling, in the Territory of Wisconsin. His claim to freedom was rested on the alleged effect of his translation from a slave State, and again into a free territory. If, by his removal to Illinois, he became emancipated from his master, the subsequent continuance of his pilgrimage into the Louisiana purchase could not add to his freedom, nor alter the fact. If, by reason of any want or infirmity in the laws of Illinois, or of conformity on his part to their behests, Dred Scott remained a slave while he remained in that State, then—for the sake of learning the effect on him of his territorial residence beyond the Mississippi, and of his marriage and other proceedings there, and

the effect of the sojournment and marriage of Harriet, in the same territory, upon herself and her children—it might become needful to advance one other step into the investigation of the law; to inspect the Missouri Compromise, banishing slavery to the south of the line of 36° 30' in the Louisiana purchase.

"But no exigency of the cause ever demanded or justified that advance; for six of the Justices, including the Chief Justice himself, decided that the *status* of the plaintiff, as free or slave, was dependent, not upon the laws of the State in which he had been, but of the State of Missouri, in which he was at the commencement of the suit. The Chief Justice asserted that 'it is now firmly settled by the decisions of the highest court in the State, that Scott and his family, on their return were not free, but were, by the laws of Missouri, the property of the defendant.' This was the burden of the opinion of Nelson, who declares 'the question is one solely depending upon the law of Missouri, and that the Federal Court, sitting in the State, and trying the case before us, was bound to follow it.' It received the emphatic endorsement of Wayne, whose general concurrence was with the Chief Justice. Grier concurred in set terms with Nelson on all 'the questions discussed by him.' Campbell says, 'The claim of the plaintiff to freedom depends upon the effect to be given to his absence from Missouri, in company with his master in Illinois and Minnesota, *and this effect is to be ascertained by reference to the laws of Missouri.*' Five of the Justices, then (if no more of them), regard the law of Missouri as decisive of the plaintiff's rights."

[35]

—"Now, as we have already said in an earlier part of this opinion upon a different point, the right of property in a slave is distinctly and expressly affirmed in the Constitution. The right to traffic in it, *like an ordinary article of merchandise and property*, was guaranteed to the citizens of the United States in every State that might desire it, for twenty years."—*Ch. J. Taney*, 19 *How. U.S.R.*, p. 451. *Vide* language of Mr. Madison, note 34, as to "*merchandise*."

[36]

—Not only was the right of property *not* intended to be "distinctly and expressly affirmed in the Constitution"; but the following extract from Mr. Madison demonstrates that the utmost care was taken to avoid so doing:

"The clause as originally offered [respecting fugitive slaves] read, 'If any person LEGALLY bound to service or labor in any of the United States shall escape into another State,' etc., etc. (Vol. 3, p. 1456.) In regard to this, Mr. Madison says, 'The term '*legally*' was struck out, and the words 'under the laws thereof,' inserted after the word State, in compliance with the wish of some who thought the term '*legally*' equivocal and favoring the idea that slavery was legal in a moral point of view.'—*Ib.*, p. 1589.

[37]

—We subjoin a portion of the history alluded to by Mr. Lincoln. The following extract relates to the provision of the Constitution relative to the slave trade. (Article I, Sec. 9.)

25th August, 1787.—The report of the Committee of eleven being taken up, Gen. [Charles Cotesworth] Pinckney moved to strike out the words "the year 1800," and insert the words "the year 1808."

Mr. Gorham seconded the motion.

Mr. Madison—Twenty years will produce all the mischief that can be apprehended from the liberty to import slaves. So long a term will be more dishonorable to the American character than to say nothing about it in the Constitution.

Mr. Gouverneur Morris was for making the clause read at once—

"The importation of slaves into North Carolina, South Carolina, and Georgia, shall not be prohibited," etc. This, he said, would be most fair, and would avoid *the* ambiguity by which, under the

power with regard to naturalization, the liberty reserved to the States might be defeated. He wished it to be known, also, that this part of the Constitution was a compliance with those States. If the change of language, however, should be objected to by the members from those States, he should not urge it.

Col. Mason (of Virginia) was not against using the term "slaves," but against naming North Carolina, South Carolina, and Georgia, lest it should give offence to the people of those States.

Mr. Sherman liked a description better than the terms proposed, which had been declined by the old Congress and were not pleasing to some people.

Mr. Clymer concurred with Mr. Sherman.

Mr. Williamson, of North Carolina, said that *both in opinion and practice he was against slavery; but thought it more in favor of humanity, from a view of all circumstances, to let in South Carolina and Georgia, on those terms, than to exclude them from the Union.*

Mr. Morris withdrew his motion.

Mr. Dickinson wished the clause to be confined to the States which had not themselves prohibited the importation of slaves, and for that purpose moved to amend the clause so as to read—

"The importation of slaves into such of the States as shall permit the same, shall not be prohibited by the Legislature of the United States, until the year 1808," which was disagreed to, *nem. con.*

The first part of the report was then agreed to as follows:

"The migration or importation of such persons as the several States now existing shall think proper to admit, shall not be prohibited by the Legislature prior to the year 1808."

Mr. Sherman was against the second part ["but a tax or duty may be imposed on such migration or importation at a rate not exceeding *the average of the duties laid on imports*"], as acknowledging men to be property by taxing them as such under the *character* of slaves.

Mr. Madison *thought it wrong to admit in the Constitution the like idea that there could be property in men*. The reason of duties did not hold, as slaves *are not, like merchandise*, consumed.

It was finally agreed, *nem. con.*, to make the clause read—

"But a tax or duty may be imposed on such importation, not exceeding *ten dollars* for each PERSON."—*Madison Papers*, Aug. 25, 1787.

[38]

—Compare this noble passage and that at page 18, with the twaddle of Mr. Orr (note 30), and the slang of Mr. Douglas (note 37).

[39]

—That demand has since been made. Says MR. O'CONOR, counsel for the State of Virginia in the *Lemon Case*, page 44: "We claim that under these various provisions of the Federal Constitution, a citizen of Virginia has an immunity against the operation of any law which the State of New York can enact, whilst he is a stranger and wayfarer, or whilst passing through our territory; and that he has absolute protection for all his domestic rights, and for all his rights of property, which under the laws of the United States, and the laws of his own State, he was entitled to, whilst in his own State. We claim this, and neither more NOR LESS."

Throughout the whole of that case, in which the right to pass through New York with slaves at the pleasure of the slave owners is maintained, it is nowhere contended that the statute is contrary to the Constitution of New York; but that the statute and the Constitution of the State are both contrary to the Constitution of the United States.

The State of Virginia, not content with the decision of our own courts upon the right claimed by them, is now engaged in carrying this, the Lemon case, to the Supreme Court of the United States, hoping by a decision there, in accordance with the intimations in the Dred Scott case, to overthrow the Constitution of New York.

Senator Toombs, of Georgia, has claimed, in the Senate, that laws of Connecticut, Maine, Massachusetts, Michigan, New Hampshire, Ohio, Rhode Island, Vermont, and Wisconsin, for the exclusion of slavery, conceded to be warranted by the State Constitutions, are contrary to the Constitution of the United States, and has asked for the enactment of laws by the General Government which shall override the laws of those States and the Constitutions which authorize them.

[40]

—"Policy, humanity, and Christianity, alike forbid the extension of the evils of free society to new people and coming generations."—*Richmond Enquirer*, Jan. 22, 1856.

"I am satisfied that the mind of the South has undergone a change to this great extent, that it is now the *almost universal belief* in the South, not only that the condition of African slavery in their midst, is the best condition to which the African race has ever been subjected, but that *it has the effect of ennobling both races, the white and the black.*"—*Senator Mason, of Virginia*.

"I declare again, as I did in reply to the Senator from Wisconsin (Mr. Doolittle), that, in my opinion, slavery is a great moral, social, and political blessing—a blessing to the slave, and a

blessing to the master."—*Mr. Brown, in the Senate, March 6, 1860.*

"I am a Southern States' Rights man; I am an African slave-trader. I am one of those Southern men who believe that slavery is right—morally, religiously, socially, and politically." (Applause.) ... "I represent the African Slave-trade interests of that section. (Applause.) I am proud of the position I occupy in that respect. I believe the African Slave-trader is a true missionary and a true Christian." (Applause.)—*Mr. Gaulden, a delegate from First Congressional District of Georgia, in the Charleston Convention, now a supporter of Mr. Douglas.*

"Ladies and gentlemen, I would gladly speak again, but you see from the tones of my voice that I am unable to. This has been a happy, a glorious day. I shall never forget it. There is a charm about this beautiful day, about this sea air, and especially about that peculiar institution of yours—a clam bake. I think you have the advantage, in that respect, of Southerners. For my own part, I have much more fondness for your clams than I have for their niggers. But every man to his taste."—*Hon Stephen A. Douglas's Address at Rocky Point, R.I., Aug. 2, 1860.*

[41]

—It is interesting to observe how two profoundly logical minds, though holding extreme, opposite views, have deduced this common conclusion. Says Mr. O'Connor, the eminent leader of the New York Bar, and the counsel for the State of Virginia in the Lemon case, in his speech at Cooper Institute, December 19th, 1859:

"That is the point to which this great argument must come—Is negro slavery unjust? If it is unjust, it violates that first rule of human conduct—'Render to every man his due.' If it is unjust, it violates the law of God which says, 'Love thy neighbor as thyself,' for that requires that we should perpetrate no injustice. Gentlemen, if it could be maintained that negro slavery was unjust, perhaps I might be prepared—perhaps we all ought to be

prepared—to go with that distinguished man to whom allusion is frequently made, and say, 'There is a higher law which compels us to trample beneath our feet the Constitution established by our fathers, with all the blessings it secures to their children.' But I insist—and that is the argument which we must meet, and on which we must come to a conclusion that shall govern our actions in the future selection of representatives in the Congress of the United States—insist that negro slavery is not unjust."

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